APPENDIX A
NOTICE OF PREPARATION OF AN ENVIRONMENTAL IMPACT REPORT AND COMMENTS RECEIVED

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SUB-APPENDIX A.1
NOTICE OF PREPARATION (CIRCULATED NOVEMBER 1, 2023)

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San Francisco Planning

49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103
628.652.7600
www.sfplanning.org

PUBLIC NOTICE

NOTICE OF PREPARATION OF AN ENVIRONMENTAL IMPACT REPORT

Date:	November 1, 2023
Comment Deadline:	December 1, 2023
Case No.:	2022-009819ENV
Project Address:	3400 Laguna Street
Zoning:	RM-1 (Residential – Mixed, Low Density) Use District
Height/Bulk:	40-X District
Block/Lot:	0471/003
Lot Size:	68,005 square feet
Neighborhood:	Marina
Supervisor District:	District 2, Catherine Stefani
Cross Streets:	East side of Laguna Street between Bay and Francisco streets
Staff Contact:	Jeanie Poling – (628) 652-7559, jeanie.poling@sfgov.org

Introduction

The San Francisco Planning Department (department) prepared this notice of preparation of an environmental impact report (EIR) in connection with the proposed 3400 Laguna Street project (proposed project). The purpose of the EIR is to provide information regarding the physical environmental effects of the proposed project; identify possible ways to minimize any potentially significant adverse effects; and describe and analyze possible alternatives to the proposed project. The department is issuing this notice to inform the public and responsible and interested agencies about the proposed project and the intent to prepare an EIR; and to solicit comments on the scope of the EIR. This notice also identifies environmental issues anticipated to be analyzed in the EIR. The comments received during the public scoping process will be considered during preparation of the EIR for this project.[1]

This notice is available for public review on the department's website at sfplanning.org/sfceqadocs and at the San Francisco Permit Center's document viewing room on the second floor of 49 South Van Ness Avenue, San Francisco, CA 94103.

[1] The EIR will also be informed by comments received in response to the Planning Department's "Notification of Project Receiving Environmental Review" distributed on May 30, 2023. After that notice, the department determined to prepare an EIR.

Project Description

Project Location and Site Characteristics

The approximately 68,090-square-foot[2] (approximately 1.6-acre) project site at 3400 Laguna Street is located on a corner lot southeast of the Laguna Street and Bay Street intersection in the Marina neighborhood. The site is bounded by Bay Street to the north, single- and multi-family residences near to and along Octavia Street to the east, Francisco Street to the south, and Laguna Street to the west. The project site slopes upward from west to east from approximately 30 to 40 feet above mean sea level.

The project site has been occupied by the Heritage on the Marina residential care retirement community since 1925. Heritage on the Marina consists of five existing structures of approximately 83,200 gross square feet (gsf): the Julia Morgan Building, the Perry Building, the Perry Building Connector, the Health Center, and the Caretaker's Cottage, which are further described below.[3]

- The **Julia Morgan Building** is a U-shaped building that is three stories and approximately 40 feet in height; it was built in 1925. The primary façade of the building faces west and is viewed from Laguna Street. The building has a partially exposed basement level and an attic story penthouse over the east portion of the front façade. The building serves as the primary pedestrian entrance to the site.[4]

- The **Perry Building Connector** is a rectangular building that is two stories and approximately 22 feet in height over a partially raised basement; it was built in 1957. The Perry Building Connector runs east to west to connect the Morgan Building to the Perry Building forming an L-shaped footprint.

- The **Perry Building** is a rectangular building that is four stories and approximately 41 feet in height over a partially raised basement; it was built in 1957. The building has an enclosed fire access stair on the Bay Street side that projects about 8 feet above the roofline and the existing elevator penthouse extends about 16 feet above the roofline.

- The **Health Center** is a rectangular building that is one story and approximately 15 feet in height; it was built in 1963. The Health Center runs east to west and intersects the Perry Building on its southeast corner.

- The **Caretaker's Cottage** is an L-shaped structure that is one story and 22 feet in height; it was built in 1925. It is located on the northeast corner of the property enclosed within a wood fence and gate.

The Morgan Building, the Perry Building Connector, the Perry Building, and the Health Center all surround a central courtyard. There is a second courtyard east of the Perry Building on the eastern boundary of the project site. The site also contains a front lawn that is located between the existing entrance to the Julia Morgan building and Laguna Street. (See **Figure 1, Project Vicinity Map** and **Figure 2, Existing Site Plan**).

The project site has approximately 45 feet of passenger loading (white curb) and 20 feet of accessible parking (blue curb) on the Laguna Street frontage and 22 feet of loading (white curb) on the Francisco Street

[2] All square footages are approximate and rounded to the nearest multiple of ten.
[3] Adjacent properties at 1530 Francisco Street, 1536-1538 Francisco Street, and 3325-3327 Octavia Street are also owned and operated by Heritage on the Marina but are not part of the project site and no changes to these facilities are proposed.
[4] Although this building serves as the primary pedestrian entrance to the site, it is non-compliant with Americans with Disabilities Act (ADA) accessibility requirements and the entrance along Francisco Street is instead used for ADA access.

frontage. The project site includes 17 off-street vehicle parking spaces and one off-street loading space, which are accessible via an existing 18-foot-wide driveway along Bay Street. Pedestrian access to the site is provided via gates along Laguna Steet that access internal sidewalks connecting to the Julia Morgan Building entrances and additional accessible entrances from Bay Street.

The project site is not listed in the National Register of Historic Places or the California Register of Historical Resources, nor is it a local San Francisco article 10 landmark, but the site is eligible for listing in the California Register of Historical Resources.

Proposed Project Characteristics

The proposed project would continue to operate as a residential care facility. The proposed project would demolish two of the five existing buildings (the Perry Connector and the Health Center) and construct two new buildings (the Bay Building and the Francisco Building) of heights not to exceed 40 feet in height (excluding rooftop appurtenances) and in the same locations as the demolished structures. The proposed project would also renovate two of the other three existing buildings on the site (the Perry Building and the Caretaker's Cottage), as further described below. In total, the proposed project would add approximately 58,380 square feet of net new institutional use resulting in an approximately 141,580 gsf residential care facility and increase the number of residential care suites by 23 from 86 to 109. **Table 1, Proposed Project Details** provides a summary of the proposed project compared to existing conditions.

Table 1 Proposed Project Details

	Existing	Proposed	Net Change
Number of Building(s)	5	5	0
Building Stories[1]	4	4	0
Maximum Building Height (feet)[1]	40	40	0
Building Gross Square Feet (gsf)	83,200	141,580	+58,380
Residential Care Units	86	109	+23
Useable Open Space (square feet)	26,410	30,280	+3,870
Off-Street Parking (spaces)	17	36	+19
Off-Street Loading Spaces	1	1	0
On-Street Loading Spaces	0	0	0

SOURCE: GBA Inc., 2023.

[1] Reflects the maximum building height and number of stories as these vary across the site.

NOTE: All gsf numbers are rounded to the nearest multiple of 10.

Gsf = gross square feet

Figure 3, Proposed Site Plan depicts the overall proposed site plan; **Figures 4 through 7** depict the proposed floor plans for the basement, ground floor, representative upper floors (level 2); and roof levels. **Figures 8 through 9** depict the proposed building elevations.

New Construction

The new Bay Building and new Francisco Building would both be four stories and approximately 40 feet in height. The new Bay Building would be approximately 31,300 gross square feet and include a resident's roof

deck, independent living units, assisted living amenities, memory support accommodations, reception, lounge, administration and laundry. The new Francisco Building would be approximately 47,100 gross square feet and include independent living units, support areas (fitness, physical therapy, arts and crafts) and staff facilities.

The proposed new Bay Building and new Francisco Building would have flat roofs at similar elevation as the Perry Building. The new Bay Building also would include a roof deck consisting of 3,549 square feet of common open space surrounded by perimeter planters and positioned on the Bay Street side of the project site away from neighboring residences. The roof deck would be serviced by two elevators (service elevator and passenger elevator) with a small shade trellis (approximately 500 square feet). The new elevators would have penthouses that would be shorter than the existing Perry Building elevator penthouse. Three new staircases would be added to access the roof. None of the permitted obstructions would be taller than the existing roof access stair projection of the existing Perry Building. The Bay Building's new staircase would be adjacent to the internal courtyard, as would one of the Francisco Building's two staircases. The other stair for the Francisco Building located at the building's southeast corner would utilize a sloped roof condition consistent with the design guidelines.

To meet CALGreen[5] requirements, the project would utilize a mechanical system which requires use of rooftop HVAC compressors. The system has not been designed, but the compressors can range from 4 to 10 feet in height above the roof level (depending on the system design). The compressors would be grouped together in screened enclosures, as far away as practical from the roof perimeter along the adjoining streets. The screen enclosure height would match the equipment height. In addition, about a third of roof area not occupied by the roof terrace/mechanical equipment would host a solar panel array. The panels would have a tilt to optimize performance but would not project appreciably above adjacent parapets. The proposed project would decrease the total roof area from 34,360 square feet to 31,930 square feet to accommodate the solar panels; new buildings would meet Title 24 requirements for photovoltaic solar panels on building flat roof areas.

The existing emergency backup diesel power generator, located adjacent to the Bay Street frontage, would be replaced by a new Tier 4 emissions emergency backup diesel generator located inside the new Bay Building.

A new basement level garage would be constructed beneath the Bay and Francisco buildings and the existing interior courtyard. The basement level would include 31 vehicular parking spaces for use by staff and residents, including one car-share space, and 18 bicycle parking spaces. A new two-directional, 20-foot-wide driveway on Bay Street would provide access to the new basement, east of the existing entrance. Vehicles would be restricted to right-only turns into and out of the driveway. The new driveway would necessitate the removal of the 17 existing project site surface parking spaces and approximately 15 feet of street parking along Bay Street. At this location, along the Bay Street side of the project site, an off-street covered porte cochère with zero curbs and accessibility ramps would provide universal access required by the residential care facility. The existing driveway on Bay Street, west of the new driveway, would provide access to five project site surface parking spaces. In total, the project would add 19 net new parking spaces to the project site. The proposed project would also add 12 new bicycle parking spaces in the public right-of-way (three located on Bay Street and nine located on Francisco Street).

[5] CalGreen is the California Green Buildings Standards Code, Part 11, Title 24, California Code of Regulations.

Changes to Existing Buildings

The proposed project would:

- renovate the interior of the existing Caretaker's Cottage,
- renovate the interior and exterior of the existing Perry Building, and
- rehabilitate the façade of the existing Julia Morgan Building, including window repairs and replacements, fencing repairs including to the brick base, HVAC modernization, re-pointing[6] of bricks where needed, and roof repairs where needed.

There would be no change to the building massing, number of stories or height of the Julia Morgan Building, Perry Building, and the Caretaker's Cottage.

Open Space

The project would increase usable open space at the project site from approximately 26,410 square feet to approximately 30,280 square feet, an increase of approximately 3,870 square feet of open space. The proposed project would preserve the existing open lawn space in front of the Julia Morgan Building and in the courtyard to the rear of the project site. The proposed project would renovate and augment the size of the original central courtyard and would install an adjoining courtyard on the same level. The proposed project would also create an art garden in the approximate location of the existing garden at the southwest portion of the project site. Additionally, the project would add 3,550 square feet of common open space and 940 square feet of green area on the roof of the new Bay Building.

Demolition and Construction

Construction of the project would take approximately 29 months. The proposed new buildings would be constructed on mat foundations, and no impact or vibratory pile driving techniques would be used. The proposed project would require the excavation of 9,060 cubic yards of soil to a maximum depth of 15 feet below ground surface. The total area of soil disturbance would be 29,750 square feet. Construction is scheduled for Monday through Friday, from 7:00 a.m. to 8:00 p.m., with no nighttime construction to occur.

Project Approvals

The proposed project requires the following approvals from the San Francisco Planning Commission: Conditional Use Authorization (planning code sections 209.2 and 303); and Planned Unit Development, including an exception to a rear yard requirement (planning code section 304).

Summary of Potential Environmental Issues

The proposed project could result in potentially significant environmental effects. Therefore, the department will prepare an initial study and EIR to evaluate the physical environmental effects of the proposed project. The initial study will be published as an appendix to the draft EIR and will be part of the EIR.

As required by the California Environmental Quality Act (CEQA), the EIR will further examine those issues identified in the initial study as having potentially significant effects or may be topics of significant controversy, identify mitigation measures, analyze whether the proposed mitigation measures would reduce

[6] Re-pointing refers to replacing and sealing failed joints with new mortar.

the environmental effects to less-than-significant levels, and identify feasible alternatives to the proposed project that would reduce those impacts.

The EIR (including the initial study) will be prepared in compliance with CEQA (California Public Resources Code, sections 21000 et seq.), the CEQA Guidelines, and Chapter 31 of the San Francisco Administrative Code. The EIR is an informational document for use by governmental agencies and the public to aid in the planning and decision-making process. The EIR will disclose any physical environmental effects of the proposed project and identify possible ways of reducing or avoiding potentially significant impacts.

The EIR will evaluate the environmental impacts of the proposed project resulting from construction and operational activities, and will propose mitigation measures to reduce or avoid impacts determined to be significant. The EIR will also identify potential cumulative impacts that consider impacts of the proposed project in combination with impacts of other past, present, and reasonably foreseeable future projects. The EIR (including the initial study) will address all environmental topics in the department's CEQA environmental checklist; at this time, topics marked with an asterisk (*) are anticipated to be included for full analysis in the EIR:

- Land Use and Planning
- Aesthetics*
- Population and Housing
- Cultural Resources*
- Tribal Cultural Resources
- Transportation and Circulation
- Noise
- Air Quality*
- Greenhouse Gas Emissions
- Wind
- Shadow
- Recreation
- Utilities and Service Systems
- Public Services
- Biological Resources
- Geology and Soils
- Hydrology and Water Quality
- Hazards and Hazardous Materials
- Mineral Resources
- Energy
- Agriculture and Forestry Resources
- Wildfire

Finding

This project may have a significant effect on the environment, and an EIR will be prepared. This determination is based on the criteria of the state CEQA Guidelines, sections 15063 (Initial Study), 15064 (Determining Significant Effect), and 15065 (Mandatory Findings of Significance). The purpose of the EIR is to provide information about potential significant physical environmental impacts of the proposed project, and identify possible ways to minimize any significant impacts. The EIR also describes and analyzes possible alternatives to the proposed project. The EIR will also discuss other topics required by CEQA, including significant unavoidable impacts and significant irreversible impacts, and known controversy associated with the project and its environmental effects, and issues to be resolved by decision-makers.

Preparation of an NOP or EIR does not indicate a decision by the City and County of San Francisco to approve or disapprove a proposed project. However, prior to making any such decision, the decision-makers must review and consider the information contained in the EIR.

Public Scoping Comments

The department welcomes your comments concerning potential environmental effects of this project. Written comments will be accepted until **5 p.m. on December 1, 2023**. Written comments should be sent to Jeanie Poling, San Francisco Planning Department, 49 South Van Ness Avenue, Suite 1400, San Francisco, CA 94103, or emailed to jeanie.poling@sfgov.org and should reference the project title and case number on the front of this notice.

State Agencies: If you work for a responsible state agency, we need to know the views of your agency regarding the scope and content of the environmental information that are germane to your agency's statutory responsibilities in connection with the proposed project. Your agency may need to use the EIR when considering a permit or other approval for this project. Please include the name of a contact person in our agency. If you have questions concerning the environmental review of the proposed project, please contact Jeanie Poling at 628-652-7559 or jeanie.poling@sfgov.org.

Members of the public are not required to provide personal identifying information when they communicate with the planning commission or the department. All written or verbal communications, including submitted personal contact information, may be made available to the public for inspection and copying on request, and may appear on the department's website or in other public documents.

Recipients of this notice are encouraged to pass on this information to others who may have an interest in the project.

Dewyani Jain for Lisa Gibson

November 1, 2023

By Lisa Gibson
Environmental Review Officer

Date

cc: Catherine Stefani, District 2 Supervisor

FIGURE 1

N

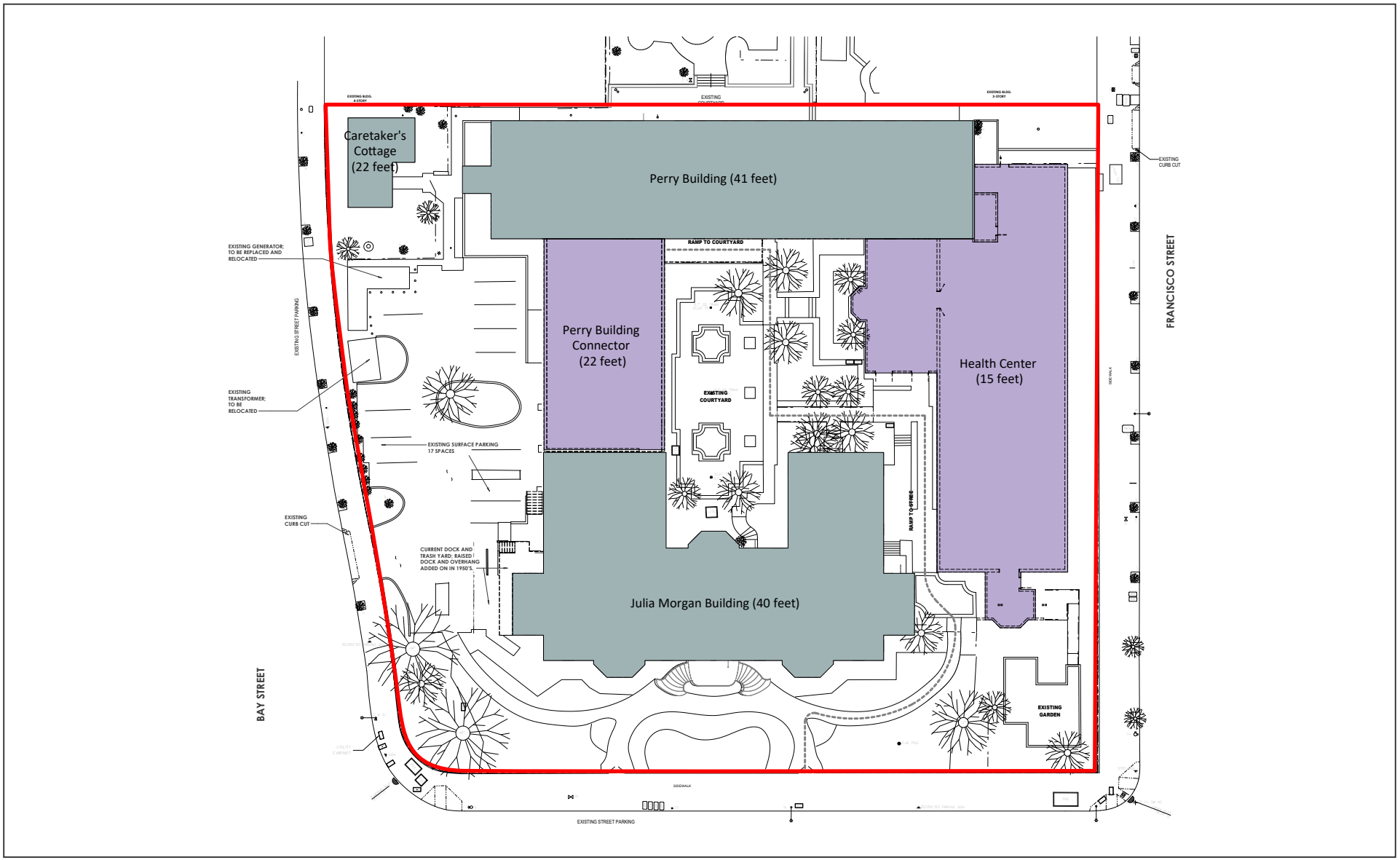
0 1000 2000
FEET

SOURCE: ESRI Street Map, 2023

J:\20230999\G\Project_Location.ai (10/24/2023)

3400 Laguna Street Project

Project Location



LEGEND

- Project Area
- Area of Modified Landscape
- Building to be Demolished
- Building to Remain Interior Renovation Only
- Accessible Path of Travel

FIGURE 2

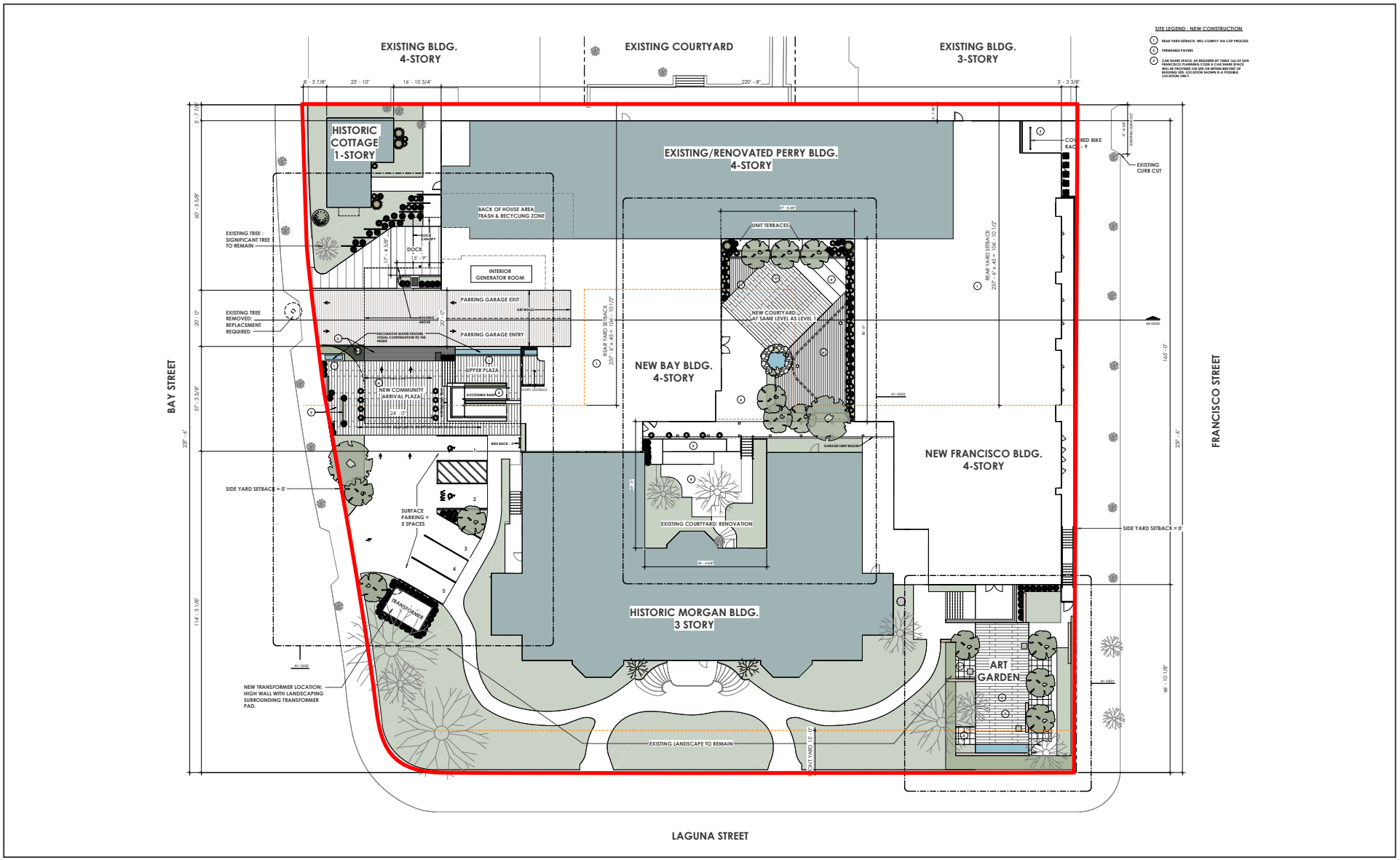
NO SCALE

SOURCE: HKS, Inc.

3400 Laguna Street Project

Existing Site Plan

J:\20230999\G\Existing_Site_Plan.ai (10/24/2023)



LEGEND

Project Area

FIGURE 3

0 25 50

FEET

SOURCE: HKS, Inc.

3400 Laguna Street Project

Proposed Site Plan

J:\20230999\G\Proposed_Site_Plan.ai (10/26/2023)

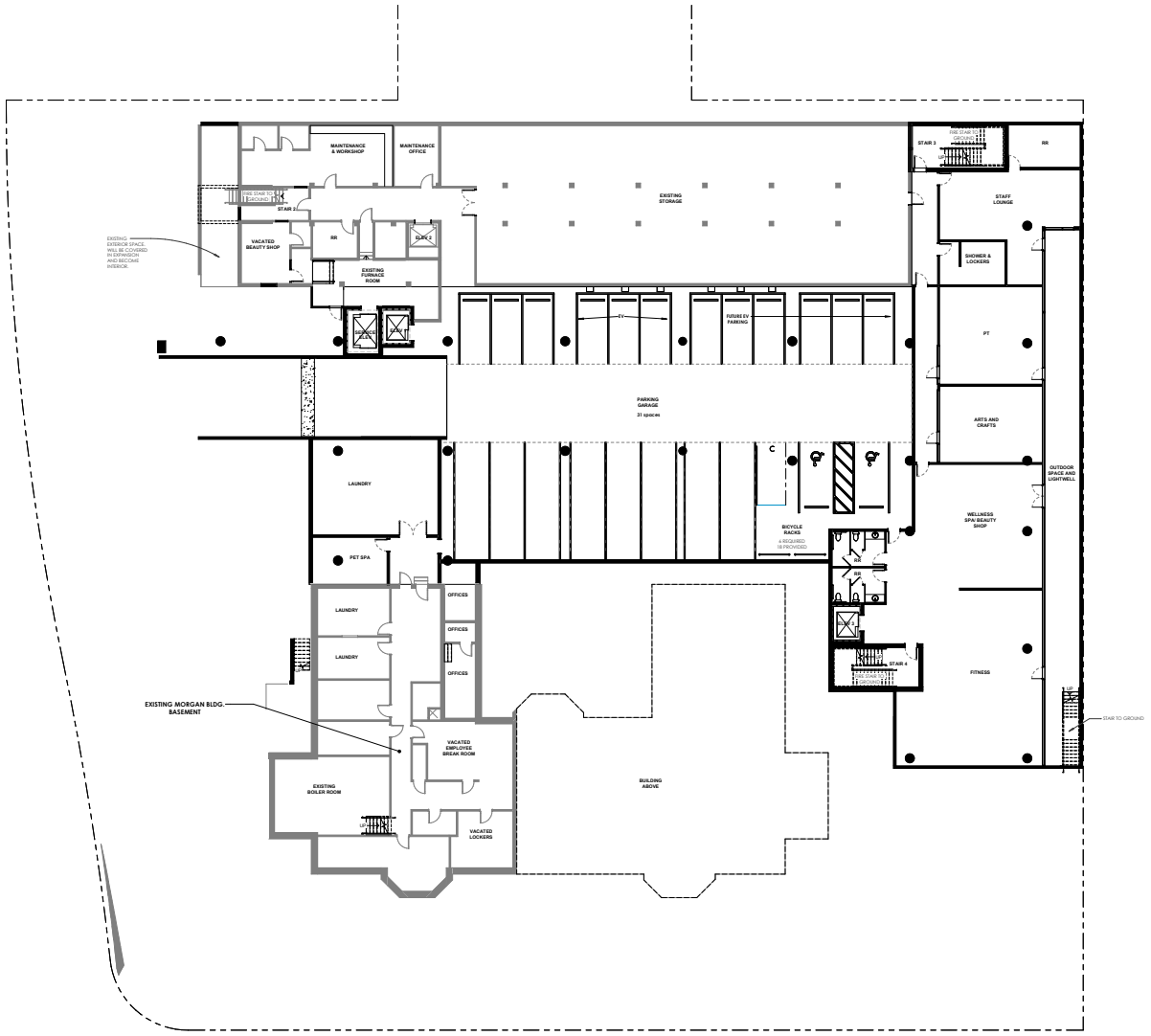


FIGURE 4

NO SCALE

SOURCE: HKS, Inc.

3400 Laguna Street Project

Proposed Floor Plan – Basement

J:\20230999\G\Proposed_Floor_Plan_Basement.ai (10/26/2023)

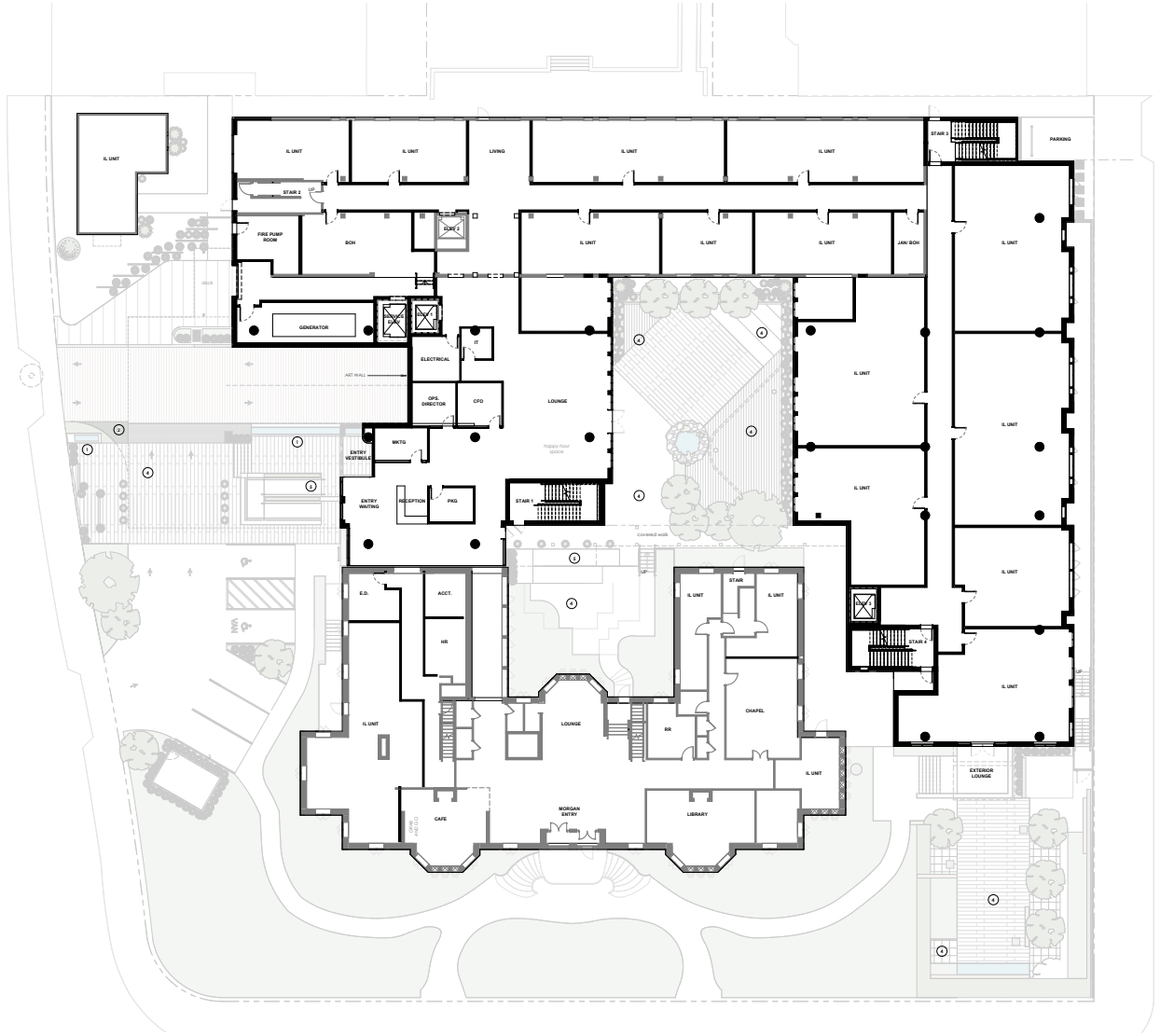


FIGURE 5

NO SCALE

SOURCE: HKS, Inc.

3400 Laguna Street Project

Proposed Floor Plan – Level 1

J:\20230999\G\Proposed_Floor_Plan_Level-1.ai (10/26/2023)

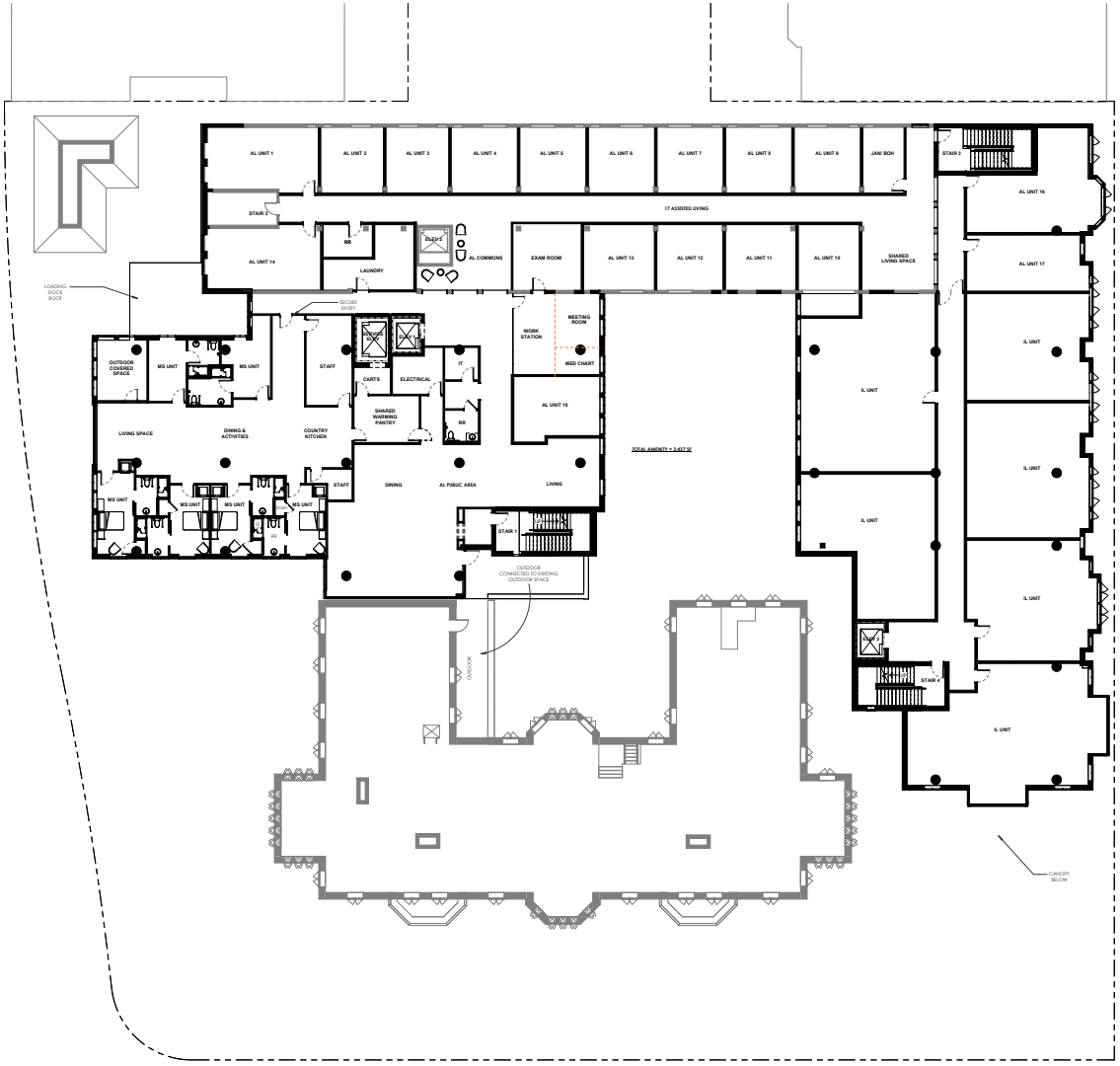


FIGURE 6

NO SCALE

SOURCE: HKS, Inc.

J:\20230999\G\Proposed_Rep_Upper_Floor_Plans_Level2.ai (10/26/2023)

3400 Laguna Street Project

Representative Upper Floor Plan – Level 2

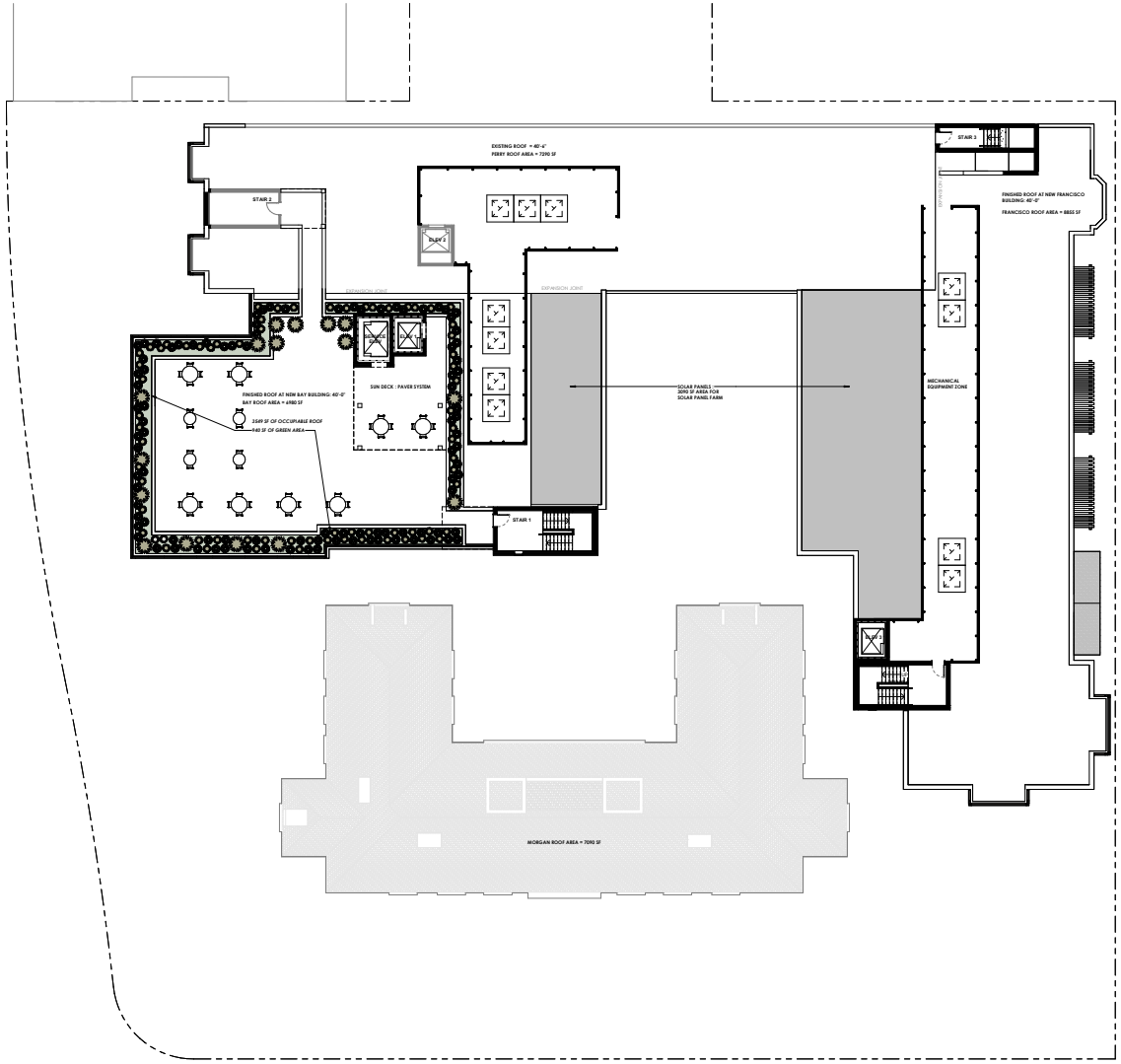


FIGURE 7

NO SCALE

SOURCE: HKS, Inc.

J:\20230999\G\Proposed_Roof_Plan.ai (10/26/2023)

3400 Laguna Street Project

Proposed Roof Level Plan

FIGURE 8

0 15 30
FEET

SOURCE: HKS, Inc.

3400 Laguna Street Project
Proposed Elevations – North and South

J:\20230999\G\Proposed_Elevations_N-S.ai (10/26/2023)

East Elevation

West Elevation

FIGURE 9

0 17.5 35
FEET

SOURCE: HKS, Inc.

3400 Laguna Street Project
Proposed Elevations – East and West

J:\20230999\G\Proposed_Elevations_E-W.ai (10/26/2023)

From: Larry Albukerk
To: Poling, Jeanie (CPC)
Subject: 3400 Laguna CEQA notice
Date: Sunday, November 26, 2023 12:53:41 PM
Attachments: 3400 Laguna.pdf

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

I am writing in response to the CEQA notification due December 1, 2023 about Heritage on the Marina's proposed project at 3400 Laguna Street.

I have lived in San Francisco for 30 years and this corner of San Francisco with access to Moscone Park and Ft. Mason is one of the main reasons I chose to stay in the City and raise my kids here. When my kids were younger I would take them to the playground at Chestnut and Laguna, as they got older we would play on the baseball fields, kick soccer balls and play tennis and basketball across from the Julia Morgan building that is the heart of the Heritage. One of the highlights to me was enjoying the beautiful setting and architecture of the Julia Morgan building along with the complimentary buildings on Francisco street with the iron balconies. I loved the area so much that I eventually bought a home nearby. When my parents, family or friends would visit from out of town they too were in awe of the area surrounded by its crown jewel, the Julia Morgan building, and as a resident of the City this gives me great pride.

Over the years I developed a friendship with the former CEO of the Heritage and he told me they were incredibly lucky because they owned land on Cathedral Hill that was in a dispute and they eventually settled for tens of millions of dollars. This settlement allowed them to accept residents that were good for the community, regardless of ability to pay, he was proud that this was part of his mission as the CEO of a not for profit organization. The Heritage has always been a good neighbor despite being an institution. Now there is a new CEO and the Heritage's focus is all about making money. She claims it is necessary to 'remain in business', which seems crazy because the Heritage has about $100 million of assets, mostly liquid ($80mm of cash, bonds, stocks) and only $9 million of liabilities according to last year's audited financial statement. I have attended two meetings with the Heritage. The first via Zoom with the CEO and her team in September 2022 at which time the Heritage took the position it had the 'right' to build the maximum density without regard to vociferous concerns. The second time in April 2023 at which the Heritage admitted that it does not have any "right to build" but needs the waivers and variances and asked for our feedback. We gave our feedback, and despite offering to follow up, the Heritage has completely ignored the neighbors – I suspect on the advice of its vast team of professional and expensive expeditors, law firms, construction consultants, and other experts.

I mention the prior to give context. My environmental concerns are straight forward.

1. The part of the Marina occupied by the Heritage is zoned residential and the Heritage is

permitted to operate by pre-existing exemption and variances. Granting a variance to build an additional 58,000 square feet will **completely change the scale, scope and character of the neighborhood**. It will truly become Institutional, no longer Residential as it is currently zoned.

2. The new buildings will conceal the Julia Morgan Building both at ground level and higher up because a 4+ story rectangle will not allow any view of the Julia Morgan building where there was previously a view. I suspect this is why the health care center building was only allowed to be one story high. The Perry building was built before the health care center and it was originally to be 3 stories then it was increased to 4 stories, so why would a building built after the Perry building only be 1 story? It seems likely that this was part of a Notice of Special Restriction No. 4506 (NSR) issued to the Heritage.
3. Part of what makes the Julia Morgan building so special is its integration with the gardens and open space. It was part of the architecture. This was a signature of Julia Morgan's designs. The current proposal would severely diminish the green space.
4. I am a big proponent of more housing in this City. However, adding only 23 super luxury units across nearly 60,000 new square feet does not accomplish that goal, especially because those units will only be occupied by one or two residents. Further, these units will not be accessible to everyone - no families, no working people and certainly no affordable housing; in fact, many of the Heritage residents are recruited from outside of San Francisco. If this project were truly residential, the proposed property would easily house over 300 people; as it stands, it will probably be under 100 residents because it is a very high end luxury retirement community with excessive amenities – supported with tax payer dollars as it is a 501c3 (not for profit organization).
5. There will be a massive excavation. I do not see how it is possible to contain the dust from the digging. Considering this is a Air Pollutant Exposure Zone the construction will put the neighborhood, especially children and the elderly, at risk. In particular the elderly that already live at the Heritage. My youngest child is not yet a teenager and I worry for his health both physically and mentally after spending the last 3 years wearing Covid masks. In addition to the dozens of young children living in direct proximity to the project, there are hundreds of kids that visit the 2 playgrounds that are across the street and all of the people that use the fields and courts of Moscone and the thousands of families that enjoy Ft. Mason. Lastly, nearly everyone in the Marina relies on opening windows for fresh air, will this become hazardous? This may be an unmitigated environmental disaster; I hope we do not have to find out.
6. See the attached picture, across the street from 3400 Laguna was a large gas tank with toxic chemicals and other pollutants. There would need to be a massive amount of excavation and testing to convince any reasonable person that the gas tanks didn't pollute the ground in the immediate proximity. Digging up the dirt and having the dust blow onto the parks, houses, playground etc… would be a disaster.
7. With an additional 60,000 square feet, the 2.5+ years of construction will create a nightmare with blocked parking zones for the people that use the parks, the workers and the neighbors. And this will be an ongoing issue post construction with all the extra employees at an institution that will roughly double in size. The parking in the neighborhood is already tight and Heritage workers routinely block neighborhood driveways, I worry that blocking driveways will reach an unsustainable level.

8. Noise pollution at shift changes is currently a problem for the neighborhood. We are constantly woken up by workers during the shift change. People picking up the workers late at night wait in their cars sometimes with music blaring, talking loudly, etc.… We have a similar problem with trash being dumped in front of our homes and cigarette butts on our doorsteps. Doubling the size of the institution will only lead to more trash and more noise.
9. Traffic at Bay and Laguna will be horrendous and that will flow over to the neighborhood on Laguna, Octavia and Francisco streets. Traffic on residential streets creates a dangerous situation for kids and the elderly and there are plenty of both in the immediate neighborhood.

Please also keep in mind that the Heritage is a not for profit entity which means that it is tax payer supported and the HERITAGE DOES **NOT** PAY TAXES. As a local, Federal and California tax payer I am appalled that they are building this project with the end goal to make money. I have no idea why they even have tax exempt status, who are they serving? Extremely wealthy retirees? I am happy to discuss any of my concerns regarding the environmental impact of this proposal in person or by phone.

Regards,
Larry

san fra

FRIENDS SCHOOL

Tania Albukerk
1547 Francisco St.
San Francisco, CA 94123

Retail

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Jeanie Poling
Senior Environmental Planner
San Francisco Planning
49 South Van Ness Avenue
Suite 1400
San Francisco, CA 94103

December 1, 2023

Jeanie Poling
Senior Environmental Planner
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103
Jeanie.poling@sfgov.org

Re:	Comments on Potential Environmental Effects of Demolition of Existing Buildings and Significant New Construction
Case No:	2022-009819ENV
Project Address:	3400 Laguna Street (Heritage on the Marina)
Block/Lot:	0471/003
Zoning:	RM-1 Residential-Mixed, Low Density Use District

Dear Ms. Poling,

Enclosed a copy of the letter that I emailed to you yesterday in response to the Notification of Preparation of an Environmental Impact Report, dated November 1, 2023, with respect to the Case No. and Project Address referenced above.

As I mentioned in my email, I reference several publicly available documents in my letter but did not include copies. I am happy to provide you with links to or hard copies of these materials. You can reach me at talbukerk@gmail.com.

Regards,

Tania Albukerk

November 30, 2023

Jeanie Poling
Senior Environmental Planner
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103
Jeanie.poling@sfgov.org

Jeffrey Horn
Senior Planner
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103
Jeffrey.horn@sfgov.org

Re:	Comments on Potential Environmental Effects of Demolition of Existing Buildings and Significant New Construction
Case No:	2022-009819ENV
Project Address:	3400 Laguna Street (Heritage on the Marina)
Block/Lot:	0471/003
Zoning:	RM-1 Residential-Mixed, Low Density Use District

Dear Ms. Poling and Mr. Horn,

I am writing in response to the *Notification of Preparation of an Environmental Impact Report* (the "***Notice***"), dated November 1, 2023, with respect to Case Number and Project Address referenced above.

The project sponsor is Heritage on the Marina ("***Heritage***"), which occupies a large parcel of land at 3400 Laguna Street built around a century-old, architecturally significant Julia Morgan designed mansion with a grand entrance on Laguna Street and nestled in a residential Marina neighborhood with beautiful, primarily 2-family homes on its south side (Francisco Street) and east side (Octavia Street), Moscone Field on its west side (Laguna Street) and Fort Mason to its north (Bay Street). Heritage is seeking permission for a massive building project that will bury its historic mansion within nearly 60,000 square feet of new construction comprised of two new 4-story plus buildings and will force up to 4 years of construction on its neighbors and residents.

The environmental effects of this project are so severe that it should not be approved.

The Notice states that only three topics are anticipated to be included for full analysis in the EIR: Aesthetics; Cultural Resources; and Air Quality. I believe that this is much too narrow and strongly urge SF Planning to also include a full analysis of other topics subject to CEQA, including but not limited to: Transportation and Circulation; Noise; Shadow; Recreation; Geology and Soils; Land Use and Planning.

Before discussing the CEQA specific categories, it is necessary to examine why Heritage's proposal should not even be considered because it violates the conditional use authorizations under which it has been allowed to operate. Moreover, the Heritage applied for a new conditional use authorization on February 22, 2023, in which it makes numerous false assertions regarding its project, including but not limited to the environmental impacts and the preservation of historic buildings. Therefore, I am submitting this letter to the SF Planning Assigned Planner for the conditional use authorization as well as the Senior Environmental Planner as issues raised herein with respect to CEQA also apply to the conditional use authorization application.

1. **The Project Violates Heritage's Conditional Use Authorizations**. Heritage, a residential care facility for the elderly, is not allowed under the zoning rules for the East Marina neighborhood in which it is located. Per the Notice, the Project Address is zoned as RM-1, a Residential-Mixed, Low Density Use District. Heritage can operate in this location only because it was grandfathered in when San Francisco rezoned, and all subsequent projects have been subject to conditional use authorizations because of the inherent problems caused by having a large commercial enterprise in a residential location.

   Prior conditional use authorizations have explicitly required that new proposed additions be limited to one-story in height. Specifically, the City Planning Commission Resolution No. 5512, issued April 16, 1962, which authorized the existing one-story Health Center, explicitly states its approval is limited to "providing for a one-story building only." The Health Center is the building that the Heritage is proposing to replace with the 4-story Francisco Building, clearly in violation of the conditional use permit under which the Health Center was permitted. This resolution also references the City Planning Commission approval of Proposal No. Z56.5 in 1956 changing the zoning classification of the Heritage's site from "Second Residential" to "Commercial" so as "to authorize a previous enlargement of the present use, which acquired the status of an authorized conditional use with the reclassification of said property from Commercial to R-4 on May 2, 1960."

   The project proposed by Heritage includes two brand-new four-story buildings, which will have an actual height of over 50 feet when roof-top appurtenances are constructed. Heritage misleads SF Planning when it claims to have five existing buildings. As prior filings by Heritage admit, it has three operating buildings.[1] Page & Turnball, Inc.'s *3400 Laguna Street Historic Resource Evaluation* ("HRE") (issued August 28, 2015[2]) confirm this when it describes the site as "composed of three connected buildings and three landscape areas" (page 2) (note: *also see* page 18 detailing how the buildings are connected). In the Notice, SF Planning repeats Heritage's false claim that the two structures that connect to its existing buildings are "separate" buildings; this is a blatant attempt to appear to be doing fewer changes than it intends.

   Allowing this project would violate the existing conditional use authorizations under which Heritage is allowed to operate. SF Planning should not allow an unscrupulous developer to ignore conditional use restrictions upon which prior construction was permitted because

[1] See *Preliminary Project Assessment Application* submitted by Heritage to SF Planning on September 20, 2022.
[2] Revised and updated February 16, 2023, but without material changes to relevant issues discussed herein.

doing so makes the restrictions meaningless and undermines the integrity of the SF Planning Code and oversight process.

2. **Heritage's Proposal Would Bury a Julia Morgan Masterpiece in a Modern Fortress in Violation of CEQA.** Julia Morgan, a world-renowned California architect, designed the mansion where Heritage is located. The surrounding original landscape of over a half-acre of gardens was designed by John McClaren, the most eminent horticulturist of his era and the designer and superintendent of Golden Gate Park. The mansion, completed in 1925, has been the institution's identity for 98 years. Heritage lies when it claims this project won't alter the mansion; in its SF Planning Preliminary Project Assessment ("PPA") application, it states "*Improvements to the Morgan building facades will be purely restorative...*" Yet, it proposes to completely change the front entrance, currently on Laguna Street, and create a new one on Bay Street. Page & Turnball's HRE includes detailed descriptions of the iconic original entrance on Laguna Street, and in fact, makes clear that the entire western façade of the building is designed around this entrance. (pages 5-8). The Heritage cynically calls this "*repositioning*" their entrance. In what world does abandoning Julia Morgan's design of the entrance to the mansion, fronted by John McClaren's front lawn design, arguably its most iconic feature, to create a brand-new entrance on Bay Street, count as "restorative?" As SF Planning's own documents state, the existing "porch" on Bay Street that Heritage wants to use as its new front entrance was itself an alteration to Julia Morgan's design,[3] and likely wouldn't be allowed today.

   Even more disturbing, the proposal would create a fortress of four-story plus modern buildings on three sides of the mansion (to the south, east and north). These new modern buildings will overwhelm and detract from the Morgan mansion. In fact, the Morgan mansion will become merely a small, subordinate-seeming building. The new buildings will be much taller and larger than the Morgan mansion, will physically shadow it and will obscure nearly all of the Morgan mansion from public view. The flat roofs will look odd and angular next to the sloped gables of the Morgan mansion. The Morgan mansion and its surrounding landscape are important cultural resources, and the proposed project will overpower them and negatively impact their aesthetic. The proposal will cause a substantial adverse change in the significance of a historical resource.

   As the preeminent historical architectural preservation society in San Francisco, SF Heritage (no relation to Heritage on the Marina), noted in its April 4, 2023, letter to Page & Turnball, consultants on this project, *"The new buildings appear out of scale with the Morgan building...The new structures will be connected visually to neighboring masonry and wood structures on Bay and Francisco Streets. The new Bay Building and Francisco Building also appear out of scale with the surrounding neighborhood. The additional 58,000 square feet and height of the proposed structures could have a significant impact on the overall environment, especially on Francisco Street, which includes five small-scale 1920s-era structures."*

   The Notice states the proposed new Bay Building will be 31,300 gross square feet plus 3,549 square feet of rooftop open space and the proposed new Francisco Building will be

[3] See page 6, *San Francisco Planning Department Report for 3400 Laguna*, dated 5/18/2016.

47,100 gross square feet. Together, they will nearly double the existing square footage to 142,000 sf from about 83,000 sf. The entire parcel was designed to showcase the Morgan Building, but it will be both literally and figuratively overshadowed by these new buildings.

Heritage is clearly sidestepping regulations intended to preserve historic structures in order justify constructing new buildings that dwarf the historic mansion and conflict with the surrounding neighborhood. ***Therefore, Heritage's project violates CEQA because it will cause a substantial adverse change in the significance of a historical resource as defined in Section 15064.5.***

3. **Heritage is making a mockery of the SF Planning Department.** SF Planning's mission is to preserve the "unique heritage" of our city, which it does by enforcing rules and regulations. Decades ago (in 1957), Heritage, relying on conditional use permits, built its large 4-story "Perry Building" at the rear of its parcel (closest to Octavia Street). The Perry Building was only allowed to be built *because* it was at the rear. SF Planning recognizes the Laguna Street entrance as the "primary pedestrian entrance to the site" (*see* Notice). Now, Heritage proposes *changing* the orientation of its lot and moving its front entrance from Laguna Street to Bay Street. Not only does this violate the Morgan mansion's design and aesthetic, but it is a blatant attempt to end-run the SF Planning Department rules. Heritage wants to do this so it can treat Francisco Street as the new "rear" of its lot and therefore rely on much looser rules about construction on land at the back of property lots to build a new building to its property line at the sidewalk with no setbacks. Heritage should not be permitted to arbitrarily change its property orientation to infill its parcel by taking advantage of more lax rules regarding the rear of parcels. ***Allowing the project to proceed would violate CEQA by substantially degrading the existing visual character and quality of the site and its surroundings.***

4. **Heritage Project is "Consuming" the Neighborhood in Violation of Public Policy.** Businesses, like the Heritage, that rely on conditional use authorizations and variances, may not be materially detrimental or injurious to other properties in the neighborhood and must be necessary, desirable, and compatible with the existing neighborhood. The neighborhood consists primarily of typical Marina two-unit buildings and small apartment buildings. Heritage proposes to add nearly 60,000 square feet above-ground. To put this in perspective, this is equivalent to smooshing onto Heritage's one parcel of land the collective square footage of all ten of the buildings located across from Heritage on Francisco Street between Laguna and Octavia Streets. Heritage has also been secretly buying other buildings on its block – in direct contravention of public policy that opposes "institutional creep" (i.e., takeovers of residential areas by businesses). Heritage already owns 20% of the block (3 buildings out of 15) ***not*** including the buildings on its original parcel of land at 3400 Laguna Street; if you add the buildings located at 3400 Laguna to this total, the Heritage owns 40% of the block (the Heritage claims there are 5 buildings at 3400 Laguna so a total of 8 out of 20 buildings). ***Allowing Heritage to build this project violates CEQA because the Heritage is flouting our land use and planning laws and regulations.***

5. **Heritage Project is "Detrimental and Injurious" and Triggers Numerous Issues that are Violative of CEQA.** The detrimental and injurious effects of the proposed project are extensive and unacceptable.

   a. Shadowing. Heritage's property is adjacent to Moscone Field and Fort Mason, two of the most iconic parks in San Francisco with heavily used recreational areas. Heritage's project will substantially shadow both of those sites. Heritage has purposefully evaded providing elevations or full shadow studies (despite PPA requirements to do so) but they did file "preliminary shadow fan" studies with SF Planning. The shadow fans show significant portions of both Moscone Field and Fort Mason as well as most of homes along the south side of Francisco Street as well as some homes on Bay Street to be drastically impacted. The elevator and utility penthouses will exceed 50' feet in height for its two new buildings. The shadows are a direct result of this overreach in height, which is unusually – and inappropriately - tall for the neighborhood. Equally as disturbing, the new buildings will also significantly shadow and block light into the Morgan mansion and the Perry Building. ***CEQA protection against such shadowing and deprivation of light must be enforced.***

   b. Noise. Heritage intends to undertake construction from 7 am to 8 pm and unrealistically states that construction will take 29 months. Common experience makes clear that most construction projects take at least 50% longer than preliminary estimates. This means that Heritage intends to subject its elderly and frail residents as well as its neighbors, many of whom are young children, retirees and people working from home, to the incessant, invasive and unhealthy amounts of noise of construction for at least 55 hours a week for up to four years. This is a quiet, residential neighborhood. ***Therefore, this project violates CEQA as it will "cause a substantial temporary or periodic increase in ambient noise levels in the project vicinity above levels existing without the project."***

   c. Excavation. The excavation is substantial, with project construction requiring the removal of approximately 15,222 cubic yards of soil to a depth of 15 feet below grade.[4] The surface area of the excavation is over 27,000 square feet, which is equal to 0.62 acres. This excavation is occurring right next to the Morgan building and may potentially undermine its century-old foundation. In addition, the consequences for surrounding properties of such an extensive subterranean disturbance is frightening. As we all know, the soil under the Morgan building and its surrounding Marina neighborhood buildings is a mix of soil and sand and is naturally porous and prone to subsidence. Furthermore, the PPA notes that the Heritage occupies an "archeologically significant area" and, as such, great care must be taken with respect to any sub-surface disturbances of potential tribal cultural resources, among other issues. ***CEQA requires a rigorous review and***

[4] See *Preliminary Environmental Review Checklist* filed by the Heritage with SF Planning. I also note that the Notice states only 9,060 cubic yards of soil would be excavated. I am curious about the source of this substantial difference in estimated excavation given that the size/number of parking spaces for the underground garage is unchanged between these two documents.

mitigation plan to take account for potential excavation-related impacts on ground soil and subsurface areas.

d. Air Quality. The project site is in an Air Pollutant Exposure Zone, in an area with elevated pollutant concentrations, and is subject to Health Code Article 38 ("Article 38"). Heritage is a "sensitive use building," as defined in the applicable section of the Ordinance and must comply with Article 38. An Environmental Evaluation Application should be required for this project because it will generate air pollutants during excavation. Although the site itself is not known or identified as a hazardous waste site, there is a site nearby at 1598 Bay Street from which toxins may have migrated. The project would be a major alteration to a sensitive use location (i.e., retirement home) and therefore substantial mitigations are needed for the excavation site. ***As stated in the Notice, Air Quality is one item that SF Planning agrees needs a full and careful analysis.***

e. Parking and Traffic. The project includes 38 new parking spaces and a new curb. This will add new traffic and parking woes to the neighborhood. Additionally, loading docks on residential streets are also bound to have negative impacts. Equally as offensive, Heritage proposes taking for its private use land that is publicly-owned as it wants to build a private driveway by taking "approximately 15 feet of street parking along Bay Street" and it wants to "add 12 new bicycle parking spaces in the public right-of-way [on Bay Street and Francisco Street]."[5] As a taxpayer, I object to the notion of gifting Heritage any public property. Furthermore, I expect SF Planning to comply with its own rules and regulations. On October 25, 2022, SF Planning issued a Transportation Study Determination Request (TSDR) with respect to this project that violates SF Planning's own requirements by concluding that a "transportation study is not likely required," when actually it is mandatory that two key actions occur: the "Environmental Planner…coordinate with the Current Planner to review the project with the Street Design Advisory Team (SDAT) in accordance with the Better Streets Plan per Planning Code section 138.1" and that the "Urban Design Advisory Team (UDAT) Transportation Planner Liaison…review the project at a UDAT meeting." These actions are mandatory under the terms of the TSDR because the Heritage project meets both the SDAT and UDAT Screening Criteria that trigger such actions.[6]

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[5] See SF Planning, *Public Notice: Notice of Preparation of an Environmental Impact Report*, dated November 1, 2023, for 3400 Laguna Street

[6] SF Planning, Transportation Study Determination Request, prepared by Will Hughen, dated October 25, 2022, pages 3-4, listing all the SDAT Screening Criteria - "on a lot greater than one-half acre; includes more than 50,000 gross square feet (per PC sec. 102) of new construction; contains 150 feet (or more) of lot frontage on one or more public rights-of-way; frontage encompasses the entire block face between the nearest two intersections with any other publicly accessible right-of-way; new construction of 10 or more dwelling units; new construction of 10,000 gross square feet or greater of non-residential space; addition of 20% or more of gross floor area to existing building" - and UDAT Screening Criteria - "development proposes new porte cochere or other type of off-street sidewalk level vehicular driveway, typically used for passenger loading/unloading, between the building and the public right-of-way; development is proposing to retain or alter an existing curb cut, but with increased vehicular activity; development is proposing a new curb cut within 15 feet of another curb cut, greater than 15 feet in width for dual-lane vehicular parking garages, greater than 24 feet in width for dual-lane large truck loading bays, a combined parking/loading curb

Clearly, CEQA concerns regarding transportation and circulation must be addressed, and before they can be addressed, SF Planning must follow its own TSDR guidelines for the required steps with respect to its SDAT and UDAT procedures and meetings.

f. Aesthetics - Loss of Open Space and Landscaping. The Heritage's grounds were carefully designed by McClaren and Morgan with beautiful landscaping and careful siting of the mansion to preserve open space and views for both the residents of Heritage and the surrounding community. This is integral to Morgan's design; you can't separate her mansion from its surroundings. As the National Trust for Historic Preservation said of Morgan, "She designed around a natural landscape, leaving trees in place when possible and letting views help determine building placement…'The brilliance of Julia Morgan is that the buildings feel natural and fitting with the environment,' says Lada Kocherovsky of Page & Turnbull...'She maintained the energy and serene character of the site. The landscape feels untouched'."[7] The Heritage's plans eviscerate the remaining original landscaping and siting and leave nothing but stark modern façades facing the residential block on Francisco and the Fort Mason Park on Bay Street. Beautiful landscaping and open spaces are as much as community resource as a private pleasure. McClaren's original gardens – which extended over a half of an acre – should have been preserved with the same care as San Francisco lavishes on his Golden Gate Park. The very least we can do now is preserve what is left. ***As such, Heritage's plans violate CEQA because it will have a substantial adverse effect on a scenic vista and substantially degrade the existing visual character and quality of the site and its surroundings.***

6. **Heritage is a Super Luxury Residence and Will Not Provide Any Affordable Housing.** Nearly a century ago, the Morgan mansion was built by a non-profit organization, the San Francisco Ladies' Protection and Relief Society (the "***Society***"), as a home "to render protection and assistance to strangers, to sick and dependent Women and Children." Heritage is still run by the Society, but it has abandoned its original non-profit mission by clearly shifting to serving the Bay Area's wealthiest residents. It does not provide any affordable housing. Asked why Heritage was seeking this expansion, its CEO, Mary Linde, said flatly, "To increase our profits." Heritage is already the most expensive assisted living facility in San Francisco - and likely the wealthiest with nearly $100 million in assets, including over $80 million in cash, bonds and marketable securities[8] - and yet it is greedy for more. If anything, Heritage is making San Francisco housing less affordable for seniors. Instead of helping to increase housing options in San Francisco, Heritage has been quietly combining existing studio units into 1- and 2-bedroom suites to raise prices; it has taken

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cut greater than 27 feet, or a total of more than 30 feet of curb cuts (multiple driveways)" - triggered by Heritage's project.

[7] "Ahead of Her Time: California Icon Julia Morgan," by Meghan Drueding, Preservation Magazine, Summer 2015. https://savingplaces.org/stories/ahead-of-her-time-julia-morgan

[8] 2021 Form 990PF, filed by San Francisco Ladies' Protection and Relief Society. https://projects.propublica.org/nonprofits/organizations/941156611/202203219349100510/full

out dozens of permits in recent years to remodel, reconfigure and mostly merge its units, creating ever larger and more luxurious "suites." Currently, a one-bedroom requires an upfront payment of at least $550,000 plus $8,000/month! The resident does not own anything, the upfront payment is kept by the Heritage and upon the passing (or moving out) of the resident, Heritage takes a new upfront payment from the next resident at a higher price. Now, Heritage is asking for this huge expansion to build even larger, fancier and more expensive housing. Its' plan would create 23 new units over its nearly 60,000 square feet in new construction, which is equivalent to 2,600 square foot units for one or two people. Make no mistake – this is about profits and not people. ***As such, the Heritage project is not consistent with CEQA requirements – or generally City of San Francisco building priorities – with respect to land use and planning.***

The project is inconsistent with the Morgan mansion's history, its surrounding and its zoning as well as the Society's mission. It will dwarf everything around it. It is too big, too monolithic and demonstrates complete disregard for its neighbors and neighborhood. SF Planning must reject Heritage's project as it violates its conditional use permits and authorization and would turn the East Marina residential neighborhood into something that looks like an outpost of the UCSF Mission Bay health care industrial complex.

This is truly a David versus Goliath situation, and we need SF Planning to speak for and protect the small property owners in the neighborhood. Heritage has already spent many millions of dollars and several years secretly planning this project and its payroll seemingly includes every big-name construction-related firm operating in the Bay Area, including Charles Pankow Builders Ltd., Page & Turnbull, Inc., Rockwood Pacific, Inc., GBA Inc., Gates+Associates, Kimley-Horn and Associates, Inc., HKS, Inc. and Perkins Coie LLP. The Heritage is so wealthy that it can easily afford all these expensive service providers. Unlike the Heritage, homeowners who will be most impacted – physically, economically and emotionally – by this construction do not have bottomless bank accounts to draw from and many have a significant part of their net worth or retirement savings tied up in our homes. Allowing the Heritage to build as it desires will result in robbing hard-working tax-paying San Franciscans of millions of dollars of home equity and shifting it directly to the Heritage, which is not only enormously rich but also, as a not-for-profit, does not pay any federal, state or local taxes, takes every advantage and gives back nothing.

Heritage's project is fatally flawed with numerous aspects that violate CEQA and SF Planning rules and regulations. I respectfully request that SF Planning demonstrate its independence from the grip of these repeat players in how it evaluates and responds to Heritage's massive, inappropriate and detrimental project request, and deny Heritage's application for a permit.

Sincerely,
Tania Albukerk

From: Eli Baker
To: Poling, Jeanie (CPC)
Subject: EIR impact 3400 Laguna Street
Date: Thursday, November 30, 2023 5:43:47 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

I am writing in regards to the Environmental Review notice for 3400 Laguna Street. Please find my concerns for environmental impact and CEQA below:

The sponsor has estimated this as a project that will last at least 6 years, this alone is a huge imposition on the environment, residential neighborhood, national and local parks directly adject to the project and the residents of the property.

1. Airborne concerns: This project has several demolition, excavation, and build components. Each phase presents airborne concerns of not only dust and debris, but airborne toxins such as asbestos, heavy metals/lead, concrete, and glass. This would impact the neighbors, children in the park/playground and the elderly residents.
2. Ground stability concerns: much of the Marina neighborhood is built on former landfill and at high risk for soil liquefaction. The liquefaction zone begins within 1.5 blocks of the project. Demolition and more importantly excavation and below grade construction could be destabilizing to the surrounding areas including neighborhood homes, apartment buildings, and lighting structures at Moscone Park. An added risk to an area already at seismic activity risk.
3. Noise pollution concerns: As noted above, this project is slated for a minimum of 6 years. The noise pollution for an extensive building among much smaller homes (141,579 sq ft vs. multi family neighborhood buildings of ~ 6500 sq ft) for such an extended duration could cause health problems not limited to anxiety, headaches, and hearing loss.
4. Traffic and parking concerns: Traffic patterns and loss of parking during this project present a concern in an already busy traffic and congested parking area. Bay Street is a very busy 4 lane through street. Laguna Street is busy with both vehicle and pedestrian traffic (requiring 4 crosswalks with flashing lights) and includes an active bus route. Francisco Street neighbors will be impacted with restricted access to garage and street use as large demolition and construction vehicles utilize the street. The parks add to the congestion as softball games, tennis, basketball and other recreational uses add dozens of people in the afternoon and evening hours during the week and hundreds of people congregate at Ft. Mason during the weekends, and sometimes thousands during the many special events.

Thank you for listening to the public and considering the impact of this massive project in a residential neighborhood.

Marina Neighbor,

Eli Baker

1435 Bay Street Homeowners Association
1435 Bay Street
San Francisco, CA 94123

27 November 2023

Jeanie Poling, Senior Environmental Planner
San Francisco Planning Department
49 South Van Ness Ave., Suite 1400
San Francisco, CA 94103

RE: 3400 Laguna Street (Case 2022-009819ENV)

Ms. Poling:

Our group represents the residents of 1435 Bay Street, immediately to the east of the proposed project at 3400 Laguna Street. Upon review of the design documents, we believe that the proposed project will have substantial impacts on the environment which must be considered in the preparation of the pending Environmental Impact Report.

Specifically, we believe the proposed project has the following impacts:

1. Aesthetics and Recreation:

   A. Aesthetics
      - The proposed project will have a substantial adverse effect on a scenic vista.
      - The proposed project will substantially degrade the existing visual character or quality of the site and its surroundings.
      - The proposed project may create a new source of substantial light or glare which would adversely affect day or nighttime views in the area.

   B. Recreation
      - The proposed project will negatively impact recreational facilities, which may have an adverse physical effect on the environment.

   The massing of the new building along Laguna Street creates a significant impact to that street, reducing the public's view as they approach Moscone Park from the east. The decreased massing of the current Heritage Facilities (stepping down in density along Francisco Street as it meets Laguna Street) provides an important transition from the dense built environment along Laguna Street toward Moscone Park. This decrease in density provides a transition between the built environment to the open public park.

   The new building element above the Community Entry Plaza significantly impacts an existing public view corridor from Moscone Park to the northeast toward Fort Mason. Both heavily used public parklands provide substantial relief for the public in the second most densely populated city in the United States.

   One of the new buildings creates new massing along Bay Street, which creates a prominent covered Porte Cochere at the new Community Entry Plaza. This new element creates new massing and uses out of character for the neighborhood. The covered Porte Cochere is a hotel-scaled element wholly out of character with the residential neighborhood. No building north of Lombard Street and west of Van Ness Avenue has anything like this commercial-scaled vehicular drop-off element.

The light required for the new main entry, new parking garage entry, and expanded loading dock will create new sources of light and glare.

2. Biological Resources:

- The proposed project may have a substantial adverse effect on a sensitive natural community identified in local or regional plans, policies, regulations or by the California Department of Fish and Game or US Fish and Wildlife Service.
- The proposed project may conflict with local policies or ordinances protecting biological resources, such as tree preservation policies or ordinances.

The proposed project includes removal of mature trees, which currently provide a buffer between the built environment and the Fort Mason parkland, and may host sensitive natural communities or habitat.

3. Greenhouse Gas Emissions, Hazards & Hazardous Materials, and Air Quality:

A. Greenhouse Gas Emissions
- The proposed project may generate greenhouse gas emissions, either directly or indirectly, that may have a significant impact on the environment.

B. Hazards & Hazardous Materials
- The proposed project may create a significant hazard to the public or the environment through reasonably foreseeable upset and accident conditions involving the release of hazardous materials into the environment.
- The proposed project may emit hazardous emissions or handle hazardous or acutely hazardous materials, substances, or waste within one-quarter mile of an existing school.

C. Air Quality
- The proposed project may violate air quality standards or contribute substantially to an existing or projected air quality violation.
- The proposed project may create objectionable odors affecting a substantial number of people.

The project includes the addition of an emergency power generator and loading dock adjacent to the residential building at 1435 Bay Street. The generator will produce petrochemical exhaust when in use, which may be frequent, as the facility is a 24-hour healthcare provider. In addition, Marina Middle School is 0.2 miles to the west, less than one-quarter of a mile away.

4. Transportation/Traffic

- The proposed project conflicts with an applicable plan, ordinance or policy establishing measures of effectiveness for the performance of the circulation system, taking into account all modes of transportation including mass transit and non-motorized travel and relevant components of the circulation system, including but not limited to intersections, streets, pedestrian and bicycle paths, and mass transit.
- The proposed project may conflict with adopted policies, plans, or programs regarding public transit, bicycle, or pedestrian facilities, or otherwise decrease the performance or safety of such facilities.
- The proposed project will substantially increase hazards due to a design feature (main entry drive too close to a very busy signaled intersection).

The proposed project includes a new commercial drop-off and loading dock along Bay Street. The City of San Francisco prohibits commercial vehicles weighing more than 3 tons from operating on Bay Street

between Laguna Street and Franklin Street. (see attachment). This ordinance effectively prohibits any vehicle heavier than a passenger car or light truck from driving on Bay Street. The same restriction exists on Francisco Street between Laguna and Franklin (more information can be found at www.sfmta.com/commercial-vehicles). Consequently, the proposed Community Entry Plaza cannot be accessed from Bay Street, and therefore is not possible.

In addition, the proposed project includes the addition of a second curb cut along Bay Street. Bay Street is a significant thoroughfare, with heavy traffic particularly during commute hours, as it is a major route for traffic coming from and going to the Golden Gate Bridge. The existing curb cut closer to Laguna Street, now used infrequently for surface parking, would be used as the primary vehicular entry to the Heritage property. This increased traffic will be entering the new vehicular entry very close to the corner of Laguna Street, causing a congested traffic situation near an extremely busy signaled intersection at the corner of Laguna and Bay.

The new underground parking garage, loading dock, and Community Entry Plaza will significantly increase traffic, creating a substantial impact. The intersection of Bay and Laguna streets includes a Muni bus line, major east-west dedicated bicycle route, and busy pedestrian pathways. Adding this traffic activity to an often very congested Bay Street (with no new left turn lanes from the westbound lanes of Bay Street) will exacerbate already challenging conditions.

5. Cultural Resources:
   - The proposed project will cause a substantial adverse change in the significance of a historical resource.

   The new additions behind the Julia Morgan Building along Bay and Francisco Streets create a monolithic, rectangular mass which is detrimental to the current public views of the landmarked Julia Morgan Building. The current building, as viewed from Moscone Park, is visually isolated, enhancing its contribution as a historic resource, especially as viewed by the public. There are few (if any) historical resources in San Francisco which can be so clearly viewed by the public from a park in San Francisco.

6. Noise
   - The proposed project may cause exposure of persons to or generation of noise levels in excess of standards established in the local general plan or noise ordinance, or applicable standards of other agencies.
   - The proposed project may cause exposure of persons to or generation of excessive groundborne vibration or groundborne noise levels.
   - The proposed project will cause a substantial permanent increase in ambient noise levels in the project vicinity above levels existing without the project.
   - The proposed project will cause a substantial temporary or periodic increase in ambient noise levels in the project vicinity above levels existing without the project.

   The project significantly increases noise along Bay Street, due to increased traffic (drop off at Community Plaza and new underground parking garage), the addition of a new loading dock immediately adjacent to 1435 Bay Street, and noise generated by the new generator.

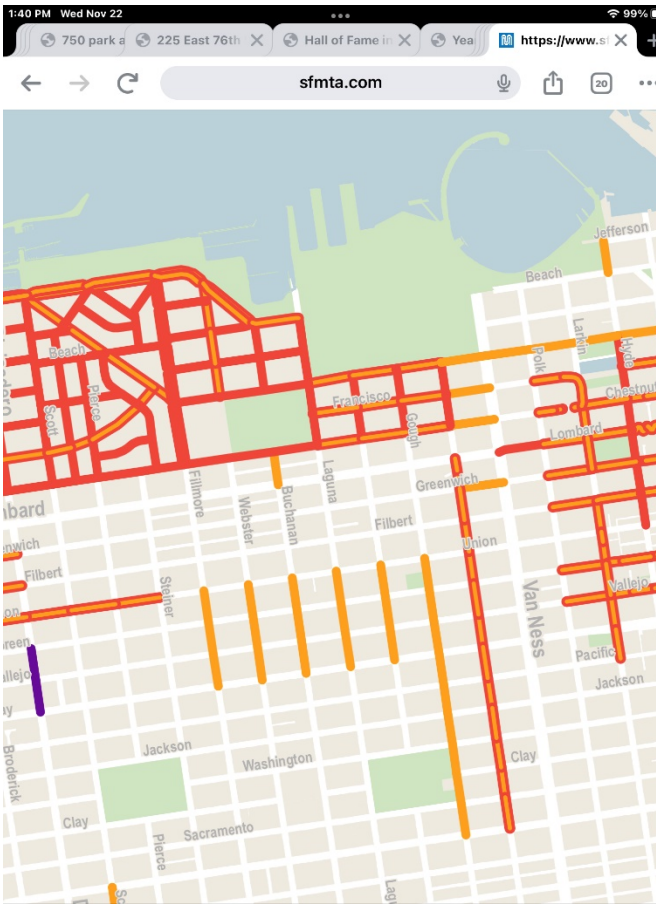
We believe the above issues are significant, and will create substantial negative environmental impacts to the neighborhood, traffic, and the public (including users of two heavily used adjacent public parklands); and may have additional noise, air quality, hazardous materials, air quality impacts, and impacts to habitat.

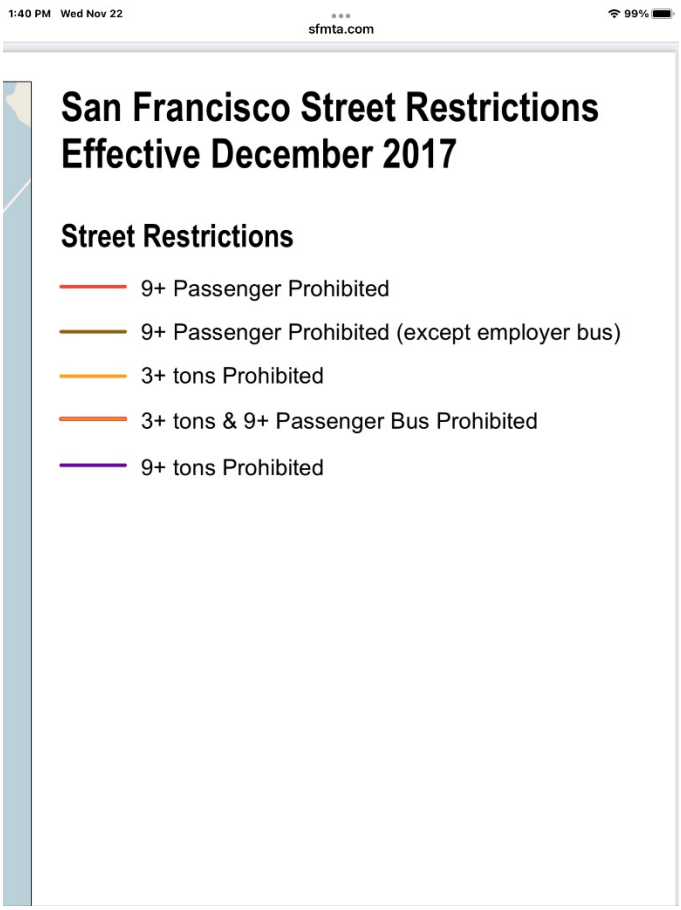
Best Regards,

Residents of 1435 Bay Street

City of San Francisco Commercial Vehicle Restrictions

www.sfmta.com/commercial-vehicles





From: Sarah Baker
To: Poling, Jeanie (CPC)
Cc: Stefani, Catherine (BOS); Horn, Jeffrey (CPC); tlpeckham@comcast.net; Bart Draper
Subject: Heritage Expansion Project
Date: Wednesday, November 29, 2023 3:43:00 PM

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Case No. 2022-0009819ENV; 3400 Laguna Street

Dear Ms. Poling,

I am writing to express my concerns about the potential environmental impacts of the Heritage on the Marina's project at 3400 Laguna Street. I understand that San Francisco Planning is currently accepting comments on the proposed scope of a CEQA environmental impact report, but I want urge the Department to also engage with the San Francisco Department of Public Health to ensure that Public Health in engaged in enforcement the Maher Ordinance with respect to this project.

This site appears on the Maher Map and is subject to the Ordinance. As the historic maps included in the Page & Turnbull Report[1] illustrate, this entire site was probably filled former bay or a marsh and creek area. The excavation for underground parking is proposed at some 15' feet in depth and will cover a wide area.

Based on these considerations, the San Francisco Planning Department should refer this project to San Francisco Department of Public Health for further consideration under the Maher Ordinance. This will ensure a more complete evaluation of the potential environmental impacts of this large and unnecessary development in predominately residential and recreational area.

Regards,
Sarah Baker

[1] Figures 51 and 52 (pages 36 and 37) in 3400 Laguna Street Historic Resource Evaluation, Part 1, San Francisco CA; Prepared for the San Francisco Planning Department by Page & Turnbull,; February 16, 2023

December 22, 2023

Jeanie Poling
Senior Environmental Planner
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103
Jeanie.poling@sfgov.org

Jeffrey Horn
Senior Planner
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103
Jeffrey.horn@sfgov.org

Re: Comments on 3400 Laguna Street (Heritage on the Marina) Proposal for Massive Building Project

Dear Ms. Poling and Mr. Horn,

I am writing in response to the *Notification of Preparation of an Environmental Impact Report* (the "***Notice***"), dated November 1, 2023, with respect to Case Number 2022-009819ENV.

I understand the deadline to respond to the Notice was December 1, 2023. However, I have lived 200 feet from the project sponsor, Heritage on the Marina ("***Heritage***"), located at 3400 Laguna Street, for over 30 years and I never received a copy of the Notice. I have spoken to most of the residents of my building, at 1500 Francisco Street, which has and no one seems to have received this Notice. Given the lack of notice, I am hoping that you will consider my letter as part of your review and take into account my strong opposition to the Heritage's proposed project.

I only became aware of the Heritage's desire to build two towers consisting of nearly 60,000 additional square feet on its property by chance when a neighbor in lives down the street mentioned it. I am a retired widow. My home is my sanctuary. It is not fair that my peace and enjoyment of my home should be shattered by the Heritage's greed, which is indeed what will happen if this massive project is approved. The noise, construction traffic and pollution will be my constant companion for a minimum of 30 months (according to the Notice) but likely longer given that almost all large construction projects take longer than estimated. I am worried about the impact on my health and wellbeing, especially from the noise, dust and potential release of toxins into the air from the excavation that the project would entail.

When my late husband and I bought our home, the location almost adjoining the Heritage's beautiful central building, a historic mansion designed by the renowned architect, Julia Morgan, was a selling point, as well as the "breathing room" that its lawns, trees and open space provides on our block. The Heritage's plans would result in the mansion nearly disappearing from public

view as it will be enclosed on three sides by buildings that are 40 feet or higher, and much of the existing setbacks and landscaping will be destroyed to make space for these new towers.

I am also aware that the Heritage has been buying up several buildings on my block and "folding them" into its operations. On the north side of Francisco between Laguna and Octavia, there use to be four multi-family buildings, and this added to the sense of community on our block. Now, the Heritage took over two of those buildings and seem to constantly be moving people in and out. They also own at least one building around the corner from me on Octavia Street. I wonder if their plan is to try to buy up our entire block? They don't seem to care about the massive housing shortage in San Francisco and, instead, are adding to it.

Please do not let the Heritage do this project. Their greedy plans come at my expense and that isn't fair or just.

Sincerely,

Masae Matsumoto Beresford

Masae Beresford
Apt 10
1500 Francisco St
San Francisco, CA 94123

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Jeanie Poling
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49 South Van Ness Avenue, Suite 1400
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941038759 C003

Jeanie Poling
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94108
jeanie.poling@sfgov.org

November 27, 2023

Re: Case No. 2022-009819ENV
Project Address: 3400 Laguna Street

Dear Ms. Poling,

I am reaching out to discuss the Environmental Review notice concerning the development at 3400 Laguna Street by the Heritage at the Marina (the "Heritage"). Below, I have outlined my apprehensions regarding its environmental impact and specifically the issues protected by the California Environmental Quality Act (CEQA).

First, I am concerned about the irreparable harm:

Ground Stability Apprehension. Given that a significant portion of the Marina neighborhood rests on former landfill, the risk of soil liquefaction is notably high. The liquefaction zone initiates within 1.5 blocks of the project site, raising concerns about potential destabilization affecting nearby residences, apartment buildings, and the structures at Moscone Park. The depth and extent of the large excavation proposed by the Heritage only increases my concerns. This unnecessary project adds an extra layer of risk to an area already susceptible to seismic activity.

Air Quality Concerns. The various phases of this project, encompassing demolition, excavation, and construction, pose airborne challenges involving dust, debris, and potential toxins like asbestos, heavy metals/lead, concrete, and glass. The health risks posed by allowing the Heritage to proceed with a construction project of the size and scope it is seeking are not justified. Surrounding the Heritage are two public parks (Moscone Field and Fort Mason) used by hundreds of people a day, as well as homes full of families with young children, not to mention the elderly and often health-compromised residents of the Heritage itself. None of us deserve to be exposed to the risks of this project to our health and well-being.

Diminishment of a Cultural Heritage. At the heart of the Heritage is an iconic Julia Morgan mansion. I was surprised to learn that it has not already received landmark status either federally or from the State of California as I am sure it deserves protection. The proposed construction of nearly 60,000 square feet consisting of two modern four-story plus building will harm this architectural gem. No one will be able to see any part of the mansion except the front façade on Laguna Street. And it isn't just the mansion that deserves protection. Ms. Morgan was careful and precise about how she sited the building and designed the surrounding landscape. All her remaining original work should be preserved. I also understand that Heritage wants to drastically alter the mansion by creating a brand-new front entrance on the side of the mansion facing Bay Street. I especially hope that you will prevent this from happening. The Heritage wants to do this

so it can treat Francisco Street as the "rear" part of its lot and put a new building all the way to its property line. The historical record is very clear that the rear of the Heritage's lot faces Octavia Street. It is only because it was at the rear that the Perry Building was allowed to be built in 1957. To allow the Heritage to keep changing its orientation in order to max out construction on its lot is to undermine the entire concept underpinning the planning code.

Moreover, the construction itself will cause significant harm:

Noise Pollution Considerations. Heritage's approach to this project feels dismissive of the impact on the community. They want free reign to do construction for 11 hours a day for at least 5 days a week for years (at a minimum for 2 ½ years but realistically given normal delays in building more likely to be up to 4 years). The noise generated by the construction of an extensive building amidst comparatively smaller residences (141,579 sq ft vs. neighborhood homes of ~6500 sq ft) could lead to health issues, including anxiety, headaches, and hearing loss, in addition to the significant disruption of the peaceful enjoyment of their homes by surrounding neighbors and by all San Franciscans of the use of our shared parks and playgrounds that surround the Heritage.

Traffic and Parking Challenges. The altered traffic patterns and diminished parking availability during the project pose concerns in an already bustling and congested area. Bay Street, a heavily trafficked 4-lane thoroughfare, and Laguna Street, teeming with both vehicular and pedestrian traffic, including four crosswalks with flashing lights, face disruptions. Residents on Francisco Street will encounter restricted access to their garages and streets as the substantial construction and demolition vehicles navigate the area.

I appreciate your consideration of both my concerns and those of the wider public. I eagerly await the outcomes of the San Francisco Planning Department's comprehensive review.

Yours sincerely,

Christy Chandler

From: Bart Draper
To: Poling, Jeanie (CPC)
Cc: Stefani, Catherine (BOS); Horn, Jeffrey (CPC); Terry Peckham
Subject: EIR Scope Case No. 2022-0009819ENV; 3400 Laguna Street
Date: Tuesday, November 28, 2023 7:07:20 AM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Case No. 2022-0009819ENV; 3400 Laguna Street

Dear Ms. Poling,

I am writing to express my concerns about the scope of the environmental impact report San Francisco Planning is proposing for the Heritage on the Marina's project at 3400 Laguna Street. The phase 1 environmental assessment conducted by Cornerstone Earth Group on behalf of Heritage on the Marina raises a number of environmental issues that require additional evaluation. These include:

<!--[if !supportLists]-->• <!--[endif]-->The presence of hazardous volatile organic compounds in groundwater adjacent to and perhaps underlying the property;
<!--[if !supportLists]-->• <!--[endif]-->The property's proximity to former underground storage tanks locations that are known to have leaked;
<!--[if !supportLists]-->• <!--[endif]-->The potential presence of buried structures, contaminated fill and/or debris that may be encountered during excavation of the proposed subsurface garage;
<!--[if !supportLists]-->• <!--[endif]-->Asbestos-containing building materials and lead-based paint that may be aerosolized and dispersed during demolition activities; and
<!--[if !supportLists]-->• <!--[endif]-->Current on property storage of fuel, hazardous chemicals and hydraulic fluids.

While not specifically described in the Cornerstone Earth Group report, the northeast corner of the property is adjacent to one of the locations of PG&E's former North Beach manufactured gas plant (MGP). Limited sampling results[1] indicate that some subsurface soils from approximately 3 to 6 ft bgs, and in some areas down to 10 ft bgs, contain MGP residues. The MGP residues observed appeared black or dark gray in color, solid, dry, and immobile. Chemicals of potential concern which are associated with MGP residues include:

<!--[if !supportLists]-->• <!--[endif]-->Benzene, toluene, ethylbenzene and xylenes;

<!--[if !supportLists]-->• <!--[endif]-->Polynuclear aromatic hydrocarbons; and

<!--[if !supportLists]-->• <!--[endif]-->Cyanide.

Based on these and other potentially not yet discovered adverse environmental conditions, the San Francisco Planning Department should, at a minimum, require the project proponents to include

hydrology and water quality and hazards and hazardous materials as topics for full analysis in the environmental impact report. This will ensure a more complete evaluation of the potential environmental impacts of this large and unnecessary development adjacent to a formerly used industrial area.

Regards,

Bart Draper, Ph.D.

[1] Remedial Action Plant, Former North Beach and Fillmore Manufactured Gas Plant Site, San Francisco, CA; by Haley & Aldrich, Inc. Walnut Creek, California; for Pacific Gas and Electric Company San Ramon, California; File No. 36970-007; May 2012

Cc: Catherine Stefanie (Catherine.Stefani@sfgov.org); Jeff Horn (Jeffrey.horn@sfgov.org)

From: David Dunford
To: Poling, Jeanie (CPC)
Subject: 3400 Laguna
Date: Sunday, November 26, 2023 7:01:28 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

I am very concerned about the negative impact on the neighborhood, playground, parks and in particular the Julia Morgan Treasure and sheer amount of pollution the project at 3400 Laguna will generate. I take my young children to Moscone Park and Ft. Mason on a regular basis and consider this area an essential resource of San Francisco.

Building massive rectangular buildings right next to the Julia Morgan building is completely out of context. It will visually impair the building. The square angles of the new buildings will consume the sloped roof and texture of the Julia Morgan building. It will cast shadows across it so the public will only be able to enjoy it with natural sunlight a few hours per day, if they can see it at all. In fact, the shadows of the new buildings will likely also shadow Moscone Park across the street. It also looks like the construction will remove the corner gardens and greenery along the southern border. And most importantly it will eliminate many of the current views of the Julia Morgan building. Please do not allow the proposed construction to render this rare, beautiful example of perhaps the most important woman architect, impotent.

Obviously we are also concerned about the environmental impact of our health as well 1. destruction of existing buildings as they were built at a time when there were horrible chemicals, asbestos etc.. I'm worried the airborne pollutants will infect the entire neighborhood, 2. Construction - pollution of machines and trucks, traffic, trash, noise, excavation debris, unsettling of the ground… for 3+ years! 3. Completion - The unnecessary carbon footprint of almost 60,000 extra square feet for very few additional residential units. Increased traffic from larger campus (vendors, employees…), less public parking for park users, increased noise, more garbage, inviting setting for non-homed people to set up tents (particularly along Francisco where it will be the back of the Heritage and just a wall and sidewalk for the better part of a block).

Preserving the integrity of the historic Julia Morgan building and replacing the old 1 story building with a new 1 story building (keeping existing landscaping or adding) and improving existing buildings, would be a much better plan and fit better in this residential neighborhood with parks.

Thank you for your consideration,

David

From: Todd Eichler
To: Poling, Jeanie (CPC)
Subject: CEQA 3400 Laguna Street
Date: Monday, November 27, 2023 8:49:28 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Ms. Poling,

In response to the CEQA Notice sent November 1, 2023 please consider the impact the 3400 Laguna project will have on the Julia Morgan building. This is the best example of her work in San Francisco. Building monolithic buildings on 3 sides (1 existing) will hide it from the neighborhood and the parks. I also fear that the excavation necessary to build such large buildings will unsettle the earth under or near the Julia Morgan building either immediately or in the future causing irreparable harm. We must preserve the Julia Morgan building as it is an essential architectural monument for San Francisco.

Projects of this scale create tremendous carbon emissions during construction and ongoing operations. Considering the limited residents served by all of this new construction, I do not think it is worth the pollution it will create. And many of the residents of the Heritage will be displaced and the ones that remain will be the most effected by the environmental disruption, pollution, dust both inside the buildings and outside. The impact of 5 years of construction - digging up dirt that sits on former gas tank sites and other known pollutants, traffic flow problems, parking for residents in the neighborhood, workers and residents at the Heritage and all the visitors to Moscone Park and Ft. Mason - all to add 23 units? Many of these problems will continue after construction as well when you have such a massive institution in a residential neighborhood.

This project is frankly out of scope. If they wanted to build a giant new luxury building to house new residents there are many areas of the City that are zoned for this type of project and as a not for profit with $100 million (according to the financials posted on their website when I checked earlier in the year) they could easily afford this.

Please reconsider the project as a much smaller addition, if any, potentially just replacing the 1 story building that was decommissioned and improving the existing large building on the east side of the property. The goal should be to restore the Julia Morgan building so it shines, rather than relegating it to the front door of a large complex.

Sincerely Yours,

-Todd

G. Todd Eichler
415 336-3424

From: Ferrier, Andrew P
To: Poling, Jeanie (CPC)
Subject: 3400 Laguna Street CEQA Notice
Date: Monday, November 27, 2023 7:35:09 AM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

I am submitting a response to the CEQA Notification with respect to 3400 Laguna Street due by December 1, 2023.

I am opposed to this project due to the following reasons:

1. The proposal obfuscates its true intentions. It is misleading in terms of the scale of the project as well the impact it will have on the existing structure and surrounding neighborhood. In the most simplistic terms, it proposes too much density for the specific lot in question as well as its neighborhood.

2. The neighborhood is zoned residential, this specific lot is classified RM-1 and the business is functioning under a Conditional Use Authorization. To allow this operation to dramatically increase its square footage runs counter to the zoning code.

3. The proposed change to the original building's entrance is a thinly veiled attempt to circumvent SF's building codes by altering what would be considered front versus rear.

4. The historically significant building design by Julia Morgan will be dramatically altered and completely overshadowed by the new construction.

5. As currently oriented, the building and senior living facility co-exist with its surroundings in a reasonable manner. However, adding 58,000 square feet of space would be a dramatic shift in terms of scale and presence. I live nearby in a two story building that is a total of 2500 square feet. To add what is essentially 23 times the amount of my building's space to a single lot would materially and irreparably harm the balance of what is intended for this enterprise and our neighborhood.

6. The amount of proposed excavation work is significant and should trigger an environmental impact study.

I implore the SF Planning Commission to not approve the proposal as submitted. In my

opinion and consistent with SF Planning zoning regulations and objectives, this project should be reconsidered in its entirety with its scale and impact dramatically reduced.

Thank you for your consideration.

-af

Andrew Ferrier
3256 Octavia Street
415 999-2354

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From: Charlton Gholson
To: Poling, Jeanie (CPC)
Date: Friday, December 1, 2023 11:31:38 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

I am writing to you in regards to the Environmental Impact Review notice for the project at 3400 Laguna Street (2022-009819ENV). My fundamental concern remains that its proposed scope is detrimentally massive and wildly out of place in a completely residential neighborhood. I believe several issues could arise that will irreversibly damage quality of life for residents in the area and the character of the neighborhood – both during the project and if it is completed as proposed.

Issues during the project

The proposed renovation will last a minimum of 6 years, which is a substantially longer timeframe than even the most drastic renovations on homes in the area. Adding to this, the Heritage on the Marina is a sensitive use building. During that period, the following issues are likely to arise from the excavation:

1. **Air pollutant exposure.** The site is in an Air Pollutant Exposure Zone, which puts nearby residents at risk of toxic airborne concerns (including the already more susceptible residents at the Heritage).
2. **Noise pollution.** Development is slated to last 6 years and is significantly larger than typical residential projects in the area (141,579 sqft vs. ~6000).
3. **Traffic and parking.** Loss of parking during this project is a concern for an already busy traffic and congested parking area. Laguna Street is busy with both vehicle and pedestrian traffic (requiring 3 crosswalks with flashing lights) and includes an active bus route.

Additional issues if the project is completed as proposed

The Heritage operates across consecutive buildings near its historic Julia Morgan building as a single facility, which should already make it inappropriate for a 100% residential neighborhood. The proposed project would push it farther away from both the planning code and the character of the neighborhood. The project will require a variety of variance, waivers, and exceptions from code requirements as proposed.

1. **Loss of a historical resource.** The new modern buildings will overwhelm and detract from the historic Julia Morgan Heritage building – they will be significantly taller and physically shadow the Heritage building, and the flat roofs will look odd and angular next to the sloped gables of the Heritage building. The Morgan building is an important cultural resource and the new buildings will overpower it and negatively impact its aesthetic.

2. **Shadowing of public gathering spaces.** The building is adjacent to two parks and recreational areas and will substantially shadow both of those sites. The elevator and utility penthouses will exceed 50’ feet in height, which is unusually tall for the area.
3. **Loss of open space.** Removing the existing trees and landscaping to put in a stark façade facing the residential block on Francisco takes away so much open space on their lot they would need a variance or exception for the rear yard requirement. And again, adding nearly 60,000 square feet of new building is a dramatic over the top impact to the neighborhood.

I consider myself very pro-development, particularly when it comes to residential development in the Marina neighborhood and our city more broadly. There are several renovation projects within a square block happening now that are all welcome sights – keeping the character of the buildings intact (and their relationships to one another) with limited disruption to residents.

The Heritage on the Marina’s proposal, however, is not residential development: it is an overreach. Their organization has somehow acquired multiple consecutive properties over time near its historic Julia Morgan building, and they now believe they have license to redevelop an entire city block as a single imposing facility that maximizes their space and revenue. The project should have serious mitigations put on it or at minimum require further study.

Sincerely,
Charlton Gholson

TO: jeanie.poling@sfgov.org
CC: Catherine.Stefani@sfgov.org
Jeffrey.horn@sfgov.org

Case No. 2022-0009819ENV

Dear Ms. Poling,

I am a long-time resident of the Marina District and am writing to share my concern about the proposed development/expansion plans for The Heritage assisted living facility at 3400 Laguna Street. While I find it deeply troubling that the city would consider such massive new structures to encroach on what is undoubtedly one of the Marina's – and perhaps even city's – finest architectural treasures, I am equally concerned about the impact enlarging this medical institution will have on traffic and congestion.

The intersection of Bay and Laguna streets is one of the Marina's busiest and most complicated intersections. Even on calm days it's a busy intersection. Fleet Week, Fourth of July and other major events aside, regular weekly and seasonal events (e.g., Fort Mason Farmer's Market) already significantly increase congestion and create a general sense of chaos that affects streets and pedestrian flow for blocks.

I strongly urge San Francisco Planning to demand The Heritage demonstrate that their proposal to add relatively few new living units for wealthy elderly outweigh the many negative effects of this proposed project – including increased traffic, congestion, added pressure on parking and visual impairment/destruction of the Julia Morgan Building – will have on the surrounding neighborhood and cultural and tourist attractions.

Sincerely,

Brenda Goldstein
2490 Chestnut Street, #102
San Francisco CA 94123

Jeanie Poling
Senior Environmental Planner
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103
Jeanie.poling@sfgov.org

Case No:	2022-009819ENV
Project Address:	3400 Laguna Street (Heritage on the Marina)
Block/Lot:	0471/003
Subject:	Protest Against Construction Project Impacting Julia Morgan Mansion and Concerns Regarding CEQA Issues

November 30, 2023

Dear Ms. Poling,

I am writing to express my deep concerns and objections regarding the proposed construction project in the vicinity of the historic Julia Morgan mansion at 3400 Laguna Street. As a concerned citizen, I strongly protest this project due to the detrimental impacts it poses on various critical aspects, including historical preservation, environmental concerns, and community well-being.

The Julia Morgan mansion stands as an invaluable testament to our cultural heritage, embodying the architectural brilliance and historical significance of its time. Any construction activity at the Project Address must prioritize the preservation and protection of this iconic landmark. It is imperative to safeguard our cultural heritage for future generations and ensure that its integrity remains intact. The project proposed by the Heritage on the Marina (the "Heritage") does not meet this standard. If the project as proposed is permitted by SF Planning, the mansion will be completely enclosed on three sides by nearly 60,000 square feet of new construction consisting of two near 4-story plus modern buildings. They will physically and visually tower over the mansion, making it seem a subordinate structure, and their construction will eliminate the existing landscaping and openness that now characterize this parcel of land. I also understand that the conditional use authorization under which the existing Health Care Center was allowed explicitly limited it to a height of one story, and the Heritage is ignoring this restriction when it proposes to replace the Health Care Center with a four-story building spanning almost its entire frontage on Francisco Street. Finally, the Heritage is proposing significant alterations to the mansion when it suggests abandoning its front entrance on Laguna Street and building a new one on Bay Street. The Heritage wants to do this in order to reorient the property from its existing east-west axis (Laguna Street to Octavia Street) to a north-south axis (Bay Street to Francisco Street) in order to treat Francisco Street as the "rear" of the property. As a historic resource, the mansion and its landscaping should be protected under the California Environmental Quality Act (CEQA).

Moreover, the project raises several other critical issues under the CEQA that cannot be overlooked. These concerns encompass a wide array of areas such as noise pollution, air quality degradation, land use and planning concerns, geological stability, transportation disruptions, and the casting of significant shadows on nearby parks and private residences.

The introduction of construction activities, particularly in historically sensitive areas, is bound to generate significant noise pollution, disrupting the tranquility of the neighborhood. The Heritage is seeking permission to do construction for at least 55 hours per week and from 8 am to 7 pm. This is a quiet neighborhood full of families and retirees, including the frail and elderly residents of the Heritage itself, who will be living amid this disruptive construction for many years. It is not appropriate to subject so many San Franciscans to this level of noise for such an extended period solely to benefit one organization.

Land use and planning must be carefully assessed to ensure that any development aligns with the historical context of the area and respects the integrity of landmarks like the Julia Morgan mansion. Geologically, the site should undergo rigorous evaluation to mitigate any risks associated with construction in potentially unstable terrain. The Heritage is proposing very significant excavation – over 15,000 cubic yards and a depth of 15 feet below grade – with much of this work being done next to the mansion, which could undermine its century-old foundation. In addition, prior SF Planning reports found that the property is an archeologically significant area, and it is not clear that the Heritage is planning to or prepared to protect any archeological resources that are unearthed during its project.

Furthermore, the proposed construction's impact on transportation needs meticulous evaluation to prevent congestion, ensure public safety, and preserve the accessibility of the area. The Heritage is adjacent to two parks – Moscone Field and Fort Mason – which are very heavily used and whose visitors rely largely on street parking. Yet, the Heritage is asking San Francisco to “gift” it two street parking spots (15 feet) on Bay Street for its private use as part of a new driveway as well as parts of public right of way on Bay Street and Francisco Street for bicycle parking. In addition, the sheer influx of additional residents, staff members and employees will overwhelm the neighborhood’s already limited parking.

The potential casting of shadows on nearby parks due to the construction's height and orientation should also be thoroughly studied, considering the implications for recreational spaces and environmental balance. I was alarmed by the significant shadowing shown in the “preliminary shadow fans” filed for this project. As you can see in the following diagram, the impact is severe, especially on Moscone Field’s baseball diamond, which is one of the most heavily used in San Francisco.

In light of these concerns, I urge SF Planning to conduct a comprehensive and transparent assessment of the proposed construction project's environmental impacts under the CEQA guidelines. It is crucial to engage in meaningful public discourse and consider alternative solutions that prioritize historical preservation, environmental sustainability, and community well-being.

I implore you to reconsider the potential ramifications of this project on the Julia Morgan mansion and its surrounding environment. Please ensure that adequate measures are taken to mitigate the adverse effects and preserve the cultural and historical legacy of our community.

Thank you for your attention to this matter. I eagerly await your response and action on this pressing issue.

Sincerely,

Margaret Grohne
mgrohne@gmail.com

From: personal@rodhall.net
To: Poling, Jeanie (CPC)
Subject: Concerns Re: Heritage project proposed in Marina
Date: Wednesday, November 29, 2023 3:05:59 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

I am writing to express my concerns regarding the proposed project at 3400 Laguna Street and its potential negative impact on the local neighborhood, parks, and, Julia Morgan building.

My family and I are frequent visitors to Moscone Park and Ft. Mason. The prospect of constructing massive rectangular buildings surrounding the Julia Morgan building raises significant issues that warrant careful consideration.

The visual impact of the new buildings on the Julia Morgan structure is a major concern. The square angles of the proposed development compromises the integrity of the sloped roof and unique texture of the Julia Morgan building. Not to mention visually blocking the Morgan building and covering it in a shadow. The removal of the corner gardens and greenery along the southern border is also distressing, as it contributes to the overall charm of the neighborhood. And, as far as I can see, the middle gardens will also be substantially removed, these were essential elements to Julia Morgan's original architecture.

Beyond aesthetic concerns, there are serious worries about the environmental impact on our health and the community at large. The demolition of existing buildings, constructed in a time when hazardous materials such as asbestos were prevalent, raises concerns about airborne pollutants affecting the entire neighborhood. The construction phase is anticipated to bring pollution from machinery and trucks, increased traffic, noise, and excavation debris, which will persist for an extended period of over three years. Lastly, the excavation of a massive amount of ground may render nearby buildings unstable.

Moreover, the completion of the project, adding almost 60,000 square feet for minimal residential units, raises questions about the unnecessary carbon footprint and its subsequent impact on the community. This includes increased traffic, reduced public parking for park users, amplified noise, pollution from idling trucks starting at 6 or 7am, blocked driveways on Francisco street, increased refuse from construction and many other inconveniences. And when the project is completed the neighborhood will have a more institutional feel.

In light of these concerns, I urge you to consider an alternative approach that preserves the integrity of the historic Julia Morgan building. Perhaps one that adds REAL housing (not just a few units for extraordinarily wealthy retirees who need an onsite pet spa!).

I appreciate your attention to these matters and trust that you will carefully evaluate the potential impact of the proposed project on our community's well-being.

Sincerely,
The Hall Family

From: Mike Hebel
To: Poling, Jeanie (CPC)
Cc: wlabounty@sfheritage.org; adamklafter@gmail.com; Tania Albukerk
Subject: 3400 Laguna Street, Environmental Impact Report
Date: Monday, November 27, 2023 7:38:34 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling:

RE: Heritage on the Marina
AKA: San Francisco Ladies' Protection and Relief Society
3400 Laguna Street
Notice of Preparation of an EIR
Case No.: 2022-009819ENV

The Heritage has submitted plans for a 60,000+ sq.ft. multi-year construction project directly in front of our residence at 1553-1555 Francisco Street. Our building, along with 1547-1549, 1557-1559, 1561-1563, and 1567-1569 , are 5 adjacent four-story, architecturally significant buildings – often referred to as prime examples of the Marina Mediterranean style. Our buildings, along with the 1925 iconic Julia Morgan building (3400 Laguna Street, Heritage's front on Laguna Street) are distinctive architectural landmarks in our neighborhood.

Our environmental concerns about Heritage's Preliminary Project Assessment submission are:

1. The 4-story addition along the north side of the 1500 block of Francisco Street is out-of-place and overwhelming in this residential neighborhood. The new proposed modern building will detract, denigrate, and overwhelm both the Julia Morgan Building as well as our Marina Mediterranean homes (built between 1925 and 1929). The proposed addition will shadow the Julia Morgan building and partially block it from view on the Francisco Street side. The fortress-like proposal will cause a substantial adverse change in the significance of the Julia Morgan building as well as the significance of the 5 Marina Mediterranean style buildings.

2. Proposed construction in our neighborhood is to last approximately 3 years. This will fill our neighborhood's streets with construction vehicles, dirt and debris, significant construction noise for 6 days a week, traffic and bicycle lane blockings (there is a bicycle lane on the south side of Francisco Street), the loss of many parking spaces on both sides of Francisco Street as well as along the 3400 block of Laguna Street, and the disturbance of the peaceful enjoyment of this neighborhood when shared for 3 plus years with a multitude of construction workers and their equipment.
3. The proposed construction calls for earth excavation of nearly 30,000 cubic feet. We are in an air pollutant exposure zone. This project will generate significant air pollutants during the long excavation period. Of important note, this construction's earth excavation will be contiguous to the former North Beach Manufactured Gas Plant which was located at the intersection of Bay and Laguna Streets and is a current environmental investigation site.
4. Heritage on the Marina is adjacent to two parks and recreation areas (Moscone Park & Recreation and the Fort Mason National Recreation Area). Heritage shares these two natural resources with the entire San Francisco Marina neighborhoods. Its long period of construction will negatively impact the public's enjoyment of these coveted natural resources during the 3-year construction period.
5. When the elevator shaft and utility appendage on top of the proposed four-story Francisco Street building are considered, the height will exceed 50 feet causing shadowing. This proposed building height is unusually tall for our neighborhood.

I am 79 years old. My wife is 75. We purchased our home in 2001 and considered it our last residence. I will soon be retiring after a 28-year career with the San Francisco Police Department and a nearly 50-year career as an attorney for the San Francisco Police Officers' Association (20-year employment overlap). We anticipated the peaceful enjoyment of our home and its neighborhood during our retirement years. Now Heritage on the Marina has proposed a grossly out-of-place addition to its continuing care retirement facility. It is my understanding that the average age of the current

residents is 85. By the time this project is completed (2030) I will exceed its average resident's age.

This proposed large, nearly gargantuan, expansion of the Heritage on the Marina (logo "Retie in Style") is out-of-place in a residential neighborhood. It should not be further out of conformity with relevant codes. This project, as now conceived, will require a variety of variances, waivers, and exceptions from current code requirements. Its nonconforming use should not be allowed to go further out of conformity.

When asking the question "what does this proposed construction project do to improve our neighborhood, the answer – most unfortunately – is "nothing." Its residents, present and future, are not asked, as a condition of admission, whether they have any connection to San Francisco. They are asked about their wealth – can they afford an upfront payment of at least $550,000 plus $8,000/month for a one one-bedroom apartment. There will be no affordable housing here only luxury residences.

Thank you.

Mike and Gityjoon Hebel

Cc: Tania Albukerk, chair, "Save The Marina's Heritage" – a San Francisco registered community organization

wlabounty@sfheritage.org ; Mr. LaBounty is CEO and President of San Francisco Heritage

adamklafter@gmail.com; Mr. Klafter is Vice-President and Preservation Committee chair for Victorian Alliance of San Francisco

Encls: Relevant Correspondence from SF Heritage dated April 4, 2023, and June 12, 2023

Michael S. Hebel
Attorney at Law
Certified Financial Planner

POA Welfare Officer
San Francisco Police Officers' Association
800 Bryant Street, 2nd Floor
San Francisco, CA 94103
Office: (415) 861-5060
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Fax: (415) 552-5741

Heritage
3400 Laguna St.
S. F.
94123

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PLANNING DEPARTMENT
RECEPTION DESK

Jeanie Poling,
SF Planning
49 So Van Ness, Ste 1400
San Francisco, CA 94103

94103-379950

November 30, 2023

Jeanie Poling
Senior Environmental Planner
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103

Dear Ms. Poling,

I am a resident of The Heritage on the Marina and I recently read the communication regarding the Environmental Impact on our property. We were told by the staff that the impact would be minimal, mostly upgrades and some new facilities. But reading your packet this does not seem to be the case. I spoke with other residents, and we are quite concerned about the disruption, noise and dust created by the construction.

I moved here because it was peaceful and near the parks. I paid a tidy sum to live here, and I would like to continue to enjoy my limited remaining time here at the Heritage. Even something as simple as a nap during the day will be hard to come by. I worry about many parts of this project but one in particular is losing our beautiful gardens.

I was told it is not necessary to send a letter because my concerns were heard but I felt I must. I am not the only resident at the Heritage who feels this way. I feel that I speak for many of us when I say that we are tremendously worried that our remaining years here at the Heritage will be very unpleasant.

On behalf of concerned residents of the Heritage on the Marina thank you for your understanding,

From: Mark H
To: Poling, Jeanie (CPC); Delumo, Jenny (CPC)
Subject: Fwd: Opposition to 3400 Laguna St case #2022-009819ENV
Date: Monday, November 27, 2023 8:13:59 AM
Attachments: 3400Laguna2.docx

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

November 27, 2023

TO: Jeanie Poling, SF Planning

FROM: Mark Herrmann, respighi1@gmail.com

RE: 3400 Laguna Street

Dear Ms. Poling & the SF Planning Commission,

As a resident of the 3200 block of Octavia Street, I have several concerns about the proposed development of the Heritage on the Marina at 3400 Laguna Street. Two of those concerns potentially reflect "environmental" issues which should be addressed before even a modified version of this proposed construction is presented to Planning and to the public.

Physical Size

First, the City's "Notification of Project Receiving Environmental Review" dated May 30 is misleading. It states that there is "zero net change" to the number of building stories and building height. While that may be technically true by treating all the buildings as a group, the proposed "Francisco Building" will change from its existing one-story to four stories plus the additional height of mechanical rooms. Neighbors may consider this improper notification.

Second, the size and location of the proposed Francisco Building will further envelope the historically noteworthy Julia Morgan main building. The Francisco Building, with its 50' high roof structures, will be taller than the JM building. It will create significant shadowing of the JM building and it will partially-to-wholly obstruct public views of this architectural masterpiece from the sidewalks on Francisco and Laguna streets, and from some areas of Moscone Park. Its height may also loom behind the JM building as viewed from the North at Fort Mason. The Francisco building will completely hide about 75% of the south side of the JM building from any view. The documented style of noted architect Julia Morgan needs to be respected. I recommend further light/view/height studies, which will likely result in a recommendation of scaled-down construction. Furthermore, any attempt to relocate the "front" of such an architecturally significant main building to satisfy Planning will likely be met with resistance.

Lastly, as you know, The SF Ladies Protection and Relief Society ("SFLPRS"), has been quietly buying

adjacent two-unit properties in assessor's block # 0471 (bordered by Laguna, Bay, Octavia & Francisco Streets) and converting them to apartments for its more self-sufficient residents/patients. Between 2008 and 2016 the SFLPRS purchased 3325-27 Octavia St. (2 units converted to 3), 1536-38 Francisco St. (2 units converted to 3) and 1530 Francisco St. (2 units converted to 4). On a square footage basis, the SFLPRS now owns approximately 70% of the entire city block bordered by these 4 streets. Although this may not fall within an "environmental" issue, as defined by Planning, I believe the City should be concerned about concentrated ownership of a city block, especially given the potential of the JM building receiving historical status and because of the financial risks outlined below.

Each additional proposed residential care suite adds 2538 square feet of building space. Even allowing for a substantial percentage of floor space dedicated to common & institutional areas, these appear to be luxury units. SFLPRS offers no affordable housing, no need-based aid, and in fact profits on the early death and turnover of its residents, as outlined in its financial disclosures. The owner pays no federal income tax, no state tax and de minimis SF property tax. Also, this project will not add any "housing units" as defined by the SF building code, therefore any supportive public commentary to that effect will need to be disregarded.

Financial Woes

As shown in SFLPRS's publicly available financial statements, it recorded a loss from operations of $6.2 million in 2021 following a loss from operations of $5.7 million in 2020, a loss of 4.8 million in 2019 and a loss of $4.1 million in 2018. It was only able to turn an overall profit in 3 of 4 of these years because of investment income and gains on approximately $81 million of liquid investments. This is a money losing business looking to double down.

The proposed project is estimated at $30M and we all know what that means - $40M minimum. SFLPRS has a strong balance sheet but if it spends $40M on this project it will have only $41M in liquid assets remaining if the stock and bond markets cooperate. A few more years of negative operating profits combined with a market decline could quickly put this owner (of the majority of a prime square city block) in line behind the string of businesses walking away from San Francisco.

I would expect strong opposition to this project in its current form.

Thank you,

Mark Herrmann
respighi1@gmail.com

From: Dawn Iparraguirre
To: Poling, Jeanie (CPC)
Subject: Re: 3400 Laguna Street
Date: Tuesday, November 28, 2023 10:31:12 AM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

I think the Planning Department should reconsider any construction at 3400 Laguna based on concerning environmental issues.

The proposed project at 3400 Laguna is expected to last for over 5 years, significantly longer than any home renovations, I mention this because it is in a residentially zoned neighborhood. And the historic Julia Morgan building will create additional issues as I refer to below.

Issues during excavation and construction:

1. Air pollutants: The site is located in an Air Pollutant Exposure Zone, putting nearby residents at risk of airborne toxins, especially those at the Heritage and children playing across the street at the Moscone playground (the one for very young children at Chestnut and Laguna). This will be especially acute during demolition and excavation of 20,000+ square yards of dirt/sand.
2. Traffic and parking: The loss of parking spaces during the project will exacerbate the existing traffic and parking problems in the already busy area and force traffic from Bay and Laguna (which has buses and an important crosswalk) to Octavia and Francisco (which has a bike lane).
3. Noise pollution: The project's duration and larger scale compared to even the largest residential projects in the City will contribute to increased noise pollution. 3400 Laguna is in a Residential zoned neighborhood.

Further Issues once complete:

4. Loss of a historical resource: The new, large, modern buildings will overshadow and detract from the historic Julia Morgan building obstructing views and potentially putting the building at risk from excavation and construction. This is one of Julia Morgan's greatest works and as a City we should preserve and promote it, not obscure it within large, modern rectangular buildings.
5. As a woman, with a daughter, I think it is extra important to promote works of pioneers like Julia Morgan so future generations have role models. Especially in male dominated fields. As a reference, Julia Morgan was the architect for Hearst Castle! She started working before women were even allowed to vote. There are almost no other notable examples of buildings by other historically recognized woman architects in San Francisco, making this building incredibly important.
6. The addition of the new construction is disproportionate to its surroundings and it will change the scale and scope of the neighborhood.
7. Shadowing of public parks and spaces: The adjacent parks will be significantly shadowed by the new buildings, detracting from their appeal and usability. Once the

height of the elevator and mechanicals are added it will be far in excess of the 4 story limit for the area.

8. Loss of landscaping: The removal of existing trees and landscaping for the new building is the equivalent of changing the architecture of the building not to mention taking away the green space that connects the Heritage to the parks.

I generally support residential housing development, especially housing that is tied to affordable housing, however, the Heritage on the Marina's proposal is not in the spirit of the City's policy's of residential development. It will not only be a blight on the Marina but it will also cause potentially grave health concerns for the elderly (at the Heritage itself) and children.

Sincerely,
Dawn Iparraguirre

From: Poling, Jeanie (CPC) <jeanie.poling@sfgov.org>
Sent: Wednesday, November 1, 2023 1:26 PM
To: dhshell116@msn.com <dhshell116@msn.com>
Subject: 3400 Laguna Street

Hello,

The following documents regarding the proposed project at 3400 Laguna Street in San Francisco were published today.

Notice of Availability of Notice of Preparation of an EIR

Notice of Preparation of an EIR

Kind regards,

Jeanie Poling, Senior Environmental Planner
Environmental Planning
San Francisco Planning
49 South Van Ness Avenue, Suite 1400, San Francisco, CA 94103
Direct: 628.652.7559 | https://sfplanning.org/
https://sfplanningis.org/pim/

From: Peter Kagel
To: Poling, Jeanie (CPC)
Cc: Woody LaBounty
Subject: 3400 Laguna Street Project November 1, 2023 2022-009819ENV Opposition from Peter Kagel , neighbor
Date: Friday, November 3, 2023 9:23:00 AM

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Dear Planning Department,

What troubles me is the loss of parking on Bay Street. The notification does not say where the loss would be, or perhaps I'm not familiar enough to understand, but, in any case, the loss of parking could only be adjacent to Moscone Park which is totally unacceptable because it would affect the Park's access and usage. Please clarify where the parking would be lost.

Thank you,

Peter Kagel

1550 Bay St., Apt. 430

SF HERITAGE www.sfheritage.org 2007 FRANKLIN STREET SAN FRANCISCO, CA 94109 415 441 3000

November 26, 2023

Jeanie Poling
Senior Environmental Planner
San Francisco Planning
49 S. Van Ness Avenue, Suite 1400
San Francisco, CA 94103

RE: 3400 Laguna Street (Case No. 2022-009819ENV), Scope of Environmental Impact Report

Dear Ms. Poling,

I am writing in response to the Notice of Preparation of an Environmental Impact Report in connection with the proposed expansion project at 3400 Laguna Street (Case No. 2022-009819ENV).

San Francisco Heritage is a 52-year-old nonprofit organization with a mission to preserve and enhance San Francisco's unique architectural and cultural heritage. Our primary concern with the proposed project is the scale of the new structures in relation to the 1925 Julia Morgan-designed building, the caretaker's cottage, and the historic composition of a campus eligible for listing in the California Register of Historic Places.

The addition of 58,000 square feet and 23 residential care suites as currently proposed will obscure the massing of the historic structures on site (as well as the five small-scale 1920s-era structures on Francisco Street). The proposed re-orientation of the site entrance from the Morgan building on Laguna Street to Bay Street would also significantly alter the visitor experience of the historic structure.

Heritage recommends the scope of the Environmental Impact Report (EIR) provide a comprehensive analysis and consideration of minimizing the visual impact of the proposed project on the Julia Morgan building and caretaker's cottage.

Sincerely,

Woody LaBounty
President & CEO

From: Range, Jessica (CPC)
To: Delumo, Jenny (CPC); David Lester
Cc: Poling, Jeanie (CPC)
Subject: Re: Heritage Expansion 3400 Laguna St, Case No. 2022-009819ENV
Date: Friday, December 1, 2023 2:00:26 PM

Dear Mr. Lester,

I am confirming receipt of your comments below.
Regards,

Jessica Range

Get Outlook for iOS

From: Delumo, Jenny (CPC) <jenny.delumo@sfgov.org>
Sent: Friday, December 1, 2023 1:08:12 PM
To: David Lester <djlester@sbcglobal.net>
Cc: Poling, Jeanie (CPC) <jeanie.poling@sfgov.org>; Range, Jessica (CPC) <jessica.range@sfgov.org>
Subject: FW: Heritage Expansion 3400 Laguna St, Case No. 2022-009819ENV

Good afternoon,

Thank you for contacting the Planning Department regarding the 3400 Laguna Street project. I am no longer the environmental planner for this project, but am copying Jeanie Poling and Jessica Range, the environmental planners currently working on this project, on this message.

Kind regards,
Jenny

Jenny Delumo, AICP (she/hers)
Senior Planner and Transportation Review Team Lead
Environmental Planning Division

San Francisco Planning
49 South Van Ness Avenue, Suite 1400, San Francisco, CA 94103
Direct: 628.652.7568 | www.sfplanning.org
San Francisco Property Information Map

From: David Lester <djlester@sbcglobal.net>
Sent: Thursday, November 30, 2023 2:46 PM
To: Delumo, Jenny (CPC) <jenny.delumo@sfgov.org>
Subject: Heritage Expansion 3400 Laguna St, Case No. 2022-009819ENV

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

I am writing in response to the notification sent regarding the Heritage on the Marina's proposed

project at 3400 Laguna Street.

I have lived in the marina for 20 years across from the Heritage. Part of the reason I bought my place was the view of the Julia Morgan building that is the heart of the Heritage. One of the highlights of being across the street was the beautiful setting and architecture of the Julia Morgan building along with the complimentary buildings on Francisco street with the iron balconies. The Heritage has always been a good neighbor to have. However it now seems the new CEO and the Heritage's focus is all about expanding. The current building fits and is appropriate for the neighborhood vs the proposed hospital sized expansion.
I have attended two meetings with the Heritage. The first via Zoom in September 2022 at which time the Heritage took the position it had the 'right' to build the maximum density without regard to current zoning. The second time in April 2023 at which time the Heritage admitted that it does not have any "right to build" but needs the waivers and variances and asked for our feedback. We gave feedback but it appears the Heritage has completely disregarded them.

I mention the prior to give some context. My concerns are stated below.

1. The part of the Marina occupied by the Heritage is zoned residential and the Heritage is permitted to operate by pre-existing exemption and variances. Granting a variance to build an additional 58,000 square feet will completely change the scale, scope and character of the neighborhood. It will truly become Institutional, no longer Residential as it is currently zoned.
2. The new buildings will conceal the Julia Morgan Building both at ground level and higher up because a 4+ story obstruction will not allow any view of the Julia Morgan building and completely overshadow the historic structure. I imagine this is why the health care center was only allowed to be 1 story. The Perry building was built before the health care center and it was originally to be 3 stories then it was increased to 4 stories, so why would a building built after the Perry building only be 1 story? It seems likely that this was part of a Notice of Special Restriction No. 4506 (NSR) issued to the Heritage.
3. Part of what makes the Julia Morgan building so special is its integration with the gardens and open space. It was part of the architecture. This was a signature of Julia Morgan's designs. The current proposal would severely diminish the green space.
4. I am a big proponent of more housing in this City. However, adding only 23 super luxury units across nearly 60,000 new square feet does not accomplish that goal. Those units will only be occupied by 1 or 2 residents. These units will not be accessible to everyone - no families, no working people and certainly no affordable housing. If this project were truly residential, the proposed property would easily house over 300 people; as it stands, it will probably be under 100 residents because it is a very high end luxury retirement community with excessive amenities.
5. There will be a massive excavation. I do not see how it is possible to contain the dust from the digging. Considering this is a Air Pollutant Exposure Zone the construction will put the neighborhood, especially children and the elderly, at risk. In particular the elderly that already live at the Heritage.
6. With an additional 60,000 square feet, the institution will roughly double in size. This will cause parking and traffic problems just like we see at the whole foods on Franklin and the one on 24th street and the trader joes on Masonic. Parking is always an issue on these new

projects. The parking in the neighborhood is already tight and Heritage workers routinely park without permits in the neighborhood.

7. Traffic at Bay and Laguna will get worse and more dangerous and that will flow over to the neighboring streets.
8. Most importantly. How can the Heritage change their frontage to Bay street to allow for a 2nd back yard. They have already built the 4 story Perry building in the rear yard with no set back. You only get one back yard.

Please keep in mind that the Heritage is a not for profit entity which means that it is TAX PAYER supported. As a local, Federal and California tax payer I should have more of a say than if this property were owned by an entity that pays its fair share of taxes. I am happy to discuss any of my concerns regarding the environmental impact of this proposal in person or by phone.

Sincerely,

David Lester
1561 Francisco St.
SF CA 94123

From: philip@philipmeza.com
To: Poling, Jeanie (CPC)
Subject: 3400 Laguna CEQA notice
Date: Monday, November 27, 2023 12:01:17 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

I am writing in response to the CEQA notification due December 1, 2023 about Heritage on the Marina's proposed project at 3400 Laguna Street. I have several environmental concerns regarding this project.

1. The part of the Marina occupied by the Heritage is zoned residential and the Heritage is permitted to operate by pre-existing exemption and variances. Granting a variance to build an additional 58,000 square feet will completely change the scale, scope and character of the neighborhood. It will truly become Institutional, no longer Residential as it is currently zoned.

2. The new buildings will conceal the Julia Morgan Building both at ground level and higher up because a 4+ story rectangle will not allow any view of the Julia Morgan building where there was previously a view. I suspect this is why the health care center building was only allowed to be one story high. The Perry building was built before the health care center and it was originally to be 3 stories then it was increased to 4 stories, so why would a building built after the Perry building only be 1 story? It seems likely that this was part of a Notice of Special Restriction No. 4506 (NSR) issued to the Heritage.

3. Part of what makes the Julia Morgan building so special is its integration with the gardens and open space. It was part of the architecture. This was a signature of Julia Morgan's designs. The current proposal would severely diminish the green space.

4. I am a big proponent of more housing in this City. However, adding only 23 super luxury units across nearly 60,000 new square feet does not accomplish that goal, especially because those units will only be occupied by one or two residents. Further, these units will not be accessible to everyone - no families, no working people and certainly no affordable housing; in fact, many of the Heritage residents are recruited from outside of San Francisco. If this project were truly residential, the proposed property would easily house over 300 people; as it stands, it will probably be under

100 residents because it is a very high end luxury retirement community with excessive amenities – supported with tax payer dollars as it is a 501c3 (not for profit organization).

Regards,

Philip Meza

From: Morgan Mohun-Gholson
To: Poling, Jeanie (CPC)
Subject: 3400 Laguna Street (2022-009818ENV) Concerns
Date: Friday, December 1, 2023 11:44:56 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Hi Ms. Poling,

I hope you've had a good week! I apologize for the late entry here (our family has been taken out with the flu this week and it's been terrible to play catch up), but hope that our concerns can be included in your analysis.

I am writing to you in regards to the Environmental Review notice for the project at 3400 Laguna Street (2022-009818ENV). While I am all for The Heritage updating their facilities to provide better care for their senior residents, my fundamental concern is the scale of the new structures and the impact throughout construction to not only the historically significant Julia Morgan building but the surrounding residential community.

There are several issues that would arise both during and after completion that will cause irreversible damage to the quality of life for residents and future residents.

The proposed renovation will be completed by 2029 (if completed in a timely manner) and over the next six years cause alarming environmental issues:

1. **Air pollutant exposure.** The site is in an Air Pollutant Exposure Zone, which puts nearby residents at risk of toxic airborne concerns (including the already more susceptible residents at the Heritage).
2. **Noise pollution.** Development is slated to last 6 years and is significantly larger than typical residential projects in the area (141,579 sqft vs. ~6000).
3. **Traffic and parking.** Loss of parking during this project is a concern for an already busy traffic and congested parking area as there are two major parks next to the facility. Laguna Street is busy with both vehicle and pedestrian traffic (requiring 3 crosswalks with flashing lights) and includes an active bus route.

The Heritage operates its historical and gorgeous Julia Morgan building as a senior living community and the proposed project would push it farther away from both the planning code and the character of the neighborhood. The project will require a variety of variance, waivers, and exceptions from code requirements as proposed.

1. **Loss of a historical resource.** The updated side and back buildings style

and size will engulf and detract from the historic Julia Morgan Heritage building – they will be significantly taller and physically shadow the Heritage building.

2. **Loss of open space.** Removing the existing trees and landscaping on the south side of the facility to put in a a structure that is double in size of the existing structure will completely change the makeup of Francisco street with it's warmth, nature, and beauty.
3. **Loss of light.** The homes along the south side of Francisco street will lose a significant amount of light due to the more than doubling in size of the facility.

I hope these points are helpful as you are making your decisions and thank you for your time and consideration on this project.

We greatly appreciate your time!

Warmly,
Morgan Mohun-Gholson

From:	Iyla Ollinger
To:	Poling, Jeanie (CPC)
Cc:	Stefani, Catherine (BOS); Horn, Jeffrey (CPC); Terry Peckham; Bart Draper
Subject:	Heritage Expansion Project
Date:	Wednesday, November 29, 2023 3:35:23 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Case No. 2022-0009819ENV; 3400 Laguna Street

Dear Ms. Poling,

I am writing to express my concerns about the potential environmental impacts of the Heritage on the Marina's project at 3400 Laguna Street. I understand that San Francisco Planning is currently accepting comments on the proposed scope of a CEQA environmental impact report, but I want urge the Department to also engage with the San Francisco Department of Public Health to ensure that Public Health in engaged in enforcement the Maher Ordinance with respect to this project.

This site appears on the Maher Map and is subject to the Ordinance. As the historic maps included in the Page & Turnbull Report[1] illustrate, this entire site was probably filled former bay or a marsh and creek area. The excavation for underground parking is proposed at some 15' feet in depth and will cover a wide area.

Based on these considerations, the San Francisco Planning Department should refer this project to San Francisco Department of Public Health for further consideration under the Maher Ordinance. This will ensure a more complete evaluation of the potential environmental impacts of this large and unnecessary development in predominately residential and recreational area.

Regards,
Iyla Ollinger

[1] Figures 51 and 52 (pages 36 and 37) in 3400 Laguna Street Historic Resource Evaluation, Part 1, San Francisco CA; Prepared for the San Francisco Planning Department by Page & Turnbull,; February 16, 2023

--
Iyla Amelie Ollinger

From: John Parsons
To: Poling, Jeanie (CPC)
Subject: 3400 Laguna Street Environmental Comments
Date: Sunday, November 26, 2023 6:05:51 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

I thought the Heritage was in a residential zoned area and it was allowed to operate by a variance? Adding many new, very large, buildings will severely impact the parks and neighborhood. It will change the look, take away green space and cover up the very important and iconic Julia Morgan building. I imagine the shadows the new buildings would cast would darken the area. It would create more traffic, trash, and parking problems. I also worry about a 3-year construction project that requires a lot of digging. Why would the current residents want this project?

I do not live in the immediate area anymore, but I frequently visit and I think it would be a shame to turn this block into a 'big institution'. And for what? I think we all want to add housing, but this is a waste, adding 58,000+ square feet for 23 very expensive rental units will create a tremendous burden on the environment for very little benefit to very wealthy people. Frankly, the people that can afford those units have plenty of options, let's build a retirement building for 150 'working class' people using the same resources!

Thank you,
John Parsons

November 24, 2023

Re: Case 2022-009819ENV

Jeanie Poling
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103

Ms. Poling,

I am in receipt of the San Francisco Planning Department's notice of preparing an Environmental Impact Report for the proposed massive expansion of The Heritage residential care facility at 3400 Laguna Street. While I am not against the The Heritage expanding their facility or replacing the outdated buildings at the rear and side, I believe strongly that the San Francisco Ladies' Protection and Relief Society, which operates the facility, has an obligation to the community to respect and preserve Julia Morgan Building, which anchors the site and is an architectural treasure.

Having lived in San Francisco for more than three decades, and across from The Heritage for more than 20 years, I support development within the Marina when accomplished in ways that contribute to the unique architecture and livability of our neighborhood, and complements the natural and historic features that make San Francisco's northern waterfront so special. Because it is too big, too monolithic and demonstrates complete disregard for our neighbors and neighborhood, I oppose The Heritage's current plan to double its size and crowd-out the historic mansion.

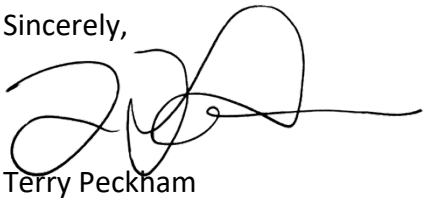
- Built as home "to render protection and assistance to strangers, to sick and dependent Women and Children" in the 1920s, The Heritage is still run by the San Francisco Ladies' Protection and Relief Society, whose mission as a non-profit has clearly shifted to serving the Bay Area's wealthiest and most affluent residents. Asked why The Heritage was being expanded, the society's CEO, Mary Linde, said flatly, "To increase our profits."
- The Heritage's leadership is, at best, being disingenuous with our community. The famed mansion, designed by Julia Morgan and completed in 1925, is the institution's entire marketing identity. Yet by cynically claiming to be moving their entrance to a new building on Bay Street, the society is clearly sidestepping regulations to preserve historic structures and will enable them to construct new buildings that dwarf the historic mansion.

- After having spent years reducing their number of units by converting studio- and one-bedroom units into larger suites, positioning this project as helping solve the city's housing shortage is deceitful, particularly considering how few San Franciscans could actually afford to live there.

In the 20+ years I have lived on Francisco Street, we have always considered the management of The Heritage to be a considerate and conscientious neighbor. However, with their new management team, the San Francisco Ladies' Protection and Relief Society has lost its way, having morphed into a profit-centric machine that shows little-to-no regard for their community or the historical asset their founders entrusted to them.

Clearly, given the low profiles and setbacks of the newer buildings, when The Heritage expanded in the late 1950s the Planning Department understood the intrinsic value of the Julia Morgan building to the city and community. Now, 60 years later, I urge the Planning Department to take the same cautious and respectful approach. I support The Heritage's desire to expand and update their facility, but ask that they be required to do so in a way that doesn't dwarf or encroach upon the Morgan structure and is more in harmony with the rest of the neighborhood.

Sincerely,



Terry Peckham
1563 Francisco Street
San Francisco, CA 94123

From: Christina Pedota Polidore
To: Poling, Jeanie (CPC)
Subject: Neighborhood Concern for 3400 Laguna Street Construction
Date: Tuesday, November 28, 2023 5:04:46 PM

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Dear Ms. Poling,

I trust this message finds you well. I write to express pressing concerns about the proposed project at 3400 Laguna Street (Case No.: 2022-009819ENV) in our beloved residential neighborhood.

The extensive excavation, totaling 150,000 cubic yards of dirt, raises alarm bells. This significant earth-moving activity not only threatens the historical Julia Morgan Heritage but also poses potential risks to the broader neighborhood.

Julia Morgan Heritage, designed by Julia Morgan in 1925, holds immense historical value for our community. Despite lacking formal recognition on historic registers, its cultural significance is indisputable. The proposed modern buildings, taller with flat roofs, could compromise the unique charm of the Heritage building. I urge exploring alternatives, such as reducing the project's size and carefully citing new additions to preserve the neighborhood's character.

The planned height of the new building, including elevator and utility penthouses exceeding 50 feet, raises concerns about shadowing over our cherished parks and recreational areas. A thorough evaluation of this issue is crucial to maintaining the accessibility and sunlight that define these spaces.

The extensive excavation, particularly in an Air Pollutant Exposure Zone, demands strict adherence to Health Code Article 38 regulations. Excavation activities are likely to generate air pollutants, requiring an Environmental Evaluation Application. Proactive measures must be taken to prevent potential toxin migration, given the proximity to a hazardous waste site at 1598 Bay Street.

Parking and traffic concerns are evident with the addition of 38 new parking spaces and a new curb. A comprehensive evaluation of the project's impact on parking availability, traffic flow, and neighborhood safety is essential.

The potential loss of open space and landscaping is disheartening. The proposed elimination of trees and landscaping in favor of a stark facade is concerning. Additionally, adding nearly 60,000 square feet of new building space seems disproportionate and out of harmony with the neighborhood.

Lastly, scrutinizing variances, waivers, and exceptions is crucial. Further deviations from the norms of our 100% residential neighborhood risk exacerbating discordance. Upholding existing code and preserving the neighborhood's integrity should take precedence.

I strongly urge the Planning Department to conduct a comprehensive environmental review of the proposed construction at 3400 Laguna Street in accordance with CEQA guidelines. The concerns outlined underscore the need for meticulous evaluation and community well-being.

Thank you for your consideration.

All the best,

Christina Pedota

From: Todd Polidore
To: Poling, Jeanie (CPC)
Subject: Regarding Proposed Construction Project at 3400 Laguna Street
Date: Tuesday, November 28, 2023 3:12:49 PM

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Dear Ms. Delumo,

I trust this message finds you well. I'm reaching out to share profound concerns about the proposed project at 3400 Laguna Street (Case No.: 2022-009819ENV) in our cherished residential neighborhood.

A primary worry centers around the substantial excavation planned, involving a significant 150,000 cubic yards of dirt. This extensive earth-moving activity raises concerns, not only regarding its potential impact on the historical Julia Morgan Heritage but also for the broader consequences it might bring to the surrounding neighborhood.

Julia Morgan Heritage, an architectural gem by Julia Morgan in 1925, holds considerable historical value for our community. Despite its absence from formal recognition on historic registers, its cultural significance is apparent. The proposed modern buildings, with increased height and flat roofs, pose a potential threat to the unique aesthetic of the Heritage building, possibly undermining its historical importance. I advocate for a thorough exploration of alternatives, such as reducing the project's size, incorporating sloped roofs, lowering the overall height, and carefully siting new additions to mitigate any adverse effects.

Additionally, the project's excessive height, including elevator and utility penthouses exceeding 50 feet, raises concerns about shadowing. Our neighborhood prides itself on vibrant parks and recreational areas, and the proposed height could cast significant shadows, diminishing the accessibility and sunlight that define these spaces. A detailed evaluation and addressing of this potential shadowing issue are crucial to preserving our community's enjoyment of these open areas.

The extensive excavation, particularly in an Air Pollutant Exposure Zone, necessitates strict adherence to Health Code Article 38 regulations. Excavation activities are likely to generate air pollutants, a matter that demands an Environmental Evaluation Application. Additionally, considering the proximity of a hazardous waste site at 1598 Bay Street, proactive measures must be taken to prevent potential toxin migration. As this excavation represents a substantial alteration to a sensitive-use building, our retirement home, robust mitigation measures throughout the process are imperative.

Parking and traffic concerns remain paramount. The addition of 38 new parking spaces and a new curb exacerbates existing challenges in our transportation infrastructure. A comprehensive evaluation of the project's impact on parking availability, traffic flow, and neighborhood safety is essential. Collaborative efforts to identify effective mitigation measures are crucial to prevent undue burdens on our community.

The potential loss of open space and landscaping is disheartening. Our neighborhood currently

enjoys beautiful trees and meticulously maintained landscaping, contributing to our street's aesthetics. The proposed elimination of these natural elements in favor of a stark facade is concerning. Additionally, the addition of nearly 60,000 square feet of new building space seems disproportionate and out of harmony with the neighborhood. Careful consideration, with a cautious approach to seeking variances or exceptions, is vital to preserve essential open space and maintain our community's character.

Lastly, the variances, waivers, and exceptions sought by the project should be scrutinized closely. Further deviations from the norms of our 100% residential neighborhood risk exacerbating discordance. Upholding existing code and preserving the integrity of our neighborhood should take precedence over further nonconforming use.

I strongly urge the Planning Department to conduct a comprehensive environmental review of the proposed construction at 3400 Laguna Street in accordance with CEQA guidelines. The concerns outlined, spanning the potential adverse impact on the historic resource, shadowing of parks, excavation-related air pollution and hazardous waste risks, parking and traffic burdens, loss of open space and landscaping, and conformity with code requirements, underscore the need for a meticulous evaluation.

Thank you for your dedicated consideration of these matters. I trust in your commitment to conducting a thorough assessment of the environmental impacts associated with this project and making informed decisions that prioritize the well-being of our community.

Warm regards,

Todd Polidore

December 14 2023

Jeanie Poling
Senior Environmental Planner
San Francisco Planning
49 South Van Ness Ave, Suite 1400
San Francisco, CA: 94103

Re: 3400 Laguna St, Heritage on the Marina

Dear Ms Poling

We understand that your department has received a letter dated November 30, 2023, from a resident at the Heritage on the Marina in San Francisco in regard to the Environmental Impact Report applied for by the management of the Heritage on the Marina.

However, there is no indication that this letter was actually written by a resident living at the Heritage on the Marina. The letter was not signed nor was there any indication of the apartment number that the letter writer occupied. The letter could just as easily have been written by someone living outside of the community of the Heritage on the Marina.

On behalf of the Residents' Council of the Heritage on the Marina we would like to go on record as giving our support for the Environmental Impact report as outlined by management of the Heritage on the Marina.

We all realize that remodeling and construction is never easy for anyone living in or near a construction project. However, management of the Heritage on the Marina has assured us that they plan to mitigate these problems as much as possible with possible alternative accommodations and other factors.
We are therefore going on record as fully supporting the management of the Heritage on the Marina in their application for a favorable outcome for their Environmental Application Report as being the best for all concerned in the long run.

Patrick Alexander
President, Residents' Council.
Telephone – 415-567-0419
Email baimp @earthlink.net

Rod Dugliss,
Vice President, Residents' Council
Telephone – 415-596-9504
Email rdugliss@gmail.com

Theo Armour
Secretary, Residents' Council
Telephone 415-828-0000
Email t.armour@gmail.com

Kathy Kirkpatrick
Treasurer, Residents' Council
Telephone 415-509-4445
Email kkirkpatrick1346@gmail.com

Residents' Council, Heritage
3400 Laguna St
San Francisco, CA 94123, USA

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Jeanie Poling
Senior Environmental Planner
San Francisco Planning
49 South Van Ness Ave, Suite 1400
San Francisco, CA: 94103

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From: Rosas, Lorenzo (BOS)
To: Poling, Jeanie (CPC); StefaniStaff, (BOS)
Cc: Wietgrefe, Wade (CPC)
Subject: RE: 3400 Laguna Street
Date: Thursday, November 2, 2023 1:09:22 PM

Hi Jeanie,

Thank you for letting me know. I don't have any questions currently. As I understand it, this is the notice that an EIR will be conducted. We have also been contacted by the project sponsors, so we will ask them for updates on the project.

Let me know if you have any questions for our office.

Thank you for your work!

Best,
Lorenzo Rosas | Legislative Aide
Office of Supervisor Catherine Stefani
San Francisco Board of Supervisors, District 2
City Hall, Room 273
(415) 554-7752
www.sfbos.org/Stefani

From: Poling, Jeanie (CPC) <jeanie.poling@sfgov.org>
Sent: Thursday, November 2, 2023 1:05 PM
To: StefaniStaff, (BOS) <stefanistaff@sfgov.org>; Rosas, Lorenzo (BOS) <Lorenzo.Rosas@sfgov.org>
Cc: Wietgrefe, Wade (CPC) <wade.wietgrefe@sfgov.org>
Subject: RE: 3400 Laguna Street

Hello Mick and Lorenzo,

Please let Wade and me know if you have any questions about the environmental review for this project.

Kind regards,
Jeanie

Jeanie Poling, Senior Environmental Planner
Environmental Planning
San Francisco Planning
49 South Van Ness Avenue, Suite 1400, San Francisco, CA 94103
Direct: 628.652.7559 | https://sfplanning.org/
https://sfplanningis.org/pim/

From: StefaniStaff, (BOS) <stefanistaff@sfgov.org>

Sent: Thursday, November 2, 2023 12:25 PM
To: Poling, Jeanie (CPC) <jeanie.poling@sfgov.org>
Cc: Rosas, Lorenzo (BOS) <Lorenzo.Rosas@sfgov.org>
Subject: RE: 3400 Laguna Street

(+Lorenzo)

Hello Jeanie,

Thank you for sending this over! I'm looping in my colleague, Lorenzo Rosas, who staffs the Supervisor on Land Use matters.

Regards,

Mick Del Rosario | Legislative Aide
Office of Supervisor Catherine Stefani
San Francisco Board of Supervisors, District 2
City Hall, Room 273
(415) 554-7752
www.sfbos.org/Stefani

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From: Poling, Jeanie (CPC) <jeanie.poling@sfgov.org>
Sent: Wednesday, November 1, 2023 1:19 PM
To: StefaniStaff, (BOS) <stefanistaff@sfgov.org>
Subject: 3400 Laguna Street

Hello,

The following documents regarding the proposed project at 3400 Laguna Street in San Francisco were published today.

> Notice of Availability of Notice of Preparation of an EIR
>
> Notice of Preparation of an EIR

Kind regards,

Jeanie Poling, Senior Environmental Planner
Environmental Planning
San Francisco Planning
49 South Van Ness Avenue, Suite 1400, San Francisco, CA 94103
Direct: 628.652.7559 | https://sfplanning.org/
https://sfplanningis.org/pim/

From: Tracie Rosen
To: Poling, Jeanie (CPC)
Subject: Case No. 2022-009819ENV Project Address: 3400 Laguna Street
Date: Saturday, December 2, 2023 10:12:08 AM

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Jeanie Poling
San Francisco Planning
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94108
jeanie.poling@sfgov.org

November 27, 2023

Re: Case No. 2022-009819ENV
Project Address: 3400 Laguna Street

Dear Ms. Poling,

I am writing to express my deep concern and opposition to the proposed building development at 3400 Laguna Street, also known as the Heritage on the Marina (the "Heritage"), which is slated to be add nearly 60,000 square feet in size and is intended to accommodate only 23 new residential units.

While I appreciate the need for urban development, I must voice my environmental concerns regarding this project, which I believe could have significant adverse effects on our community. These concerns encompass various aspects, including but not limited to traffic congestion, noise pollution, and the potential overshadowing of an existing architectural gem designed by Julia Morgan.

1. **Traffic Congestion**: Introduction of this amount of construction in our neighborhood raises apprehensions about increased traffic congestion. The current infrastructure may struggle to accommodate the influx of residents and vehicles, leading to disruptions in our daily lives and potential safety hazards. I am particularly concerned about both the impact of construction-related parking/congestion over the multi-year building timeline and the long-term impact of both reduced street parking as the Heritage intends to take away public space for its driveway and private bicycle parking as well as the burden on increased traffic and parking problems from the increase in employees, visitors and residents.

2. **Noise Pollution**: The construction and subsequent habitation of buildings of this scale will undoubtedly contribute to elevated noise levels in the area. This poses a considerable inconvenience to existing residents and could have adverse effects on their overall well-being. I am particularly outraged that the construction is intended to last for years and that it will be undertaken from 8 am to 7 pm. This is a quiet, residential community full of children, retirees, students and folks working from home. The Heritage provides housing for frail, elderly people. This is not a neighborhood or a population that should have to live with and next to a massive, almost industrial-sized construction project.

3. **Air Quality and Pollution**: The construction process and increased human activity associated with the new development may result in heightened air pollution, impacting the environmental quality of our community. I am also concerned about the impact of the proposed significant excavation that the Heritage wants to do as this has the potential for disturbing the stability of surrounding buildings. These are matters of great concern for those of us who value the health of our surroundings.

4. **"Burying" the Julia Morgan Mansion**: One of the most distressing aspects of this proposed development is the potential obscuring of an existing beautiful building designed by Julia Morgan. Her architectural contributions are integral to the character of our neighborhood, and the overshadowing of such an iconic structure would be a disheartening loss for our community. The Heritage's current plans basically encapsulate the mansion on three sides by contemporary 4-story buildings, which are not only higher than the mansion but also completely clashing in style.

I implore you to reconsider the scale and scope of the proposed development, taking into account the environmental and cultural implications it may have on our community. Collaborative efforts that prioritize sustainability, community engagement, and the preservation of our architectural heritage can pave the way for a more harmonious and mutually beneficial development.

Thank you for your time and consideration. I look forward to a thoughtful reassessment of the project that aligns with the values and well-being of our community.

Sincerely,

Tracie Rosen

TMR

From: Jay Stilwell
To: Poling, Jeanie (CPC)
Subject: 3400 Laguna - CEQA Concerns
Date: Sunday, November 26, 2023 12:21:55 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

In response to the CEQA/EIR notice I would like to voice my concern that the proposed building is certainly not worth the impact on the environment.

The City needs to build housing for ordinary people, not the ultra-rich! Why would a tax-exempt entity be allowed to build over 58,000 square feet for the benefit of 23 wealthy people? We need to spend City resources to affordably house the elderly and families. 58,000 square feet is an obscene amount of space for a handful of people and by definition this is bad for the environment. The construction phase is horrible for the environment – cement trucks idling for hours, pollution spewing trucks driving next to parks and playgrounds, massive digging creates dust, traffic, noise etc… for years! They say 2.5 years but probably much longer. The CO2 emissions alone from 58,000 square feet of building will eventually create tons of waste that will unnecessarily add to climate rise. And the materials used will leave a huge carbon footprint – Aluminum, Cement and Steel are some of the worst offenders. All for 23 wealthy people that can afford any retirement center in the Bay Area or the country for that matter. And if you think about it, the Heritage will probably spend over $40 million to add these 23 units, given this cost, all the amenities and common space, I cannot imagine what they need to charge residents to rationalize this investment. As a non-profit, and non-tax payer, they should be investing in the community, not just serving the ultra-wealthy. I think the founding SF Ladies Protection and Relief Society would be ashamed of its current mission!

Sincerely,

Jay Stilwell

VerPlanck HISTORIC PRESERVATION CONSULTING
530 Rockdale Drive
San Francisco, CA 94127

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Ms. Jeanie Poling, EIR Coordinator
San Francisco Planning Department
49 So. Van Ness Avenue, Ste. 1400
San Francisco, CA 94103

VerPlanck
HISTORIC PRESERVATION CONSULTING

Technical Memorandum: 3400 Laguna Street

To: Ms. Jeanie Poling, EIR Coordinator
San Francisco Planning Department
49 So. Van Ness Avenue, Suite 1400
San Francisco, CA 94103

From: Christopher VerPlanck, Principal
VerPlanck Historic Preservation Consulting
530 Rockdale Drive
San Francisco, CA 94127

CC: Stephen Williams; Jeffrey Horn

Date: 30 November 2023

Re: Comments on Notice of Preparation of Environmental Impact Report for 3400 Laguna Street (Case No. 2022-009819ENV)

Dear Jeanie,

My firm was retained by the Law Office of Stephen Williams to provide an opinion on Heritage on the Marina's proposed expansion of its Marina District campus at 3400 Laguna Street (APN 0471/003). I prepared this Technical Memorandum in response to Mr. William's request for a professional opinion regarding the project's potential impacts to the historic 1925 retirement home, which was designed by architect Julia Morgan. Although this building has no formal historical status at the local, state, or national level, the San Francisco Planning Department concurs with Page & Turnbull's February 16, 2023 Historic Resource Evaluation (HRE) Part 1 that finds the Morgan Building –as it is commonly known – to be a historical resource per the California Environmental Quality Act (CEQA). Given that, it is surprising that neither the Planning Department nor the project sponsor's team appears to have prepared an analysis of the proposed project for compliance with the Secretary of the Interior's Standards. Due to the apparent lack of such an analysis, this Technical Memorandum provides one in the pages below. In summary, it can be demonstrated that the proposed project does not comply with all 10 of the Standards – specifically Rehabilitation Standards 2, 9, and 10, which deal with additions and related new construction. As a project that does not comply with the Standards, it does not benefit from a regulatory presumption under CEQA that it would *not* have a significant adverse change on the resource. In particular, the overall size of the proposed new buildings will overwhelm the historic Morgan Building, which will be relegated to subsidiary status after the main entrance is relocated to the proposed new building facing Bay Street. Bafflingly, the project sponsor has provided very little information – almost none – in regard to what physical treatments the Morgan Building would undergo as part of this "repositioning." Finally, I believe that a project of this size and scope deserves a closer look at several other areas that are not proposed for

study in the Notice of Preparation of the Environmental Impact Report, in particular Transportation and Circulation, Noise, Shadow, Geology and Soils, and Hydrology and Water Quality.

Qualifications

I am a San Francisco-based architectural historian and historic preservation consultant. I hold an M.Arch.H., as well as a Certificate in Historic Preservation, from University of Virginia's Graduate School of Architecture. While attending UVA I interned as an architectural conservator at Monticello, where I personally restored the historic wood-sash windows in Thomas Jefferson's bedroom. Upon graduating from UVA, the Society of Architectural Historians awarded me its highest honor – the Sally Kress Tompkins Fellowship. This allowed me to intern at the Historic American Engineering Record (HAER) in Washington, D.C., where I completed measured drawings of several textile mill villages in Georgia and Alabama's Chattahoochee River Valley. In November 1997, I returned to the Bay Area to take a job at The Foundation for San Francisco's Architectural Heritage (now San Francisco Heritage). In 1999, I began working at Page & Turnbull, where I founded the Cultural Resources Studio. Since 2007 I have served as an independent historic preservation consultant. I meet the Secretary of the Interior's Professional Qualifications for architectural history and history. Finally, I have received several design awards, including from the California Preservation Foundation, San Francisco Beautiful, and the American Institute of Architects – Northern California Chapter.

As a freelance architectural historian/preservation consultant I have completed hundreds of historic resource evaluations, historic structure reports, National Register nominations, cultural resource surveys, and CEQA analyses in San Francisco. I am a locally recognized expert on the Marina District, having published a multi-part scholarly article on the neighborhood's history and architectural heritage in *Heritage News* in 2007.

Methodology

I visited 3400 Laguna Street on November 28, 2023. Prior to visiting the site I reviewed all of the background documents posted on the Planning Information Map (PIM), as well as several other documents provided by Mr. Williams. I have also reviewed publicly available drawings and publicity materials prepared by HKS architects, Page & Turnbull, and other consultants hired by Heritage on the Marina. Finally, I completed some research of my own into the history of the property, including reviewing Sanborn maps, historical newspaper databases, and contemporary building journals.

Regulatory Background

As mentioned, 3400 Laguna Street is not registered in any historic resource inventories at the local, state, or national level. In spite of its clear architectural and historical significance it is not a local city landmark. Nor is it listed in the California Register of Historical Resources (California Register) or the National Register of Historic Places (National Register). However, in 2017, Planning Department staff changed the property's status from Category B – "Unknown Age-eligible," to Category A – "Historic Resource Present." This change was evidently made in response to an earlier project application by the project sponsor.[1] The HRE prepared for this project found the property eligible for the California Register under Criterion 1 (Events) and Criterion 3 (Design/Construction), with a period of significance of 1925 to 1957.[2]

As the lead agency, the San Francisco Planning Department is responsible for determining whether the proposed project has the potential to have a significant adverse impact on the historic Morgan Building (and the associated landscaping and the Caretaker's Cottage) at 3400 Laguna Street. According to the Preliminary Project Assessment (PPA) prepared by the Planning Department in December 2022, the proposed project would require both the HRE Parts 1 and Part 2. In response, the project sponsor's historic preservation consultant, Page & Turnbull, revised its seven-year-old HRE Part 1, issuing the

[1] Property listing for 3400 Laguna Street, San Francisco Property Information Map: https://sfplanninggis.org/pim/, accessed November 22, 2023.
[2] Page & Turnbull, *3400 Laguna Street Historic Resource Evaluation Part 1 – Revised* (San Francisco: February 16, 2023).

revised report on February 16, 2023. This HRE confirmed the previous 2016 findings that 3400 Laguna Street appears eligible for the California Register under Criteria 1 and 3.

However, it does not appear that an HRE Part 2 has ever been prepared or published by the Planning Department because it is not posted on the PIM and has not been made available through other means. Assuming that an HRE Part 2 had been prepared but not published, I contacted the Planning Department to see if I could get a copy. Unfortunately, I have received no response to my inquiry. According to the December 2022 PPA:

> If required, the department will determine whether a consultant prepared HRE part 2 report is necessary. If a consultant report is necessary, it must be prepared by a qualified consultant selected from the department's historic resource consultant pool.[3]

Given the scale of the project and the sensitivity of the site, it seems unquestioned that an HRE Part 2 should be prepared. Such a document is critical to evaluate the potential impacts of the proposed project – chiefly because it will include an analysis of the project for compliance with the Secretary of the Interior's Standards for Rehabilitation (Standards). As mentioned, a project that complies with all 10 Standards benefits from a regulatory presumption under CEQA that it will not have a significant adverse impact on the resource.[4] In most cases, if a project meets the Secretary of the Interior's Standards for the Treatment of Historic Properties it can be considered categorically exempt from CEQA (14 CCR Section 15331).

Concise History of Heritage on the Marina

The organization that manages Heritage on the Marina is known as the San Francisco Ladies Protection and Relief Society. Founded in 1853 during the Gold Rush, the society was established to care for destitute women and children abandoned by their husbands. Originally located in the South of Market area, in 1860, the Society acquired an entire block bounded by Van Ness Avenue, Post Street, Franklin Street, and Geary Boulevard and built a residential facility for homeless young women and their children, as well as an industrial school.[5] Sixty three years later, the organization acquired most of the undeveloped block bounded by Bay, Octavia, Francisco, and Laguna streets in the Marina District. This site, which had previously been part of the 1915 Panama Pacific International Exposition, was chosen due to its proximity to Lobos Square (now the Moscone Recreation Center) and San Francisco Bay.[6] The society hired famed architect Julia Morgan to design a Jacobethan-style building that contained residential quarters for convalescent women and their children, as well as separate quarters for retired women. The fees were kept low enough so that most people could afford care at the home, and no one was turned away if they needed assistance.[7] Completed in 1925, the three-story, red brick building originally anchored a half-acre of formal gardens laid out with the assistance of Golden Gate Park superintendent John McLaren.[8]

The San Francisco Ladies Protection and Relief Society ran the home in this new location for 32 years with no changes. In 1955, the board of directors decided to convert the facility into a retirement home exclusively for elderly San Franciscans, including both men and women. In so doing it merged with the Crocker Old People's Home. The organization then hired architect Warren C. Perry – husband of board chair Joy Perry – to design a new residential building at the rear (east side) of the property to accommodate the residents from the Crocker Old People's Home. Originally only permitted for three stories, the society successfully applied to add a fourth story in 1957. Completed in 1958, this utilitarian concrete building –known today as the Perry Building – is attached to the back of the Morgan Building by a two-story linking wing called the Perry Building Connector. In 1959, the expanded retirement facility, which was renamed "The Heritage," could accommodate 100 residents in private rooms spread across both buildings. Four years later, the society constructed the one-story Health Care Center – designed by

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[3] San Francisco Planning Department, "Preliminary Project Assessment" for 3400 Laguna Street (December 2022), Appendix B3.
[4] California Office of Historic Preservation: https://ohp.parks.ca.gov/?page_id=21727, accessed November 28, 2023.
[5] Page & Turnbull, *3400 Laguna Street Historic Resource Evaluation Part 1 – Revised* (San Francisco: February 16, 2023).
[6] "Buyers' Identity becomes Known," *San Francisco Chronicle* (March 25, 1922), 11.
[7] "Aid Society in New Home," *San Francisco Chronicle* (May 15, 1925), 13.
[8] "New Home will be Opened by Old Society," *San Francisco Chronicle* (May 10, 1925), 55.

famed modernist architect Gardner Dailey – along Francisco Street. This addition was completed in 1963. Both the 1958 and 1963 additions were subject to conditional use authorizations, evidently because the facility is located on a residential block zoned for low-density uses.

Since 1963 The Heritage (later renamed Heritage on the Marina) has operated as a retirement home and skilled nursing facility. However, in recent years the management has been working to upgrade the facility in pursuit of a higher-paying clientele, combining many of the single rooms into suites and adding amenities such as classrooms, a beauty salon, and private gathering spaces. Due to these changes, the number of units has actually declined over the years, dropping from 100 in 1958 to 86 today. The cost of acquiring a spot at the home has consequently spiraled, with prospective residents required to pay a substantial "entrance fee," as well as monthly service fees. Presently, Heritage on the Marina is one of the most expensive retirement communities in the city. The proposed project appears to be largely geared toward maximizing the number of units on the campus as the institution completes its transition from a more modest skilled nursing facility into a deluxe at-home care facility.

Project Description

Heritage on the Marina's (Heritage) proposed "Repositioning" Project will transform the 98-year-old property from a retirement home with a substantial skilled senior nursing facility into a high-end "at-home care facility" for independent living.[9] The project will result in the demolition of the 1963 Health Care Center and the 1957 Perry Building Connector to make way for two new four-story buildings known respectively as the "Bay Building" and the "Francisco Building." Over 15,000 square feet of soil will be excavated from beneath the center of the campus to construct a subterranean parking garage, which will increase on-site parking from 17 to 36 vehicles. The new buildings will increase the residential capacity of the site from 86 to 109 units – an increase of only 23 – but it will almost double the square footage, which will increase from 83,000 to 142,000 sf. The two new buildings will rise to the maximum height limit of 40', although the elevator overrides and stair penthouses will rise to almost 50'. The Bay Building will be attached to the Morgan Building up to the second-floor level. Above this there will be a 10'-wide gap to the parapet. The Francisco Building will not touch the Morgan Building above-grade, but it will be set back from it by only about 10'. The former Caretaker's Cottage at the northeast corner of the site will be retained and converted into a residential unit.

The proposed project will result in the destruction of much of the remaining landscaping, including the Central Courtyard and most of the lawns, hedges, and trees along both Bay and Francisco streets. The existing Front Garden along Laguna Street will remain, as well as the Rear Courtyard, which is located behind the Perry Building at the center of the block.

To date it does not appear that the project sponsor has released any detailed architectural drawings showing the exteriors of the proposed new buildings. So far it appears that the project sponsor's architect, HKS, has only released basic site plans, simple massing diagrams, and rudimentary sections. It is not known if the lack of visual materials is due to the project sponsor fearing what people might conclude, but even what has been provided shows a drastically expanded building plant that will occupy a much larger portion of the site – both in area and in three dimensions – than what exists today.

As mentioned, the Bay Building will replace the existing two-story connector wing that links the Perry Building to the Morgan Building. It will contain the relocated main entrance as befitting the new building's position as the administrative hub of the "repositioned" campus. In addition, the Bay Building will contain a new dining room, a large industrial kitchen, and living quarters. In front of the new entrance will be a large driveway/drop off zone sheltered beneath a cantilevered wing. A pair of auto ramps to the left will provide access to the new subterranean parking garage beneath the center of the campus. To the left of the ramps will be a new loading dock/shipping and receiving area. The central part of the Bay Building will cantilever out over the pedestrian and auto entrances, creating a bulky new volume that will extend well past the Perry Building toward Bay Street. Extensive curb cuts will be required to accommodate vehicular circulation. On the other side, the Bay Building will extend into what is now the Central Courtyard,

[9] The Health Care Center has already closed.

significantly reducing the amount of ground-level open space. As mentioned, the Bay Building will be 40' high, with an elevator override that rises to 50'.

The four-story Francisco Building will replace the one-story Health Care Center at the south side of the property. It will be physically attached to the Perry Building at its east end and it will be functionally related to it, containing mainly residential units. The Francisco Building will be massed similar to the Perry Building, with a rectangular footprint and a flat roof – although the left (west) side will be configured so that it is set back from the Morgan Building by approximately 10'. Similar to the Bay Building, the Francisco Building will be 40' high with a 50'-high elevator override.

A handful of project renderings released by the project sponsor show the street-facing elevations of the proposed Bay and Francisco buildings broken down into discrete sections that are cloaked in Disneyesque cladding and ornament that allegedly represents various traditional architectural styles seen in this part of the city. Nonetheless, the detailing appears to be simply applied to the box-like buildings in a two-dimensional, surface treatment similar to a postage stamp – it does not seem to be a realistic attempt to diminish the apparent size of the buildings.

As mentioned, the proposed project will shift the main entrance of Heritage on the Marina from the Morgan Building on Laguna Street to the proposed new Bay Building. At this time it is not known if any physical impacts would result from the relocation of the primary entrance, but it will certainly change the spatial organization of the campus, reorienting it away from Laguna Street and the Moscone Recreation Center toward Bay Street and Fort Mason. In addition to relegating the Morgan Building to a position of lesser importance, it will reorient the campus from an east-west alignment toward an ahistorical north-south axis. In fact, this seems to be a deliberate attempt to make Francisco Street the "rear" of the campus. The purpose of this could be to avoid complying with mandatory setbacks, as well as justifying the construction of a much larger building on the site of the Health Care Center, which appears to have been limited to one story in a conditional use authorization (CU) issued in 1962.

The following sections analyze the proposed project for compliance with the Secretary of the Interior's Standards. Due to the fact that so little is known about the proposed physical treatment of the Morgan Building itself, this analysis is unable to provide any substantive commentary under several of the individual Standards. Project materials describe the treatment of the Morgan Building as "purely restorative," but it is not known what this means. Furthermore, there should be description and analysis of the relocation of the main entrance to Bay Street, as well as the potential impacts of conducting extensive excavation right next to the Morgan Building's foundation. Due to the lack of information in project drawings and ancillary materials, this analysis centers on potential visual impacts stemming from the massing of the proposed new buildings. And because the project site is located across the street from the National Register-listed Fort Mason Historic District and the California Register-eligible Moscone Recreation Center, potential visual impacts on these districts are considered as well.

Analysis of the Project for Compliance with the Secretary of the Interior's Standards

In the following sections, we analyze the proposed project for compliance with the Secretary of the Interior's Standards for Rehabilitation. The *Secretary of the Interior's Standards for Rehabilitation and Illustrated Guidelines for Rehabilitating Historic Buildings* (the Rehabilitation Standards and the Guidelines, respectively) provide guidance for reviewing work to historic properties.[10] Developed by the National Park

[10] U.S. Department of Interior National Park Service Cultural Resources, Preservation Assistance Division, *Secretary of the Interior's Standards for Rehabilitation and Illustrated Guidelines for Rehabilitating Historic Buildings, 1992*. The *Standards*, revised in 1992, were codified as 36 CFR Part 68.3 in the July 12, 1995 Federal Register (Vol. 60, No. 133). The revision replaces the 1978 and 1983 versions of 36 CFR 68 entitled *The Secretary of the Interior's Standards for Historic Preservation Projects*. The 36 CFR 68.3 *Standards* are applied to all grant-in-aid development projects assisted through the National Historic Preservation Fund. Another set of *Standards*, 36 CFR 67.7, focuses on "certified historic structures" as defined by the IRS Code of 1986. *The Standards* in 36 CFR 67.7 are used primarily when property owners are seeking certification for federal tax benefits. The two sets of *Standards* vary slightly, but the differences are primarily technical and non-substantive in nature. The *Guidelines*, however, are *not* codified in the Federal Register.

Service for reviewing certified rehabilitation tax credit projects, local governmental bodies across the country have adopted the Standards to review work to historic properties. The Rehabilitation Standards provide a useful analytical tool for understanding and describing potential changes to historical resources, including new construction inside or adjoining historic districts.

Conformance with the Rehabilitation Standards does not determine whether a project would cause a substantial adverse change in the significance of a historical resource under CEQA. Rather, projects that comply with the Standards benefit from a regulatory presumption that they would have a less-than-significant adverse impact on a historical resource.[11] Projects that do not comply with the Rehabilitation Standards may or may not cause a substantial adverse change in the significance of an historical resource and would therefore require further analysis by the San Francisco Planning Department to determine whether the historical resource would be "materially impaired" by the project under *CEQA Guidelines* 15064.5(b).

Rehabilitation is the *only* one of the four treatments in the Standards (the others are Preservation, Restoration, and Reconstruction) that allows for the construction of an addition or other alteration to accommodate a change in use.[12]

The first step in analyzing a project's compliance with the Rehabilitation Standards is to identify the resource's character-defining features, including characteristics such as design, materials, detailing, and spatial relationships. Once the property's character-defining features have been identified, it is essential to devise an approach that protects and maintains these important materials and features – meaning that the work involves the "least degree of intervention" and that important features and materials are safeguarded throughout the duration of construction.[13] It is critical to ensure that the new work does not result in the permanent removal, destruction, or radical alteration of any significant character-defining features. According to Page & Turnbull's HRE Part 1, the character-defining features of the Morgan Building include the following:

- Overall regular massing and intersecting hipped roof;
- U-shaped plan, consisting of central volume, north and south wings at east façade, and projections at north and south façades;
- Structural brick exterior walls;
- Slate roof shingles;
- Symmetrical arrangement of front façade, with central gabled parapet;
- Historic fenestration pattern, consisting of evenly spaced window openings with hierarchy among basement, first story and second story windows and upper dormer windows;
- Projecting canted bays;
- Hipped dormer windows at roof;
- Operable, divided-lite windows retaining historic configurations;
- Terra cotta details: window surrounds with vegetative motifs in segmental arches; decorative panels and entablatures at canted bays; belt courses above second level windows; projecting cornice with buttons at eave; coping and finial at central gabled parapet; double arched door surround at primary entrance vestibule;
- Arched ground-level door openings at ground level;
- Stained glass windows at interior chapel
- Additional historic design features: narrow blind niche and recessed diamond and square details in brick;
- Historic glazed doors within entrance vestibule;
- Three brick chimneys;
- Front double stairs with iron railing;
- Towers and penthouse at east façade;

[11] CEQA Guidelines subsection 15064.5(b) (3).
[12] Ibid. 63.
[13] Ibid.

- Rain catch baskets;
- Historic features in publicly accessible interior areas include:
    - Tile floor;
    - Central stairwell with trefoil railing;
    - Fireplace mantel;
    - Wood coffered ceiling.

In addition to the Morgan Building, Page & Turnbull correctly identifies the "front lawn" and the Caretaker's Cottage to be historic features of the campus. Appropriately, the list of character-defining features does not include the Perry Building, the Health Care Center, the Central Courtyard, the Rear Courtyard, or any other landscaping on the property.

The following section evaluates the proposed project for compliance with the Secretary of the Interior's Standards for Rehabilitation. As noted below, compliance with several Standards is not known because there is not enough information to make an accurate determination.

Rehabilitation Standard 1: *A property will be used as it was historically or be given a new use that requires minimal change to its distinctive materials, features, spaces and spatial relationships.*

The proposed project complies with Rehabilitation Standard 1 because the facility will continue to function as a retirement home.

Rehabilitation Standard 2: *The historic character of a property will be retained and preserved. The removal of distinctive materials or alteration of features, spaces and spatial relationships that characterize the property will be avoided.*

The proposed project does not comply with Rehabilitation Standard 2. The project calls for the construction of two new four-story buildings right next to the Morgan Building, which will greatly change the spatial relationships that characterize the property today. Originally built on a site consisting of almost a half-acre of gardens, over time most of the landscaping was lost to new buildings, including the Perry Building in 1957, the Health Care Center in 1963, and two smaller additions built in 1988. Although quite impactful given the loss of the original landscaping, the siting of these buildings was done in such a way that they do not impinge upon the historic Morgan Building – especially when viewed from Laguna Street. Although not especially attractive, the design of these two buildings is very simple and modest. This, combined with their brick-colored stucco and judicious placement of landscaping, renders them relatively inoffensive, allowing the Morgan Building to stand out like a jewel in a seemingly pristine landscaped setting. In contrast, the proposed new four-story buildings will be built right up to the edges of the Morgan Building and they will be much larger in regard to both footprint and volume. They will also be quite visible from Laguna Street, as well as the Moscone Recreation Center and Fort Mason. The proposed new buildings will inappropriately "bookend" the Morgan Building – diminishing its prominence on the site and putting it into shade between two much larger buildings. Although the design of the new buildings does not appear to be finalized, what renderings have been published illustrate a very busy and complicated design that will visually compete with the Morgan Building.

In regard to the Caretaker's Cottage, the proposed project will convert it into a single-unit dwelling. Although not much detail is provided in project drawings on how the exterior will be treated, it appears that the cottage and its immediate context will undergo few changes.

In regard to the landscaping, the original gardens installed when the Morgan Building was built are mostly gone – eliminated by the construction of the Perry Building and the Health Care Center, as well as the incremental "modernization" of the Central Courtyard and the Rear Courtyard. The proposed project will leave the Front Garden – which is largely original – essentially unchanged. It will also not change the Rear Courtyard. The rest of the landscaping, including most of the lawn panels and trees along Bay Street, and the hedge along Francisco Street, will all be removed and/or reconfigured.

Rehabilitation Standard 3: *Each property will be recognized as a physical record of its time, place and use. Changes that create a false sense of historical development, such as adding conjectural features or elements from other historic properties, will not be undertaken.*

The proposed project complies with Rehabilitation Standard 3 in that no conjectural features or elements from other historic properties will be added to either the site or to the Morgan Building.

Rehabilitation Standard 4: *Changes to a property that have acquired historic significance in their own right will be retained and preserved.*

The proposed project complies with Rehabilitation Standard 4. According to Page & Turnbull's HRE Part 1, the period of significance for the Morgan Building is 1925 to 1957, so no later changes to the property have gained significance in their own right, including the Perry Building, the Health Care Center, or the two smaller 1980s-era additions. As discussed, the project will only demolish buildings constructed after the end of the period of significance, including the Perry Building Connector and the Health Care Center – neither of which has gained significance in its own right.

Rehabilitation Standard 5: *Distinctive materials, features, finishes and construction techniques or examples of craftsmanship that characterize a property will be preserved.*

At this time it is not known whether the proposed project would comply with Rehabilitation Standard 5 because the project sponsor has not provided any information on what specific treatments will be performed on the Morgan Building.

Rehabilitation Standard 6: *Deteriorated historic features will be repaired rather than replaced. Where the severity of deterioration requires replacement of a distinctive feature, the new feature will match the old in design, color, texture, and, where possible, materials. Replacement of missing features will be substantiated by documentary and physical evidence.*

At this time it is not known whether the proposed project would comply with Rehabilitation Standard 6 because the project sponsor has not provided any information on what specific treatments will be performed on the Morgan Building.

Rehabilitation Standard 7: *Chemical or physical treatments, if appropriate, will be undertaken using the gentlest means possible. Treatments that cause damage to historic materials will not be used.*

At this time it is not known whether the proposed project would comply with Rehabilitation Standard 7 because the project sponsor has not provided any information on what specific treatments will be performed on the Morgan Building.

Rehabilitation Standard 8: *Archeological resources will be protected and preserved in place. If such resources must be disturbed, mitigation measures will be undertaken.*

At this time it is not known whether the proposed project would comply with Rehabilitation Standard 8. What is known is that it will require the excavation of at least 15,000 square feet of soil in what the Planning Department's Preliminary Project Assessment (PPA) describes as an "archaeologically sensitive area." According to the PPA, Planning staff will conduct a "preliminary archeological review," but it is not known if this has been completed, and if it has, what conclusions have been reached.

Rehabilitation Standard 9: *New additions, exterior alterations, or related new construction will not destroy historic materials, features, and spatial relationships that characterize the property. The new work shall be differentiated from the old and will be compatible with the historic materials, features, size, scale and proportion, and massing to protect the integrity of the property and its environment.*

The proposed project does not comply with Rehabilitation Standard 9. As described in previous sections, the project would result in the replacement of the two-story Perry Building Connector with the four-story Bay Building, and the one-story Health Care Center with the four-story Francisco Building. Both buildings will occupy larger footprints than the buildings that they will replace and both will rise to 40' – the maximum height limit for this area. Furthermore, the elevator overrides and stair penthouses will bring the highest parts of the new buildings up to 50'. In contrast, the Morgan Building is only three stories high. In terms of usable square footage, the proposed project would increase the site's capacity from 83,197 sf to 141,579 sf, an increase of 41 percent. Although the project sponsor has not provided detailed drawings showing what the new additions will look like, it is very clear that their exteriors will both be eminently visible from the surrounding streets and parks, including the National Register-listed Fort Mason Historic District and the California Register-eligible Moscone Recreation Center. What is now a fairly open composition with lots of breathing room around the Morgan Building will be converted into an intensely urban environment with much larger buildings hemming in the Morgan Building from three sides and eliminating most ground-level open space.

Finally, there is not enough information on the exterior cladding materials, fenestration patterns, and architectural styling to comment on the new buildings' compatibility with the Morgan Building or the surrounding neighborhood. However, what renderings have been published indicate that the street-facing façades of both buildings will be exceedingly "busy" and complicated, with a variety of pseudo-historical façade treatments applied to their box-like exteriors in order to "blend in" with the varied residential character of the Marina District. However, it seems that the aesthetic treatment proposed is little more than applying "lipstick to the pig." A more detailed study should be made of the surrounding blockfaces in order to come up with a design that is more compatible with the character of the surrounding buildings.

Rehabilitation Standard 10: *New additions and adjacent or related new construction will be undertaken in such a manner that, if removed in the future, the essential form and integrity of the historic property and its environment would be unimpaired.*

The proposed project does not comply with Rehabilitation Standard 10. Although the Bay and Francisco buildings could be demolished in the future, the site will have been so radically changed through extensive excavation and open space removal that it would be exceedingly difficult to restore the essential form and integrity of the property.

Conclusion

Altogether, the proposed project complies with Standards 1, 3, and 4. It does not comply with Standards 2, 9, or 10. Currently there is not enough information to determine if the project would comply with Standards 5, 6, 7, or 8. While it is possible that the project could end up complying with the majority of the Standards, failure to comply with Standards 2, 9, and 10 is significant and almost certainly a "deal breaker" from the perspective of CEQA because these three standards are all concerned with the construction of additions and related new construction. As a project that does not comply with all 10 of the Standards, it does *not* benefit from a regulatory presumption that it would *not* have a significant adverse effect on the environment. Furthermore, in my opinion, the project would likely have a significant adverse effect on the resource and a significant adverse impact on the environment. Finally, I believe that a project of this size and scope deserves a closer look at several other areas that are not proposed for study in the Notice of Preparation of the Environmental Impact Report, in particular Transportation and Circulation, Noise, Shadow, Geology and Soils, and Hydrology and Water Quality.

Please do not hesitate to contact me if you have any questions.

Sincerely,

Christopher VerPlanck

From: Mia Walker
To: Poling, Jeanie (CPC)
Subject: 3400 Laguna St environmental and historical impact -comments
Date: Monday, November 20, 2023 8:39:51 AM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling,

Anytime nearly 60,000 square feet are built the impact on the environment is tremendous. The digging, the dust, the diesel trucks idling are all horrendous for the environment. The permanent environmental impact of such a large building is also a worry. Will this project be required to maintain a LEED Zero certification? I think it should since it will be built from scratch and since it is 501c3 supported by taxpayers.

The other concerning part of this project is the damage it will do to the Julia Morgan building. Although they say they will not alter the building itself, it will alter the setting such as the gardens, also, it will be covering up and therefore diminishing the Julia Morgan building's beauty and importance. The proposal is to surround the Julia Morgan building with giant walls on all sides of the property (2 new ones and there is already a wall on the back of the property).

This is a building that should be on the California and National Register for Historic Buildings, and probably will be. Julia Morgan is one of the greatest architects of her generation, a generation that did not welcome women. Ms. Morgan was an iconic architect and a role model for all women, which makes it even more important to preserve her legacy and one of the best examples of her work.

Regards,

Mia Walker

November 29, 2023

Jeanie Poling
SF Planning Dept.
49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103

RE: Critical Concerns Regarding Proposed Project at 3400 Laguna Street

Dear Ms. Poling,

I trust this message finds you well. Having received the Notice of Preparation of an EIR for the proposed project at 3400 Laguna Street, I feel compelled to bring forth my concerns. As a dedicated resident of the vibrant Marina neighborhood in San Francisco, I implore the SF Planning Department to thoroughly consider the community's apprehensions and proposed amendments.

The proposed project's sheer magnitude not only disrupts the neighborhood's essence but also raises substantial concerns aligned with CEQA guidelines. Allow me to underscore the key issues:

Transportation: The chosen site, positioned at the intersection of Bay and Laguna, is already grappling with existing traffic and parking challenges. Several essential Muni lines (43, 28, 30) servicing the area would undoubtedly face disruptions. Notably, the crosswalk at the southwest corner (Francisco and Laguna) poses an increased risk to pedestrians with amplified traffic.

Hazards/Hazardous Materials: The project's extensive demolition and excavation plans for 60+-year-old buildings heighten concerns about potential hazardous materials such as asbestos. The site's proximity to a former PG&E location with toxic soil further exacerbates worries about encountering unidentified hazardous materials during excavation.

Noise Pollution + Recreation: With a projected timeline of 6+ years, the proposed project threatens severe disruptions to the surrounding neighborhoods, particularly impacting vital recreational spaces like Moscone Park and Fort Mason. These areas, integral for sports leagues, weekly Farmer's Markets, and social gatherings, stand to bear the brunt of prolonged noise and pollution. Additionally, considering the growing trend of remote work, the project's impact on community members' mental health and economic contributions is a matter of significant concern.

Cultural Resources: The proposed project's considerable impact on the Julia Morgan-designed building, once the primary site for the San Francisco Ladies' Protection and Relief Society, is disconcerting. Visual and structural consequences from the construction of towering buildings

surrounding it, coupled with deep excavation work, pose a tangible threat to the preservation of this invaluable cultural resource.

Having cherished the Marina as my home for over 10 years, I am eager to see it progress in a manner that respects its unique character. While I recognize the importance of development, the current proposal appears disproportionate and at odds with the Marina's distinctive charm.

Thank you for your attention to these concerns. I look forward to gaining further insights into the SF Planning Department's evaluation process.

Sincerely,

Jillian Williams
Marina Resident

From: kwms6@aol.com
To: Poling, Jeanie (CPC)
Subject: Case No. 2022-009819ENV. 3400 Laguna Street, San Francisco
Date: Wednesday, November 29, 2023 10:57:46 AM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Dear Ms. Poling:

I am writing this letter to list my concerns about the environmental impact that the 3400 Laguna Street project will have if approved. Some of my family has lived in this neighborhood for over 10 years.

Let me start by saying that preparation for expansion of this location has been very secretive for quite some time, and the owners/neighbors were not brought into the real goal and objective of the expansion plan until a meeting in April 2023, well after plans were gelled with the development team. Bottom line, there is little concern for the environment or the neighborhood because the objective is, by their own admission, "**more money"** and they advised us that they "cannot commit to our concerns."

1). The Julia Morgan building, built in 1925, will be desecrated and overwhelmed with more modern buildings, which will tower over and shadow its beauty and historic significance. The flat roof lines will appear inconsistant to the current sloping gables. The Julia Morgan building is part of a great architect's legacy SF's history and should not be allowed to be compromised with the size and height of this project. This is supposed to be a residential zoned area, but these plans for expansion certainly will change that into institutional. The beautiful garden landscape will be compromised as well. Another concern is when 150,000 yds of dirt is excavated, the Julia Morgan Building, along with other surrounding buildings could be compromised with possible sinkhole consequences.

2). Parking
It is already challenging to secure parking for our guests or for those who wish to enjoy the parks in the Marina. With the expansion of the current site, parking will be next to impossible with added visitors. Any new parking spaces and a new curb will add new traffic and congestion to the neighborhood. Loading docs will also have negative impacts as driveways will be blocked or street passage will be challenging.

3). Traffic and congestion
This is a lengthy project--estimated to take 4-6 years for completion. Many projects go far past their estimated timeline and completion goals. This is a real fear and will cause additional stress for owners/neighbors who may have to already tolerate construction according to the original completion date. The additional traffic from construction vehicles and dump trucks will make life unlivable and extremely stressful for the neighborhood for many years! Currently, neighbors must tolerate the existing staff taking smoke breaks and making excessive loud cell phone calls outside of the building. This will only increase with the constant comings and goings of construction workers.

4). Noise
Four-six years of construction will provide constant noise and sleeplessness to the owners/neighbors as well as to the current residents of the facility. Many owners/neighbors work from home, using current meeting technology such as Zoom or Teams and the noise will be a constant disruption to work. The ongoing noise for so many years will be more than a nuisance; it could and will cause mental health issues to those living in the neighborhood. For the current residents, it will provoke indescribable stress.

5). Air Pollution
The excavation is in excess of 29,000 cubic feet. With research, it has been discovered that this site is in an Air Pollutant Exposure Zone and is subject to Health Code Article 38. The Heritage is a sensitive use building and must comply with the Health Code. There is a site nearby at 1598 Bay Street, from which toxins may have migrated. Robust excavation could provoke toxins for the neighborhood, let alone the elderly residents.

6). Height and size of the new structure
The building is near two parks and recreational areas and will overwhelm and shadow both areas. The elevator and utility penthouses will exceed 50 feet in height. Additionally, the height of the proposed wall at effectively 5 stories high will destroy the character of the neighborhood and shadow many of the current buildings/residences, robbing the owners/neighbors of sunlight.

7). Additional housing? Because of the investment into expansion, the units will be very costly, attracting wealthy residents from outside of the City. Only twenty-three new units is not worth the many years of construction and will serve very few. The historical mission for this location was to serve dependent women and children. There is a change in the Heritage's overall strategy, which will not provide for affordable housing, but rather will serve the wealthy.

Please consider these many concerns as you evaluate the environment impact of this massive project. The disruption in the lives of the neighbors/owners will be unbearable. This is not a project that can be completed in a short window of time. And in the end, there will only be 23 new units available. Many stressful years of construction in the neighborhood is torture and is unjust to the quality of life for this beautiful community, and shows little regard for the preservation of treasured architecture and landscaping in San Francisco.

Thank you for your time and consideration.

Kathleen Williams
1549 Francisco St, SF 94123

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Jeanie Poling, Senior Environmental Planner
San Francisco Planning Department
1660 Mission Street, Suite 400
San Francisco, CA 94102

December 1, 2023

RE:	**Comments on Proposed Project for Preparation of an Environmental Impact Report**
PROJECT:	**Demolition of Existing Buildings and New Construction; Urban In-Fill---Sensitive Use Development**
CASE NO.	**2022-009819ENV**
ADDRESS:	**3400 Laguna Street (Heritage on the Marina)**
BLOCK/LOT	**0471/003**
ZONING:	**RM-1 Residential-Mixed, Low Density Use District**

Ms. Poling:

INTRODUCTION

I have been retained to represent more than a dozen of the neighbors of the proposed project at 3400 Laguna Street, commonly known as the "Heritage on the Marina" (hereinafter "Heritage"). These comments are submitted in response to the Public Notice of Preparation of an Environmental Impact Report issued by your office on November 1, 2023, with a Comment Deadline for the EIR of December 1, 2023.

Heritage is a non-conforming use in a residential neighborhood, and the proposed plan to expand the facility by nearly 60,000 square feet including an extraordinary excavation of more than 15,000 cubic yards, and a "repositioning" or "realignment" of the existing structure to create a new rear yard area under the Planning Code is of great concern to the surrounding residents. As set forth below, Heritage is currently in violation of its approvals to operate in the neighborhood. It is currently in violation of its conditional use authorizations and the very code provisions which allowed it to remain in the neighborhood for all these years. Approval of the Project would place the Heritage even further out of compliance and conformity with the Planning Code and General Plan. The negative environmental impacts on the neighbors and the neighborhood of such a project are certain and predictable and must be carefully considered and mitigated or reduced.

Having a large residential/commercial enterprise in a residential neighborhood is always a difficult, situation for residents, but the proposal to nearly double the developed and working square footage at the Heritage is a shocking development to the neighbors. The project is poised to completely change the visual character of the neighborhood and will eliminate huge areas of open space, landscaping, and greenery, will a have profound negative visual impact on the historic resource of the Heritage building and will cast shadows on the adjacent public recreation area, Moscone Park Playground and Recreational Fields.

Part of the proposal is to construct a solid nearly unbroken wall of a forty-foot (40'), plus penthouses to fifty-five feet (55') building along Francisco Street, which is 100% residential. In addition to the bulk and overwhelming mass of the proposed project, there are also design and

character concerns, mostly related to the monolithic new four-story building planned for the entire length of the Francisco Street frontage which will overwhelm, shadow, and loom over the historic Heritage building and the neighbors. The roof top appurtenances planned for that new building will push its actual physical height well over fifty (50') feet, notwithstanding how the new building's height may be measured under the Planning Code. The proposal is startling and inappropriate for the neighborhood and will create and cast new extensive shadowing on Moscone Field and Fort Mason Park which are directly across Laguna Street (Moscone) and across Bay Street (Fort Mason). Further, under CEQA, the project (and facility) descriptions are not complete or accurate.

The neighbors previously requested the Dept to revisit the Preliminary Project Assessment because the application and project plans were incomplete, lacked basic, mandatory information (such as elevations) and mischaracterized the project as non-residential. This is a crucial distinction and change of direction, the application for the proposed project is directly contrary to how Heritage has previously characterized its facility and its' expansions in past applications (as residential) and contrary to the facts and past practices at the site. The attempt to transform what has always been a residential development into a non-residential development is purposeful by the applicant to escape mandatory obligations under the Planning Code to provide affordable housing and other community benefits. The Department must NOT allow this slight hand maneuver by the applicant and must mandate honest, consistent treatment of the site in keeping with the long history of development and expansion at Heritage.

The proposed project is extraordinary and exceptional just by its proposed massive addition in this well-established residential neighborhood, but it will also have negative impacts on the historic Heritage building and will shadow two parks. Such overwhelming impacts demand mitigation. Finally, the Department should not consider reviewing and approving a new expansion project at Heritage unless and until Heritage is brought into compliance with the Planning Code and General Plan. Heritage has for many years illegally and unfairly expanded its facility by acquiring nearby properties (not included in the project or facility description) and has incorporated these residential units into the facility without permits, applications or a change to its conditional use status.

1. **Heritage Is in Stark Violation of Its Conditional Use Status, the Planning Code, and the General Plan---No New Project and Expansion May be Considered or Approved**

In a manner strikingly similar to that employed illegally and improperly by the infamous Academy of Art University, Heritage has acquired buildings that are zoned and permitted for residential use as apartments and other residential purposes, only to cavalierly convert those buildings unlawfully into part of its residential care facility. These unlawful actions by Heritage have deprived the City and the community of critical housing stock, especially affordable rent-controlled housing. Heritage has overtaken at least three buildings adjacent to its property and has taken at least ten (10) residential units. Heritage has done all of this for many years without seeking or receiving the required authorization for the changes to its conditional use authorization or operating permits from the Planning Department.

At a time when San Francisco is confronting a severe housing shortage, especially affordable rent-controlled housing, Heritage has illegally converted these units to its residential care facility use, exacerbating the already scarce supply of affordable housing. The Department should not even consider allowing Heritage to exponentially expand its facility with a new proposed project until it is brought into compliance with the Planning Code and General Plan, and it returns the many housing units it has unlawfully displaced to the San Francisco housing stock. By unilaterally taking over this housing stock without permits or authorization Heritage is in violation of the City's Administrative Code, Planning Code, and Building Code as well as in violation of its existing conditional use authorization and permitted use in the residential neighborhood in which it is

located. The zoning for the Heritage site is not compatible with the zoning for the adjacent buildings it has taken over. Heritage must divest itself of the buildings or obtain a new conditional use permit and an amendment to the Planning Code.

The housing units unlawfully taken over by Heritage and subsumed into its facility are as follows:

1536-1538 Francisco Street (Block/Lot: 0471/002E)	(4 Units)
1530 Francisco Street (Block/Lot: 0471/002D)	(3 Units)
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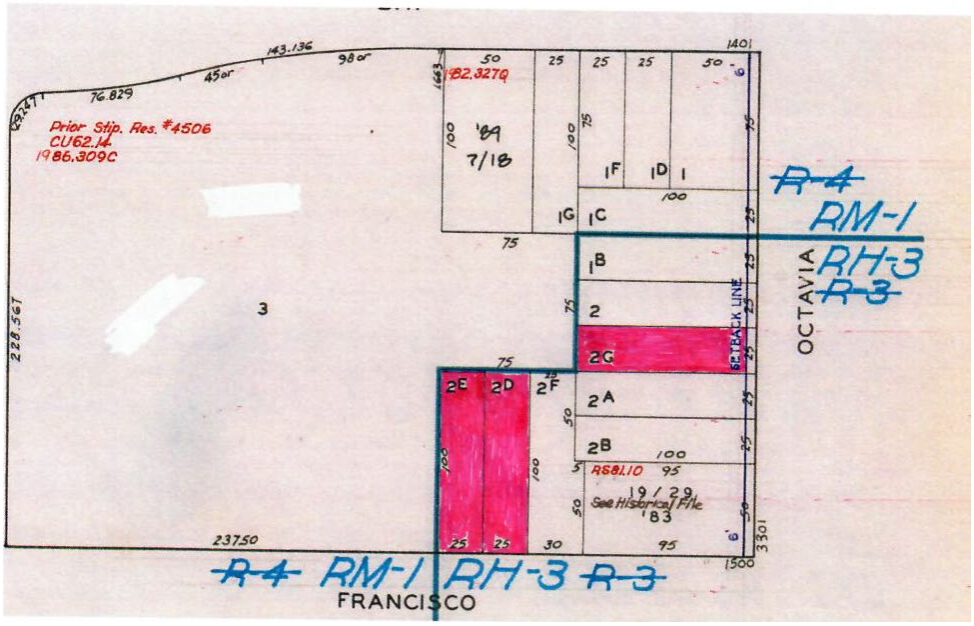
As shown in the Block Map below, the three buildings (ten housing units) illegally taken over by Heritage and folded into its facility, although adjacent to Heritage, are zoned differently (shown in red). This is "institutional creep" at its worst and no new project may be approved until these violations are resolved. Heritage has illegally "swallowed" these properties into its facility.



Heritage brazenly advertises these properties as part of its sales pitch to new would-be residents. With regard to offering these properties for occupancy, its website states as follows:

"*Francisco Street & Octavia Street Apartments*

Heritage on the Marina has three additional properties for active adults 65+ on Francisco Street and Octavia Street. These apartments offer the same great full-service amenities, 1- or 2-bedroom apartments, with full kitchens, washers and dryers, flexible security and 30 meals a month."

The proposed current massive expansion project sought by Heritage, coupled with its current and on-going violations will cause new significant environmental impacts due to a conflict with the City's established land use plan, housing policies, and regulations that were adopted for the purpose of avoiding or mitigating an environmental effect such as that being caused by Heritage—loss of housing and conversion of residential units to commercial, institutional uses. Heritage must be required to work cooperatively with the City (and the community) in planning for future growth in a manner that accounts for the urban nature of its facility, without adversely impacting the City's affordable or rent-controlled housing stock, or burdening its transportation system, including, as a

part of that plan, building new housing, or converting existing buildings, for its residents on property that is zoned for such use.

Because each of the above properties is being used in violation of the Planning Code, each is therefore unlawful and a public nuisance. SF Planning Code Section 176(a). Each of these properties is in a RH-3 (Residential, House Three-Family) Zoning District which differs from the Zoning District for Heritage which is RM-1 Residential-Mixed, Low Density Use District. The RH-3 Zoning District allows some group housing and residential care facilities; however, a building permit and conditional use authorization are required to permit such uses or to expand the Heritage use beyond its Zoning District. The conversion and loss of housing units to an institutional use also requires a building permit and conditional use authorization under Planning Codes Sections 171, 209.1, 303 & 317.

The Project Description Must be Rewritten to Include the Merger of Ten Units of Housing

Heritage does not include in its project description the acquisition of the ten (10) units of housing and the commercial exploitation and use of those housing units in its institutional facility. The project description is not accurate or complete. Heritage states it has "five existing buildings" when in fact it has eight (8) buildings because of the nearby apartments it has illegally made part of its facility. The gross square feet of the facility is also inaccurate as it does not include the additional three buildings. A conditional use authorization is required for the loss and merger of the ten units of sound affordable rent-controlled housing because the policy is to RETAIN such housing in the general housing stock. The loss of such housing to a merger into Heritage cannot possibly be found to be *"necessary and desirable"* for the community as is needed for a conditional use authorization. The loss of the housing to Heritage is directly contrary to all controlling public policy—and is a slap in the face of the public in the middle of an affordability crisis.

Retention of this type of affordable rental housing is the highest priority policy and a keystone to every plan to fight the affordability crisis in San Francisco. The loss of this housing to Heritage is contrary to the Mayor's Executive Directives, contrary to the General Plan and contrary to the controlling policies of the Housing Element all of which mandate the retention of the existing buildings in the general housing stock. There is no policy that might allow this type of sound, affordable housing to be merged and "exchanged" for new, market rate luxury retirement housing and to be subsumed into the Heritage facility. Once this type of housing is merged and taken from the housing stock, it is gone forever. There is a finite supply of this type of housing and the policies of the City demand its retention outside of Heritage.

Heritage is in Violation of its Conditional Use Authorizations and New Ones Cannot Be Granted for the Merger of Ten (10) Sound, Rent-Controlled Units –ALL Housing Policies Mandate Preservation of the Existing, *Naturally Affordable* Rent Controlled Housing Stock

San Francisco's highest Priority Policies are enumerated in the General Plan. Further, to the extent some policies may clash with others, (for example—the creation of new housing vs. retention of existing housing---such as here) the two policies that are to be given primacy are:

- **That the City's supply of affordable housing be preserved and enhanced.**
- **That existing housing and neighborhood character be conserved and protected in order to preserve the cultural and economic diversity of our neighborhoods.**

This directive is also found in the Housing Element of the General Plan and these two policies form the basis upon which inconsistencies in the Housing Element and in other parts of the General Plan are to be resolved. Approval of this project violates numerous crucial and primary policies. The EIR must address and resolve the environmental impacts of the loss of such housing and the stark violations of the Planning Code, Housing Element and General Plan.

HOUSING ELEMENT

Objectives and Policies

OBJECTIVE 3: PROTECT THE AFFORDABILITY OF THE EXISTING HOUSING STOCK, ESPECIALLY RENTAL UNITS.

POLICY 3.3

Maintain balance in affordability of existing housing stock by supporting affordable moderate ownership opportunities.

POLICY 3.4

Preserve "naturally affordable" housing types such as smaller and older ownership units.

The ten units lost here to merger into Heritage are considered to be "naturally affordable" as described in policy 3.4 of the General Plan's Housing Element as being smaller rent controlled dwelling units. These units are all subject to the Rent Stabilization and Arbitration Ordinance, as the buildings were all constructed prior to 1979.

Endorsement of the proposed project would eliminate ten (10) naturally affordable units that are subject to rent control and replace them with luxury retirement market rate units that would not be subject to the Rent Stabilization and Arbitration Ordinance contrary to the policies and directives from the Mayor's Office to address the city's housing crisis. The proposed project is inconsistent with the objectives and policies of the General Plan and does nothing to protect affordability of the existing housing stock especially rental units and does nothing to maintain the balance of affordability or for moderate ownership opportunities---quite the opposite.

The elimination of ten functional "naturally affordable" rent controlled dwelling units by merger is contrary to the General Plan as well as to the Department's and the City's priority to preserve existing sound housing and to protect naturally affordable dwelling units. The proposed loss of the ten dwelling units is counter to the mayor's executive directives, which call for the protection of existing housing stock. The mayor has directed the Department to adopt policies and practices that encourage the preservation of existing housing stock.

The proposed project may not be approved because it endorses the removal and replacement of ten naturally affordable units and is contrary to the priority principle of housing unit retention. The current housing affordability crisis creates an exceptional and extraordinary circumstance such that the Department should deny the project unless or until moves are taken by Heritage to return the existing units. The General Plan and the Priority Policies make it clear that Heritage cannot "trade" the existing rent-controlled housing on the site for additional units of luxury retirement housing.

The business practices of Heritage violate these polices and initiatives to protect the existing housing stock. The requested EIR (and new conditional use authorizations) must resolve these

issues and approval cannot be granted in the face of this overwhelming policy mandate. The loss of ten units of existing rent-controlled housing and the permanent loss of the opportunity to create more such housing cannot possibly be "necessary and desirable" in the City of San Francisco at this time and no mitigations can address or resolve such impacts other than "no project."

At a minimum, the project should be returned to the Dept. for review in the face of these new mandates and a new project description and review is needed. A project that retains the existing housing and perhaps adds new units to the existing building is far more in line with the housing needed in the City and with the directives and policies already in place as well as the housing policy priorities announced by the mayor.

2. **Historic Resource and Aesthetics---**

The Heritage building was designed by renowned architect Julia Morgan in 1925, and although it is not on the State or National Register of historic places, the Page & Turnbull Historic Resources Evaluation Report makes clear it should be or could be. She also designed Hearst Castle, numerous buildings on the UC Campus, the Los Angeles Examiner Building, the YWCA in Chinatown, in the City of San Francisco, Riverside Art Museum, Asilomar Conference Grounds and many others.

As made clear in the considered opinion submitted by Christopher VerPlanck, the proposed new modern buildings will overwhelm and detract from the Heritage building and its value as a historic resource. The new building will be TALLER and will physically shadow the Heritage building. The modern design and flat roofs will look odd and angular next to the sloped gables and brick facades of the Heritage building. The building is an important cultural resource, and the new buildings will overpower it and negatively impact its aesthetic. The proposal will cause a substantial adverse change in the significance of a historical resource. Mitigations could (should) include reducing the size of the project, sloped roofs, reduction in height, and setting all new additions to the east away from the Julia Morgan building. The new building will "loom" over the historic resource and detract from its gothic brick appearance with a modern square box of glass and metal directly adjacent and over top of it. Perhaps worst of all, the new buildings will completely block from public view the South facing and East facing façades of the building.

The project will have a substantial adverse effect on the scenic vista and views towards the water from the surrounding area and, as Mr. VerPlanck concludes, will substantially damage, and degrade the present scenic resource of the Julie Morgan Building and its immediate surroundings and context. It will substantially damage the existing visual character and quality of public views of the site and its surroundings. Mr. VerPlanck's conclusions are substantial evidence that the project will cause a substantial adverse change in the significance of a historical resource pursuant to California Code of Regulations, Title 14, §15064.5. Feasible measures to mitigate the significant adverse changes in the significance of the historical resource include no project or a substantially reduced project in size and scope. At present the Project does not meet or comply with the Secretary of the Interior's Standards for the Treatment of Historic Properties.

The Large "Addition" of 58,000 Square Feet of New Built Environment Will Negatively Impact the Historic Resource, its "Feel" and at 40+ Feet Tall, Will Obscure its Features

As can be clearly seen from the proposed project elevations on the plans, this project will place the historic and iconic three story Heritage buildng in an artifical "valley" of new four story buildings on three sides. Heritage will be in a "box" surrounded by taller buildings on all sides.The subject site ALREADY looms over the neighbors' smaller buildings and gardens, adding new modern buildings in excess of four-floors will require removal of all side yards and remove all landscaping from the south facing portion of the grounds. As pointed out in the Page & Turnbull Report and

echoed in VerPlanck Memorandum, the landscaping and surrounding greeenery on the lot is an important part of the "feel" of the historic resource and its value and integrity as a historic resource. As stated in the report:

"FEELING
The property's continued use as a care facility for the elderly, as well as its current landscaped grounds (although not strictly historic in character), support the property's integrity of feeling, allowing it to convey the peaceful atmosphere that characterized the property during its period of significance." (Page & Turnbull Historic Resources Evaluation p.71)

Further, the proposal to add additional four story buildings, will obscure and cpmpletely block from public view some of the most important and prominent defining features of the historic resource. The Page & Trunbull Report states that the building's features ON ALL SIDES are part of the value and defining elements that are important to integrity of this historic resource. At page 71-72 the report states:

"CHARACTER-DEFINING FEATURES

For a property to be eligible for national or state designation under criteria related to type, period, or method of construction, the essential physical features (or character-defining features) that enable the property to convey its historic identity must be evident. These distinctive character- defining features are the physical traits that commonly recur in property types and/or architectural styles. To be eligible, a property must clearly contain enough of those characteristics to be considered a true representative of a particular type, period, or method of construction, and these features must also retain a sufficient degree of integrity. Characteristics can be expressed in terms such as form, proportion, structure, plan, style, or materials.

The following character-defining features have been identified for the property at 3400 Laguna Street:

Main Building

- *Overall regular massing and intersecting hipped roof*
- *U-shaped plan, consisting of central volume, north and south wings at east façade, and projections at north and south façades*
- *Structural brick exterior walls*
- *Slate roof shingles*
- *Symmetrical arrangement of front façade, with central gabled parapet*
- *Historic fenestration pattern, consisting of evenly spaced window openings with hierarchy among basement, first story and second story windows and upper dormer windows*
- *Projecting canted bays*
- *Hipped dormer windows at roof*
- *Operable, divided-lite windows retaining historic configurations*
- *Terra cotta details: window surrounds with vegetative motifs in segmental arches; decorative panels and entablatures at canted bays; belt course above second level windows; projecting cornice with buttons at eave; coping and*

finial at central gabled parapet; double arched door surround at primary entrance vestibule

- *Arched ground-level door openings at ground level*
- *Stained glass windows at interior chapel*
- *Additional historic design features: narrow blind niche and recessed diamond and square details in brick*
- *Historic glazed doors within entrance vestibule*
- *Three brick chimneys*
- *Front double stairs with iron railing*
- *Towers and penthouse at east façade*
- *Rain catch baskets*
- *Historic features in publicly accessible interior areas include:*
  - *Tile floor*
  - *Central stairwell with trefoil railing*
  - *Fireplace mantel*
  - *Wood coffered ceiling"*

The new large 55' foot tall building planned for the south side of the property will completely block from view most of the southern façade of the historic resource and will obscure the intersecting hipped roof, projections at south façade, structural brick exterior walls, slate roof shingles, historic fenestration pattern, consisting of evenly spaced window openings with hierarchy among basement, first story and second story windows and upper dormer windows (three such windows will be completely blocked from view on the south side of the building) and numerous other features will be obscured. The plan's elevations positively demonstrate that the new buildings are overwhelming and obscuring the historic resource.

Above is a rendering from the project plans showing the proposed south elevation (omitted from the plans first accepted by the Dept) that show the Heritage building as obscured, blocked from public view and smaller and less important than the proposed new building. The same view as it is currently shown in the photo below. The historic experts agree that the view of the elements on the north façade of the building are part, or it value as a historic resource and the new project will obscure those elements.

There can be no question that the proposed project will have a devastating negative visual impact on the Heritage and its value as an important cultural and historic resource. Many of the important and defining features of the historic resource on the roof and the south side window arrangement and fenestration will be lost from view by the new proposed building. The new building will be above Heritage, behind it and beside it, drawing the emphasis to the towering new buildings and away from the important historic resource.

3. **Shadowing**

In addition to visually overwhelming the historic resource with its size and height, the new proposed structure will also shadow the Heritage building. The addition on the south side of the existing Heritage building at 55’ feet will cast a permanent shadow over much of the existing facility including the front yard landscaping, the interior courtyard of the Heritage building and other interior spaces in the Heritage list as valuable to the integrity of the historic resource by Page and & Turnbull. In addition to the shadowing of the existing facility, the new building will shadow nearby parks and recreational facilities.

The building is adjacent to two parks and recreational areas and will substantially shadow both of those sites. The elevator and utility penthouses will exceed fifty feet (50’) in height. The shadows are a direct result of this overreach in height, which is unusually tall for the area. The Heritage is located to the south and east of George R. Moscone Park and Recreation Area, directly across Laguna Street. Pyron Park, part of the Fort Mason complex in the Golden Gate National Recreation Area is directly north and across Bay Street from the site. Both parks will receive substantial new shadowing from the new fifty-five (55’) foot tall structures planned for the Heritage site. A shadow analysis is

required. As set forth in the Planning Dept's Shadow Analysis Procedures and Scope Requirements:

In the City and County of San Francisco, there are two circumstances which could trigger the need for a shadow analysis:

1. If the proposed project would be over 40 feet tall, and could potentially cast new shadow on a property under the jurisdiction of the Recreation and Park Department, per San Francisco Planning Code Section 295; and/or
2. If the proposed project is subject to review under the California Environmental Quality Act (CEQA) and would potentially cast new shadow on a park or open space such that the use or enjoyment of that park or open space could be adversely affected.

Here both situations are present. With the various penthouses, the building on the south facing elevation will be fifty feet (55') tall and it will shadow Park and Recreation land and is subject to CEQA review. The shadow fan included in the Dept's packet shows that the shadowing will be substantial over the Moscone Softball fields and in particular the home plate area located in the northeast corner of the park. The new shadows could (will) certainly have an adverse effect on the use of the park and the public's ability to enjoy it.

4. **Excavation in an Air Pollutant Exposure Zone-Health Code Article 38**

The planned excavation is substantial and more than 15,000 cubic yards and 27,000 square feet. This site is in an Air Pollutant Exposure Zone and is subject to Health Code Article 38. The site is in an area with elevated pollutant concentrations. The Heritage is a sensitive use building, as defined in the applicable section of the Ordinance, and must comply with Health Code Article 38. The EIR being prepared for the project must require mitigations for this project because it will generate air pollutants during excavation. Although the site itself is not known or identified as a hazardous waste site there is a site nearby at 1598 Bay Street from which toxins may have migrated. Substantial mitigations are needed for the large excavation site and to be put in place during the process. This is a major alteration to a sensitive use (retirement home).

5. **Maher Ordinance**

Properties with potential hazardous subsurface contamination that require a grading or building or street use permit may be regulated under the San Francisco Maher Ordinance: Article 22A of the San Francisco Health Code and Article 106A.3.2.4 of the San Francisco Building Code. The Maher Ordinance covers areas with current or historical industrial use or zoning; areas within one hundred feet (100') of current or historical underground tanks; filled former Bay, marsh, or creek areas; or areas within 150 feet of a current or former elevated highway. Sites and areas covered per the Maher Ordinance are shown as shaded areas on the Maher map.

This site appears on the Maher Map and is subject to the Ordinance. As the historic maps included in the Page & Turnbull Report illustrate, this entire site was probably filled

former Bay or a marsh and creek area. The excavation is proposed at some fifteen feet (15') in depth and will cover a wide area.

6. **Parking and Traffic**

The Project includes 18 new parking spaces and a new curb cut. Including the new capacity, the project will add new traffic and parking woes to the neighborhood. Loading docks on the residential street will also lead to negative impacts for the neighborhood.

7. **Loss of Open Space and Landscaping**

Presently, the grounds have several trees and nice-looking landscaping presented to the surrounding streets. The proposal to eliminate all landscaping except the front yard area will leave only a stark façade facing the residential block on Francisco Street is a negative impact and eliminates much of the open space on the subject lot. Worse, the Project is seeking variances or exceptions to *change the orientation of its lot* by treating Bay Street as the front instead of a Laguna Street, which is and has always been the entrance to the Morgan mansion, for the rear yard requirement through the Conditional Use Authorization process and as a Planned Unit Development.

This is an attempt to manipulate the Dept's rules and regulations to allow the Heritage to treat Francisco Street as the rear and build to the property line with no curb cuts, landscaping, setbacks, or other design features that would otherwise be required. The Heritage already built the Perry Building in 1957 at the rear of its lot (nearest Octavia Street). To allow it to arbitrarily shift its parcel orientation by 90 degrees would be to allow Heritage to manipulate the Dept's rules and regulations to the detriment of the public interest with certain negative impacts to the surrounding residents.

8. **Variances, Waivers and Exceptions**

The building and its use are out of place in a residential neighborhood and should not be moved further out of conformity with the code and the neighborhood. The project will require a variety of waivers, and exceptions from code requirements for rear yard and exposure (units looking on to open space). Nonconforming uses should not be allowed to go further out of conformity and allowing such a result is directly at odds with the Planning Code and the General Plan.

CONCLUSION

The project description and description of the existing facility are not complete or accurate. The acquisition of the three adjacent apartment buildings must be taken into account, included in the description of the facility and the project, and resolved with the existing conditional use authorizations, the Planning Code, and the General Plan.

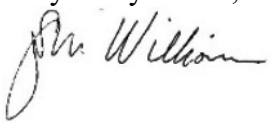
The negative environmental impacts of the proposal are numerous. The new proposed four-story buildings will overwhelm and overshadow the important historic resource of the Heritage's Julia Morgan mansion. The neighbors who live near the Heritage wish to continue a good relationship with the Heritage as their over-sized and out of place neighbor. However, the aggressive and startling proposal to increase the size of the facility by nearly 100% is not compatible with the neighborhood and is exactly why

neighbors opposed the Heritage with its first request for additions beginning back in the 1950's. Neighbors at all previous hearings on the conditional authorizations that keep Heritage in the neighborhood voiced fear and concern about future, unreasonable and unchecked expansion in a residential neighborhood. That is exactly what this proposal represents.

The neighbors are counting on the Dept to enforce the underlying policies of the Planning Code and General Plan as well as CEQA and its underlying spirit and purpose to protect the residential neighborhoods by requiring and suggesting mitigations which will reduce the overwhelming size and overwhelming impacts of the proposal.

Thank you for your consideration and attention to this matter.

Very Truly Yours,



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San Francisco, CA 94102

December 1, 2023

RE:	**Comments on Proposed Project for Preparation of an Environmental Impact Report**
PROJECT:	**Demolition of Existing Buildings and New Construction; Urban In-Fill---Sensitive Use Development**
CASE NO.	**2022-009819ENV**
ADDRESS:	**3400 Laguna Street (Heritage on the Marina)**
BLOCK/LOT	**0471/003**
ZONING:	**RM-1 Residential-Mixed, Low Density Use District**

Ms. Poling:

INTRODUCTION

I have been retained to represent more than a dozen of the neighbors of the proposed project at 3400 Laguna Street, commonly known as the "Heritage on the Marina" (hereinafter "Heritage"). These comments are submitted in response to the Public Notice of Preparation of an Environmental Impact Report issued by your office on November 1, 2023, with a Comment Deadline for the EIR of December 1, 2023.

Heritage is a non-conforming use in a residential neighborhood, and the proposed plan to expand the facility by nearly 60,000 square feet including an extraordinary excavation of more than 15,000 cubic yards, and a "repositioning" or "realignment" of the existing structure to create a new rear yard area under the Planning Code is of great concern to the surrounding residents. As set forth below, Heritage is currently in violation of its approvals to operate in the neighborhood. It is currently in violation of its conditional use authorizations and the very code provisions which allowed it to remain in the neighborhood for all these years. Approval of the Project would place the Heritage even further out of compliance and conformity with the Planning Code and General Plan. The negative environmental impacts on the neighbors and the neighborhood of such a project are certain and predictable and must be carefully considered and mitigated or reduced.

Having a large residential/commercial enterprise in a residential neighborhood is always a difficult, situation for residents, but the proposal to nearly double the developed and working square footage at the Heritage is a shocking development to the neighbors. The project is poised to completely change the visual character of the neighborhood and will eliminate huge areas of open space, landscaping, and greenery, will a have profound negative visual impact on the historic resource of the Heritage building and will cast shadows on the adjacent public recreation area, Moscone Park Playground and Recreational Fields.

Part of the proposal is to construct a solid nearly unbroken wall of a forty-foot (40'), plus penthouses to fifty-five feet (55') building along Francisco Street, which is 100% residential. In addition to the bulk and overwhelming mass of the proposed project, there are also design and

character concerns, mostly related to the monolithic new four-story building planned for the entire length of the Francisco Street frontage which will overwhelm, shadow, and loom over the historic Heritage building and the neighbors. The roof top appurtenances planned for that new building will push its actual physical height well over fifty (50') feet, notwithstanding how the new building's height may be measured under the Planning Code. The proposal is startling and inappropriate for the neighborhood and will create and cast new extensive shadowing on Moscone Field and Fort Mason Park which are directly across Laguna Street (Moscone) and across Bay Street (Fort Mason). Further, under CEQA, the project (and facility) descriptions are not complete or accurate.

The neighbors previously requested the Dept to revisit the Preliminary Project Assessment because the application and project plans were incomplete, lacked basic, mandatory information (such as elevations) and mischaracterized the project as non-residential. This is a crucial distinction and change of direction, the application for the proposed project is directly contrary to how Heritage has previously characterized its facility and its' expansions in past applications (as residential) and contrary to the facts and past practices at the site. The attempt to transform what has always been a residential development into a non-residential development is purposeful by the applicant to escape mandatory obligations under the Planning Code to provide affordable housing and other community benefits. The Department must NOT allow this slight hand maneuver by the applicant and must mandate honest, consistent treatment of the site in keeping with the long history of development and expansion at Heritage.

The proposed project is extraordinary and exceptional just by its proposed massive addition in this well-established residential neighborhood, but it will also have negative impacts on the historic Heritage building and will shadow two parks. Such overwhelming impacts demand mitigation. Finally, the Department should not consider reviewing and approving a new expansion project at Heritage unless and until Heritage is brought into compliance with the Planning Code and General Plan. Heritage has for many years illegally and unfairly expanded its facility by acquiring nearby properties (not included in the project or facility description) and has incorporated these residential units into the facility without permits, applications or a change to its conditional use status.

1. **Heritage Is in Stark Violation of Its Conditional Use Status, the Planning Code, and the General Plan---No New Project and Expansion May be Considered or Approved**

In a manner strikingly similar to that employed illegally and improperly by the infamous Academy of Art University, Heritage has acquired buildings that are zoned and permitted for residential use as apartments and other residential purposes, only to cavalierly convert those buildings unlawfully into part of its residential care facility. These unlawful actions by Heritage have deprived the City and the community of critical housing stock, especially affordable rent-controlled housing. Heritage has overtaken at least three buildings adjacent to its property and has taken at least ten (10) residential units. Heritage has done all of this for many years without seeking or receiving the required authorization for the changes to its conditional use authorization or operating permits from the Planning Department.

At a time when San Francisco is confronting a severe housing shortage, especially affordable rent-controlled housing, Heritage has illegally converted these units to its residential care facility use, exacerbating the already scarce supply of affordable housing. The Department should not even consider allowing Heritage to exponentially expand its facility with a new proposed project until it is brought into compliance with the Planning Code and General Plan, and it returns the many housing units it has unlawfully displaced to the San Francisco housing stock. By unilaterally taking over this housing stock without permits or authorization Heritage is in violation of the City's Administrative Code, Planning Code, and Building Code as well as in violation of its existing conditional use authorization and permitted use in the residential neighborhood in which it is

located. The zoning for the Heritage site is not compatible with the zoning for the adjacent buildings it has taken over. Heritage must divest itself of the buildings or obtain a new conditional use permit and an amendment to the Planning Code.

The housing units unlawfully taken over by Heritage and subsumed into its facility are as follows:

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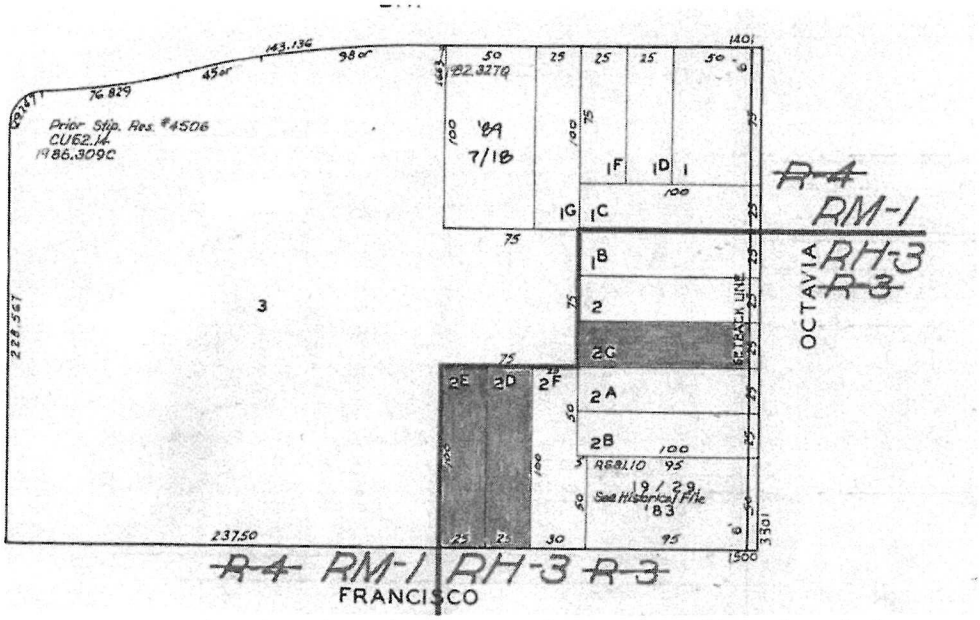

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Because each of the above properties is being used in violation of the Planning Code, each is therefore unlawful and a public nuisance. SF Planning Code Section 176(a). Each of these properties is in a RH-3 (Residential, House Three-Family) Zoning District which differs from the Zoning District for Heritage which is RM-1 Residential-Mixed, Low Density Use District. The RH-3 Zoning District allows some group housing and residential care facilities; however, a building permit and conditional use authorization are required to permit such uses or to expand the Heritage use beyond its Zoning District. The conversion and loss of housing units to an institutional use also requires a building permit and conditional use authorization under Planning Codes Sections 171, 209.1, 303 & 317.

The Project Description Must be Rewritten to Include the Merger of Ten Units of Housing

Heritage does not include in its project description the acquisition of the ten (10) units of housing and the commercial exploitation and use of those housing units in its institutional facility. The project description is not accurate or complete. Heritage states it has "five existing buildings" when in fact it has eight (8) buildings because of the nearby apartments it has illegally made part of its facility. The gross square feet of the facility is also inaccurate as it does not include the additional three buildings. A conditional use authorization is required for the loss and merger of the ten units of sound affordable rent-controlled housing because the policy is to RETAIN such housing in the general housing stock. The loss of such housing to a merger into Heritage cannot possibly be found to be *"necessary and desirable"* for the community as is needed for a conditional use authorization. The loss of the housing to Heritage is directly contrary to all controlling public policy—and is a slap in the face of the public in the middle of an affordability crisis.

Retention of this type of affordable rental housing is the highest priority policy and a keystone to every plan to fight the affordability crisis in San Francisco. The loss of this housing to Heritage is contrary to the Mayor's Executive Directives, contrary to the General Plan and contrary to the controlling policies of the Housing Element all of which mandate the retention of the existing buildings in the general housing stock. There is no policy that might allow this type of sound, affordable housing to be merged and "exchanged" for new, market rate luxury retirement housing and to be subsumed into the Heritage facility. Once this type of housing is merged and taken from the housing stock, it is gone forever. There is a finite supply of this type of housing and the policies of the City demand its retention outside of Heritage.

Heritage is in Violation of its Conditional Use Authorizations and New Ones Cannot Be Granted for the Merger of Ten (10) Sound, Rent-Controlled Units –ALL Housing Policies Mandate Preservation of the Existing, *Naturally Affordable* Rent Controlled Housing Stock

San Francisco's highest Priority Policies are enumerated in the General Plan. Further, to the extent some policies may clash with others, (for example—the creation of new housing vs. retention of existing housing---such as here) the two policies that are to be given primacy are:

- **That the City's supply of affordable housing be preserved and enhanced.**
- **That existing housing and neighborhood character be conserved and protected in order to preserve the cultural and economic diversity of our neighborhoods.**

This directive is also found in the Housing Element of the General Plan and these two policies form the basis upon which inconsistencies in the Housing Element and in other parts of the General Plan are to be resolved. Approval of this project violates numerous crucial and primary policies. The EIR must address and resolve the environmental impacts of the loss of such housing and the stark violations of the Planning Code, Housing Element and General Plan.

HOUSING ELEMENT

Objectives and Policies

OBJECTIVE 3: PROTECT THE AFFORDABILITY OF THE EXISTING HOUSING STOCK, ESPECIALLY RENTAL UNITS.

POLICY 3.3

Maintain balance in affordability of existing housing stock by supporting affordable moderate ownership opportunities.

POLICY 3.4

Preserve "naturally affordable" housing types such as smaller and older ownership units.

The ten units lost here to merger into Heritage are considered to be "naturally affordable" as described in policy 3.4 of the General Plan's Housing Element as being smaller rent controlled dwelling units. These units are all subject to the Rent Stabilization and Arbitration Ordinance, as the buildings were all constructed prior to 1979.

Endorsement of the proposed project would eliminate ten (10) naturally affordable units that are subject to rent control and replace them with luxury retirement market rate units that would not be subject to the Rent Stabilization and Arbitration Ordinance contrary to the policies and directives from the Mayor's Office to address the city's housing crisis. The proposed project is inconsistent with the objectives and policies of the General Plan and does nothing to protect affordability of the existing housing stock especially rental units and does nothing to maintain the balance of affordability or for moderate ownership opportunities---quite the opposite.

The elimination of ten functional "naturally affordable" rent controlled dwelling units by merger is contrary to the General Plan as well as to the Department's and the City's priority to preserve existing sound housing and to protect naturally affordable dwelling units. The proposed loss of the ten dwelling units is counter to the mayor's executive directives, which call for the protection of existing housing stock. The mayor has directed the Department to adopt policies and practices that encourage the preservation of existing housing stock.

The proposed project may not be approved because it endorses the removal and replacement of ten naturally affordable units and is contrary to the priority principle of housing unit retention. The current housing affordability crisis creates an exceptional and extraordinary circumstance such that the Department should deny the project unless or until moves are taken by Heritage to return the existing units. The General Plan and the Priority Policies make it clear that Heritage cannot "trade" the existing rent-controlled housing on the site for additional units of luxury retirement housing.

The business practices of Heritage violate these polices and initiatives to protect the existing housing stock. The requested EIR (and new conditional use authorizations) must resolve these

issues and approval cannot be granted in the face of this overwhelming policy mandate. The loss of ten units of existing rent-controlled housing and the permanent loss of the opportunity to create more such housing cannot possibly be "necessary and desirable" in the City of San Francisco at this time and no mitigations can address or resolve such impacts other than "no project."

At a minimum, the project should be returned to the Dept. for review in the face of these new mandates and a new project description and review is needed. A project that retains the existing housing and perhaps adds new units to the existing building is far more in line with the housing needed in the City and with the directives and policies already in place as well as the housing policy priorities announced by the mayor.

2. **Historic Resource and Aesthetics---**

The Heritage building was designed by renowned architect Julia Morgan in 1925, and although it is not on the State or National Register of historic places, the Page & Turnbull Historic Resources Evaluation Report makes clear it should be or could be. She also designed Hearst Castle, numerous buildings on the UC Campus, the Los Angeles Examiner Building, the YWCA in Chinatown, in the City of San Francisco, Riverside Art Museum, Asilomar Conference Grounds and many others.

As made clear in the considered opinion submitted by Christopher VerPlanck, the proposed new modern buildings will overwhelm and detract from the Heritage building and its value as a historic resource. The new building will be TALLER and will physically shadow the Heritage building. The modern design and flat roofs will look odd and angular next to the sloped gables and brick facades of the Heritage building. The building is an important cultural resource, and the new buildings will overpower it and negatively impact its aesthetic. The proposal will cause a substantial adverse change in the significance of a historical resource. Mitigations could (should) include reducing the size of the project, sloped roofs, reduction in height, and setting all new additions to the east away from the Julia Morgan building. The new building will "loom" over the historic resource and detract from its gothic brick appearance with a modern square box of glass and metal directly adjacent and over top of it. Perhaps worst of all, the new buildings will completely block from public view the South facing and East facing façades of the building.

The project will have a substantial adverse effect on the scenic vista and views towards the water from the surrounding area and, as Mr. VerPlanck concludes, will substantially damage, and degrade the present scenic resource of the Julie Morgan Building and its immediate surroundings and context. It will substantially damage the existing visual character and quality of public views of the site and its surroundings. Mr. VerPlanck's conclusions are substantial evidence that the project will cause a substantial adverse change in the significance of a historical resource pursuant to California Code of Regulations, Title 14, §15064.5. Feasible measures to mitigate the significant adverse changes in the significance of the historical resource include no project or a substantially reduced project in size and scope. At present the Project does not meet or comply with the Secretary of the Interior's Standards for the Treatment of Historic Properties.

The Large "Addition" of 58,000 Square Feet of New Built Environment Will Negatively Impact the Historic Resource, its "Feel" and at 40+ Feet Tall, Will Obscure its Features

As can be clearly seen from the proposed project elevations on the plans, this project will place the historic and iconic three story Heritage buildng in an artifical "valley" of new four story buildings on three sides. Heritage will be in a "box" surrounded by taller buildings on all sides.The subject site ALREADY looms over the neighbors' smaller buildings and gardens, adding new modern buildings in excess of four-floors will require removal of all side yards and remove all landscaping from the south facing portion of the grounds. As pointed out in the Page & Turnbull Report and

echoed in VerPlanck Memorandum, the landscaping and surrounding greeenery on the lot is an important part of the "feel" of the historic resource and its value and integrity as a historic resource. As stated in the report:

"FEELING
The property's continued use as a care facility for the elderly, as well as its current landscaped grounds (although not strictly historic in character), support the property's integrity of feeling, allowing it to convey the peaceful atmosphere that characterized the property during its period of significance." (Page & Turnbull Historic Resources Evaluation p.71)

Further, the proposal to add additional four story buildings, will obscure and cpmpletely block from public view some of the most important and prominent defining features of the historic resource. The Page & Trunbull Report states that the building's features ON ALL SIDES are part of the value and defining elements that are important to integrity of this historic resource. At page 71-72 the report states:

"CHARACTER-DEFINING FEATURES

For a property to be eligible for national or state designation under criteria related to type, period, or method of construction, the essential physical features (or character-defining features) that enable the property to convey its historic identity must be evident. These distinctive character- defining features are the physical traits that commonly recur in property types and/or architectural styles. To be eligible, a property must clearly contain enough of those characteristics to be considered a true representative of a particular type, period, or method of construction, and these features must also retain a sufficient degree of integrity. Characteristics can be expressed in terms such as form, proportion, structure, plan, style, or materials.

The following character-defining features have been identified for the property at 3400 Laguna Street:

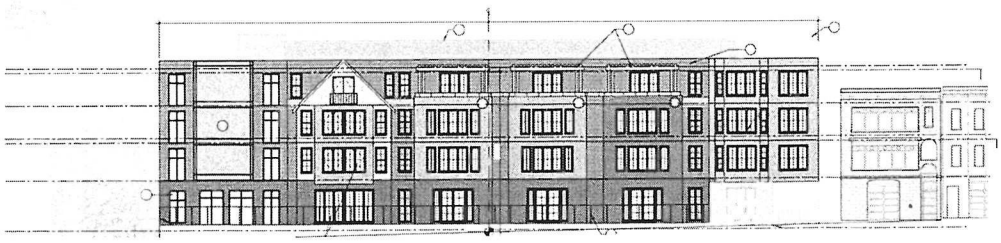
Main Building

- *Overall regular massing and intersecting hipped roof*
- *U-shaped plan, consisting of central volume, north and south wings at east façade, and projections at north and south façades*
- *Structural brick exterior walls*
- *Slate roof shingles*
- *Symmetrical arrangement of front façade, with central gabled parapet*
- *Historic fenestration pattern, consisting of evenly spaced window openings with hierarchy among basement, first story and second story windows and upper dormer windows*
- *Projecting canted bays*
- *Hipped dormer windows at roof*
- *Operable, divided-lite windows retaining historic configurations*
- *Terra cotta details: window surrounds with vegetative motifs in segmental arches; decorative panels and entablatures at canted bays; belt course above second level windows; projecting cornice with buttons at eave; coping and*

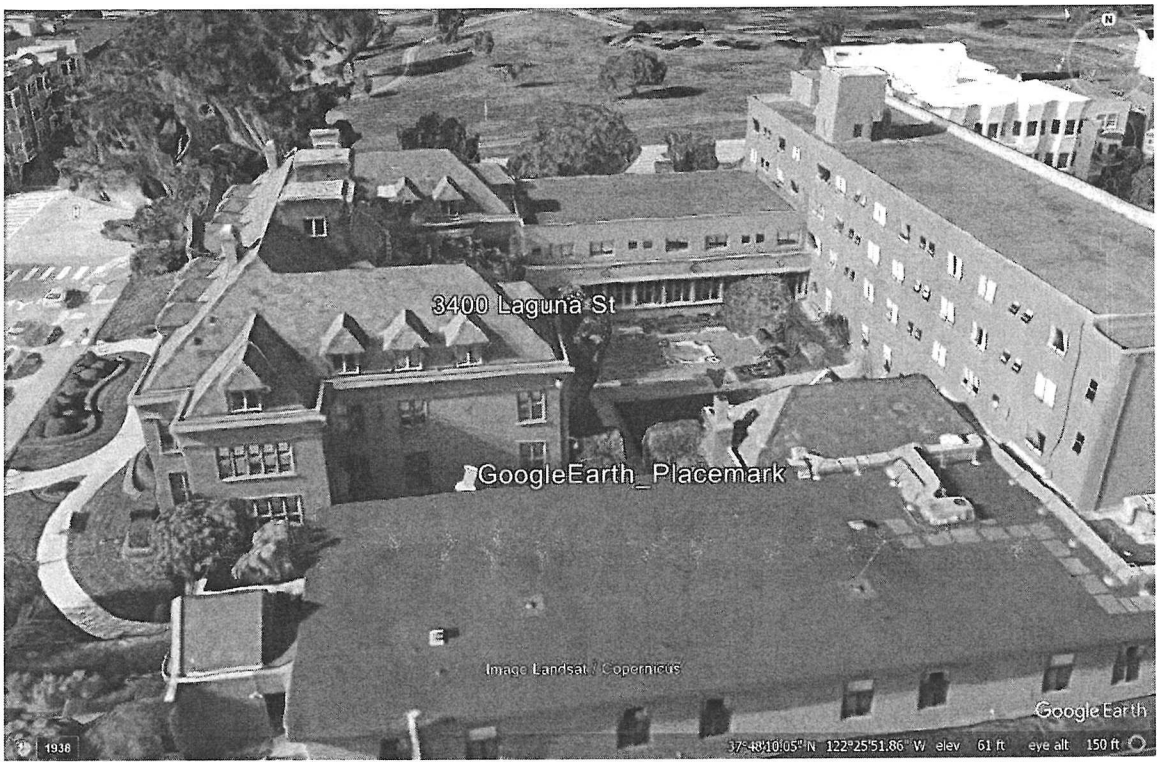
finial at central gabled parapet; double arched door surround at primary entrance vestibule

- *Arched ground-level door openings at ground level*
- *Stained glass windows at interior chapel*
- *Additional historic design features: narrow blind niche and recessed diamond and square details in brick*
- *Historic glazed doors within entrance vestibule*
- *Three brick chimneys*
- *Front double stairs with iron railing*
- *Towers and penthouse at east façade*
- *Rain catch baskets*
- *Historic features in publicly accessible interior areas include:*
  - *Tile floor*
  - *Central stairwell with trefoil railing*
  - *Fireplace mantel*
  - *Wood coffered ceiling"*

The new large 55' foot tall building planned for the south side of the property will completely block from view most of the southern façade of the historic resource and will obscure the intersecting hipped roof, projections at south façade, structural brick exterior walls, slate roof shingles, historic fenestration pattern, consisting of evenly spaced window openings with hierarchy among basement, first story and second story windows and upper dormer windows (three such windows will be completely blocked from view on the south side of the building) and numerous other features will be obscured. The plan's elevations positively demonstrate that the new buildings are overwhelming and obscuring the historic resource.



Above is a rendering from the project plans showing the proposed south elevation (omitted from the plans first accepted by the Dept) that show the Heritage building as obscured, blocked from public view and smaller and less important than the proposed new building. The same view as it is currently shown in the photo below. The historic experts agree that the view of the elements on the north façade of the building are part, or it value as a historic resource and the new project will obscure those elements.



There can be no question that the proposed project will have a devastating negative visual impact on the Heritage and its value as an important cultural and historic resource. Many of the important and defining features of the historic resource on the roof and the south side window arrangement and fenestration will be lost from view by the new proposed building. The new building will be above Heritage, behind it and beside it, drawing the emphasis to the towering new buildings and away from the important historic resource.

3. **Shadowing**

In addition to visually overwhelming the historic resource with its size and height, the new proposed structure will also shadow the Heritage building. The addition on the south side of the existing Heritage building at 55' feet will cast a permanent shadow over much of the existing facility including the front yard landscaping, the interior courtyard of the Heritage building and other interior spaces in the Heritage list as valuable to the integrity of the historic resource by Page and & Turnbull. In addition to the shadowing of the existing facility, the new building will shadow nearby parks and recreational facilities.

The building is adjacent to two parks and recreational areas and will substantially shadow both of those sites. The elevator and utility penthouses will exceed fifty feet (50') in height. The shadows are a direct result of this overreach in height, which is unusually tall for the area. The Heritage is located to the south and east of George R. Moscone Park and Recreation Area, directly across Laguna Street. Pyron Park, part of the Fort Mason complex in the Golden Gate National Recreation Area is directly north and across Bay Street from the site. Both parks will receive substantial new shadowing from the new fifty-five (55') foot tall structures planned for the Heritage site. A shadow analysis is

required. As set forth in the Planning Dept's Shadow Analysis Procedures and Scope Requirements:

In the City and County of San Francisco, there are two circumstances which could trigger the need for a shadow analysis:

1. If the proposed project would be over 40 feet tall, and could potentially cast new shadow on a property under the jurisdiction of the Recreation and Park Department, per San Francisco Planning Code Section 295; and/or
2. If the proposed project is subject to review under the California Environmental Quality Act (CEQA) and would potentially cast new shadow on a park or open space such that the use or enjoyment of that park or open space could be adversely affected.

Here both situations are present. With the various penthouses, the building on the south facing elevation will be fifty feet (55') tall and it will shadow Park and Recreation land and is subject to CEQA review. The shadow fan included in the Dept's packet shows that the shadowing will be substantial over the Moscone Softball fields and in particular the home plate area located in the northeast corner of the park. The new shadows could (will) certainly have an adverse effect on the use of the park and the public's ability to enjoy it.

4. **Excavation in an Air Pollutant Exposure Zone-Health Code Article 38**

The planned excavation is substantial and more than 15,000 cubic yards and 27,000 square feet. This site is in an Air Pollutant Exposure Zone and is subject to Health Code Article 38. The site is in an area with elevated pollutant concentrations. The Heritage is a sensitive use building, as defined in the applicable section of the Ordinance, and must comply with Health Code Article 38. The EIR being prepared for the project must require mitigations for this project because it will generate air pollutants during excavation. Although the site itself is not known or identified as a hazardous waste site there is a site nearby at 1598 Bay Street from which toxins may have migrated. Substantial mitigations are needed for the large excavation site and to be put in place during the process. This is a major alteration to a sensitive use (retirement home).

5. **Maher Ordinance**

Properties with potential hazardous subsurface contamination that require a grading or building or street use permit may be regulated under the San Francisco Maher Ordinance: Article 22A of the San Francisco Health Code and Article 106A.3.2.4 of the San Francisco Building Code. The Maher Ordinance covers areas with current or historical industrial use or zoning; areas within one hundred feet (100') of current or historical underground tanks; filled former Bay, marsh, or creek areas; or areas within 150 feet of a current or former elevated highway. Sites and areas covered per the Maher Ordinance are shown as shaded areas on the Maher map.

This site appears on the Maher Map and is subject to the Ordinance. As the historic maps included in the Page & Turnbull Report illustrate, this entire site was probably filled

former Bay or a marsh and creek area. The excavation is proposed at some fifteen feet (15') in depth and will cover a wide area.

6. **Parking and Traffic**

The Project includes 18 new parking spaces and a new curb cut. Including the new capacity, the project will add new traffic and parking woes to the neighborhood. Loading docks on the residential street will also lead to negative impacts for the neighborhood.

7. **Loss of Open Space and Landscaping**

Presently, the grounds have several trees and nice-looking landscaping presented to the surrounding streets. The proposal to eliminate all landscaping except the front yard area will leave only a stark façade facing the residential block on Francisco Street is a negative impact and eliminates much of the open space on the subject lot. Worse, the Project is seeking variances or exceptions to *change the orientation of its lot* by treating Bay Street as the front instead of a Laguna Street, which is and has always been the entrance to the Morgan mansion, for the rear yard requirement through the Conditional Use Authorization process and as a Planned Unit Development.

This is an attempt to manipulate the Dept's rules and regulations to allow the Heritage to treat Francisco Street as the rear and build to the property line with no curb cuts, landscaping, setbacks, or other design features that would otherwise be required. The Heritage already built the Perry Building in 1957 at the rear of its lot (nearest Octavia Street). To allow it to arbitrarily shift its parcel orientation by 90 degrees would be to allow Heritage to manipulate the Dept's rules and regulations to the detriment of the public interest with certain negative impacts to the surrounding residents.

8. **Variances, Waivers and Exceptions**

The building and its use are out of place in a residential neighborhood and should not be moved further out of conformity with the code and the neighborhood. The project will require a variety of waivers, and exceptions from code requirements for rear yard and exposure (units looking on to open space). Nonconforming uses should not be allowed to go further out of conformity and allowing such a result is directly at odds with the Planning Code and the General Plan.

CONCLUSION

The project description and description of the existing facility are not complete or accurate. The acquisition of the three adjacent apartment buildings must be taken into account, included in the description of the facility and the project, and resolved with the existing conditional use authorizations, the Planning Code, and the General Plan.

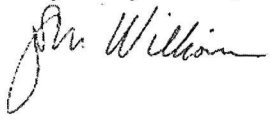
The negative environmental impacts of the proposal are numerous. The new proposed four-story buildings will overwhelm and overshadow the important historic resource of the Heritage's Julia Morgan mansion. The neighbors who live near the Heritage wish to continue a good relationship with the Heritage as their over-sized and out of place neighbor. However, the aggressive and startling proposal to increase the size of the facility by nearly 100% is not compatible with the neighborhood and is exactly why

neighbors opposed the Heritage with its first request for additions beginning back in the 1950's. Neighbors at all previous hearings on the conditional authorizations that keep Heritage in the neighborhood voiced fear and concern about future, unreasonable and unchecked expansion in a residential neighborhood. That is exactly what this proposal represents.

The neighbors are counting on the Dept to enforce the underlying policies of the Planning Code and General Plan as well as CEQA and its underlying spirit and purpose to protect the residential neighborhoods by requiring and suggesting mitigations which will reduce the overwhelming size and overwhelming impacts of the proposal.

Thank you for your consideration and attention to this matter.

Very Truly Yours,



STEPHEN M. WILLIAMS

From: Percy Yang
To: Poling, Jeanie (CPC)
Cc: Percy Yang
Subject: 3400 Laguna Street case # 2022-009819ENV
Date: Wednesday, November 15, 2023 2:32:54 PM

This message is from outside the City email system. Do not open links or attachments from untrusted sources.

Hi Jeanie,
We live 3 houses away from this buildout on Laguna, and we are very concerned about three important matters.

1. The height of the project and if it will impede the view from our units.
2. The parking conditions are already crowded, and additional buildouts will most certainly cause less available parking due to more visitors.
3. The traffic congestion coming through Laguna is already dangerously crowded at times, and more buildouts will add to more traffic and congestion.

Please confirm there will a height impediment, so that views will not be impacted, and the parking and traffic conditions will also not be impacted.

Regards,

Percy

Percy S. Yang

SUB-APPENDIX A.2
NOTICE OF PREPARATION (REISSUED MAY 8, 2024)

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San Francisco Planning

49 South Van Ness Avenue, Suite 1400
San Francisco, CA 94103
628.652.7600
www.sfplanning.org

PUBLIC NOTICE

NOTICE OF PREPARATION OF AN ENVIRONMENTAL IMPACT REPORT

Date:	November 1, 2023
Comment Deadline:	December 1, 2023
Case No.:	2022-009819ENV
Project Address:	3400 Laguna Street
Zoning:	RM-1 (Residential – Mixed, Low Density) Use District
Height/Bulk:	40-X District
Block/Lot:	0471/003
Lot Size:	68,005 square feet
Neighborhood:	Marina
Supervisor District:	District 2, Catherine Stefani
Cross Streets:	East side of Laguna Street between Bay and Francisco streets
Staff Contact:	Jeanie Poling – (628) 652-7559, jeanie.poling@sfgov.org

Introduction

The San Francisco Planning Department (department) prepared this notice of preparation of an environmental impact report (EIR) in connection with the proposed 3400 Laguna Street project (proposed project). The purpose of the EIR is to provide information regarding the physical environmental effects of the proposed project; identify possible ways to minimize any potentially significant adverse effects; and describe and analyze possible alternatives to the proposed project. The department is issuing this notice to inform the public and responsible and interested agencies about the proposed project and the intent to prepare an EIR; and to solicit comments on the scope of the EIR. This notice also identifies environmental issues anticipated to be analyzed in the EIR. The comments received during the public scoping process will be considered during preparation of the EIR for this project.[1]

This notice is available for public review on the department's website at sfplanning.org/sfceqadocs and at the San Francisco Permit Center's document viewing room on the second floor of 49 South Van Ness Avenue, San Francisco, CA 94103.

[1] The EIR will also be informed by comments received in response to the Planning Department's "Notification of Project Receiving Environmental Review" distributed on May 30, 2023. After that notice, the department determined to prepare an EIR.

Project Description

Project Location and Site Characteristics

The approximately 68,090-square-foot[2] (approximately 1.6-acre) project site at 3400 Laguna Street is located on a corner lot southeast of the Laguna Street and Bay Street intersection in the Marina neighborhood. The site is bounded by Bay Street to the north, single- and multi-family residences near to and along Octavia Street to the east, Francisco Street to the south, and Laguna Street to the west. The project site slopes upward from west to east from approximately 30 to 40 feet above mean sea level.

The project site has been occupied by the Heritage on the Marina residential care retirement community since 1925. Heritage on the Marina consists of five existing structures of approximately 83,200 gross square feet (gsf): the Julia Morgan Building, the Perry Building, the Perry Building Connector, the Health Center, and the Caretaker's Cottage, which are further described below.[3]

- The **Julia Morgan Building** is a U-shaped building that is three stories and approximately 40 feet in height; it was built in 1925. The primary façade of the building faces west and is viewed from Laguna Street. The building has a partially exposed basement level and an attic story penthouse over the east portion of the front façade. The building serves as the primary pedestrian entrance to the site.[4]

- The **Perry Building Connector** is a rectangular building that is two stories and approximately 22 feet in height over a partially raised basement; it was built in 1957. The Perry Building Connector runs east to west to connect the Morgan Building to the Perry Building forming an L-shaped footprint.

- The **Perry Building** is a rectangular building that is four stories and approximately 41 feet in height over a partially raised basement; it was built in 1957. The building has an enclosed fire access stair on the Bay Street side that projects about 8 feet above the roofline and the existing elevator penthouse extends about 16 feet above the roofline.

- The **Health Center** is a rectangular building that is one story and approximately 15 feet in height; it was built in 1963. The Health Center runs east to west and intersects the Perry Building on its southeast corner.

- The **Caretaker's Cottage** is an L-shaped structure that is one story and 22 feet in height; it was built in 1925. It is located on the northeast corner of the property enclosed within a wood fence and gate.

The Morgan Building, the Perry Building Connector, the Perry Building, and the Health Center all surround a central courtyard. There is a second courtyard east of the Perry Building on the eastern boundary of the project site. The site also contains a front lawn that is located between the existing entrance to the Julia Morgan building and Laguna Street. (See **Figure 1, Project Vicinity Map** and **Figure 2, Existing Site Plan**).

The project site has approximately 45 feet of passenger loading (white curb) and 20 feet of accessible parking (blue curb) on the Laguna Street frontage and 22 feet of loading (white curb) on the Francisco Street

[2] All square footages are approximate and rounded to the nearest multiple of ten.
[3] Adjacent properties at 1530 Francisco Street, 1536-1538 Francisco Street, and 3325-3327 Octavia Street are also owned and operated by Heritage on the Marina but are not part of the project site and no changes to these facilities are proposed.
[4] Although this building serves as the primary pedestrian entrance to the site, it is non-compliant with Americans with Disabilities Act (ADA) accessibility requirements and the entrance along Francisco Street is instead used for ADA access.

frontage. The project site includes 17 off-street vehicle parking spaces and one off-street loading space, which are accessible via an existing 18-foot-wide driveway along Bay Street. Pedestrian access to the site is provided via gates along Laguna Steet that access internal sidewalks connecting to the Julia Morgan Building entrances and additional accessible entrances from Bay Street.

The project site is not listed in the National Register of Historic Places or the California Register of Historical Resources, nor is it a local San Francisco article 10 landmark, but the site is eligible for listing in the California Register of Historical Resources.

Proposed Project Characteristics

The proposed project would continue to operate as a residential care facility. The proposed project would demolish two of the five existing buildings (the Perry Connector and the Health Center) and construct two new buildings (the Bay Building and the Francisco Building) of heights not to exceed 40 feet in height (excluding rooftop appurtenances) and in the same locations as the demolished structures. The proposed project would also renovate two of the other three existing buildings on the site (the Perry Building and the Caretaker's Cottage), as further described below. In total, the proposed project would add approximately 58,380 square feet of net new institutional use resulting in an approximately 141,580 gsf residential care facility and increase the number of residential care suites by 23 from 86 to 109. **Table 1, Proposed Project Details** provides a summary of the proposed project compared to existing conditions.

Table 1 Proposed Project Details

	Existing	Proposed	Net Change
Number of Building(s)	5	5	0
Building Stories[1]	4	4	0
Maximum Building Height (feet)[1]	40	40	0
Building Gross Square Feet (gsf)	83,200	141,580	+58,380
Residential Care Units	86	109	+23
Useable Open Space (square feet)	26,410	30,280	+3,870
Off-Street Parking (spaces)	17	36	+19
Off-Street Loading Spaces	1	1	0
On-Street Loading Spaces	0	0	0

SOURCE: GBA Inc., 2023.

[1] Reflects the maximum building height and number of stories as these vary across the site.

NOTE: All gsf numbers are rounded to the nearest multiple of 10.

Gsf = gross square feet

Figure 3, Proposed Site Plan depicts the overall proposed site plan; **Figures 4 through 7** depict the proposed floor plans for the basement, ground floor, representative upper floors (level 2); and roof levels. **Figures 8 through 9** depict the proposed building elevations.

New Construction

The new Bay Building and new Francisco Building would both be four stories and approximately 40 feet in height. The new Bay Building would be approximately 31,300 gross square feet and include a resident's roof

deck, independent living units, assisted living amenities, memory support accommodations, reception, lounge, administration and laundry. The new Francisco Building would be approximately 47,100 gross square feet and include independent living units, support areas (fitness, physical therapy, arts and crafts) and staff facilities.

The proposed new Bay Building and new Francisco Building would have flat roofs at similar elevation as the Perry Building. The new Bay Building also would include a roof deck consisting of 3,549 square feet of common open space surrounded by perimeter planters and positioned on the Bay Street side of the project site away from neighboring residences. The roof deck would be serviced by two elevators (service elevator and passenger elevator) with a small shade trellis (approximately 500 square feet). The new elevators would have penthouses that would be shorter than the existing Perry Building elevator penthouse. Three new staircases would be added to access the roof. None of the permitted obstructions would be taller than the existing roof access stair projection of the existing Perry Building. The Bay Building's new staircase would be adjacent to the internal courtyard, as would one of the Francisco Building's two staircases. The other stair for the Francisco Building located at the building's southeast corner would utilize a sloped roof condition consistent with the design guidelines.

To meet CALGreen[5] requirements, the project would utilize a mechanical system which requires use of rooftop HVAC compressors. The system has not been designed, but the compressors can range from 4 to 10 feet in height above the roof level (depending on the system design). The compressors would be grouped together in screened enclosures, as far away as practical from the roof perimeter along the adjoining streets. The screen enclosure height would match the equipment height. In addition, about a third of roof area not occupied by the roof terrace/mechanical equipment would host a solar panel array. The panels would have a tilt to optimize performance but would not project appreciably above adjacent parapets. The proposed project would decrease the total roof area from 34,360 square feet to 31,930 square feet to accommodate the solar panels; new buildings would meet Title 24 requirements for photovoltaic solar panels on building flat roof areas.

The existing emergency backup diesel power generator, located adjacent to the Bay Street frontage, would be replaced by a new Tier 4 emissions emergency backup diesel generator located inside the new Bay Building.

A new basement level garage would be constructed beneath the Bay and Francisco buildings and the existing interior courtyard. The basement level would include 31 vehicular parking spaces for use by staff and residents, including one car-share space, and 18 bicycle parking spaces. A new two-directional, 20-foot-wide driveway on Bay Street would provide access to the new basement, east of the existing entrance. Vehicles would be restricted to right-only turns into and out of the driveway. The new driveway would necessitate the removal of the 17 existing project site surface parking spaces and approximately 15 feet of street parking along Bay Street. At this location, along the Bay Street side of the project site, an off-street covered porte cochère with zero curbs and accessibility ramps would provide universal access required by the residential care facility. The existing driveway on Bay Street, west of the new driveway, would provide access to five project site surface parking spaces. In total, the project would add 19 net new parking spaces to the project site. The proposed project would also add 12 new bicycle parking spaces in the public right-of-way (three located on Bay Street and nine located on Francisco Street).

[5] CalGreen is the California Green Buildings Standards Code, Part 11, Title 24, California Code of Regulations.

Changes to Existing Buildings

The proposed project would:

- renovate the interior of the existing Caretaker's Cottage,
- renovate the interior and exterior of the existing Perry Building, and
- rehabilitate the façade of the existing Julia Morgan Building, including window repairs and replacements, fencing repairs including to the brick base, HVAC modernization, re-pointing[6] of bricks where needed, and roof repairs where needed.

There would be no change to the building massing, number of stories or height of the Julia Morgan Building, Perry Building, and the Caretaker's Cottage.

Open Space

The project would increase usable open space at the project site from approximately 26,410 square feet to approximately 30,280 square feet, an increase of approximately 3,870 square feet of open space. The proposed project would preserve the existing open lawn space in front of the Julia Morgan Building and in the courtyard to the rear of the project site. The proposed project would renovate and augment the size of the original central courtyard and would install an adjoining courtyard on the same level. The proposed project would also create an art garden in the approximate location of the existing garden at the southwest portion of the project site. Additionally, the project would add 3,550 square feet of common open space and 940 square feet of green area on the roof of the new Bay Building.

Demolition and Construction

Construction of the project would take approximately 29 months. The proposed new buildings would be constructed on mat foundations, and no impact or vibratory pile driving techniques would be used. The proposed project would require the excavation of 9,060 cubic yards of soil to a maximum depth of 15 feet below ground surface. The total area of soil disturbance would be 29,750 square feet. Construction is scheduled for Monday through Friday, from 7:00 a.m. to 8:00 p.m., with no nighttime construction to occur.

Project Approvals

The proposed project requires the following approvals from the San Francisco Planning Commission: Conditional Use Authorization (planning code sections 209.2 and 303); and Planned Unit Development, including an exception to a rear yard requirement (planning code section 304).

Summary of Potential Environmental Issues

The proposed project could result in potentially significant environmental effects. Therefore, the department will prepare an initial study and EIR to evaluate the physical environmental effects of the proposed project. The initial study will be published as an appendix to the draft EIR and will be part of the EIR.

As required by the California Environmental Quality Act (CEQA), the EIR will further examine those issues identified in the initial study as having potentially significant effects or may be topics of significant controversy, identify mitigation measures, analyze whether the proposed mitigation measures would reduce

[6] Re-pointing refers to replacing and sealing failed joints with new mortar.

the environmental effects to less-than-significant levels, and identify feasible alternatives to the proposed project that would reduce those impacts.

The EIR (including the initial study) will be prepared in compliance with CEQA (California Public Resources Code, sections 21000 et seq.), the CEQA Guidelines, and Chapter 31 of the San Francisco Administrative Code. The EIR is an informational document for use by governmental agencies and the public to aid in the planning and decision-making process. The EIR will disclose any physical environmental effects of the proposed project and identify possible ways of reducing or avoiding potentially significant impacts.

The EIR will evaluate the environmental impacts of the proposed project resulting from construction and operational activities, and will propose mitigation measures to reduce or avoid impacts determined to be significant. The EIR will also identify potential cumulative impacts that consider impacts of the proposed project in combination with impacts of other past, present, and reasonably foreseeable future projects. The EIR (including the initial study) will address all environmental topics in the department's CEQA environmental checklist; at this time, topics marked with an asterisk (*) are anticipated to be included for full analysis in the EIR:

- Land Use and Planning
- Aesthetics*
- Population and Housing
- Cultural Resources*
- Tribal Cultural Resources
- Transportation and Circulation
- Noise
- Air Quality*
- Greenhouse Gas Emissions
- Wind
- Shadow
- Recreation
- Utilities and Service Systems
- Public Services
- Biological Resources
- Geology and Soils
- Hydrology and Water Quality
- Hazards and Hazardous Materials
- Mineral Resources
- Energy
- Agriculture and Forestry Resources
- Wildfire

Finding

This project may have a significant effect on the environment, and an EIR will be prepared. This determination is based on the criteria of the state CEQA Guidelines, sections 15063 (Initial Study), 15064 (Determining Significant Effect), and 15065 (Mandatory Findings of Significance). The purpose of the EIR is to provide information about potential significant physical environmental impacts of the proposed project, and identify possible ways to minimize any significant impacts. The EIR also describes and analyzes possible alternatives to the proposed project. The EIR will also discuss other topics required by CEQA, including significant unavoidable impacts and significant irreversible impacts, and known controversy associated with the project and its environmental effects, and issues to be resolved by decision-makers.

Preparation of an NOP or EIR does not indicate a decision by the City and County of San Francisco to approve or disapprove a proposed project. However, prior to making any such decision, the decision-makers must review and consider the information contained in the EIR.

Public Scoping Comments

The department welcomes your comments concerning potential environmental effects of this project. Written comments will be accepted until **5 p.m. on December 1, 2023**. Written comments should be sent to Jeanie Poling, San Francisco Planning Department, 49 South Van Ness Avenue, Suite 1400, San Francisco, CA 94103, or emailed to jeanie.poling@sfgov.org and should reference the project title and case number on the front of this notice.

State Agencies: If you work for a responsible state agency, we need to know the views of your agency regarding the scope and content of the environmental information that are germane to your agency's statutory responsibilities in connection with the proposed project. Your agency may need to use the EIR when considering a permit or other approval for this project. Please include the name of a contact person in our agency. If you have questions concerning the environmental review of the proposed project, please contact Jeanie Poling at 628-652-7559 or jeanie.poling@sfgov.org.

Members of the public are not required to provide personal identifying information when they communicate with the planning commission or the department. All written or verbal communications, including submitted personal contact information, may be made available to the public for inspection and copying on request, and may appear on the department's website or in other public documents.

Recipients of this notice are encouraged to pass on this information to others who may have an interest in the project.

Dewyani Jain for Lisa Gibson

November 1, 2023

By Lisa Gibson
Environmental Review Officer

Date

cc: Catherine Stefani, District 2 Supervisor

FIGURE 1

N

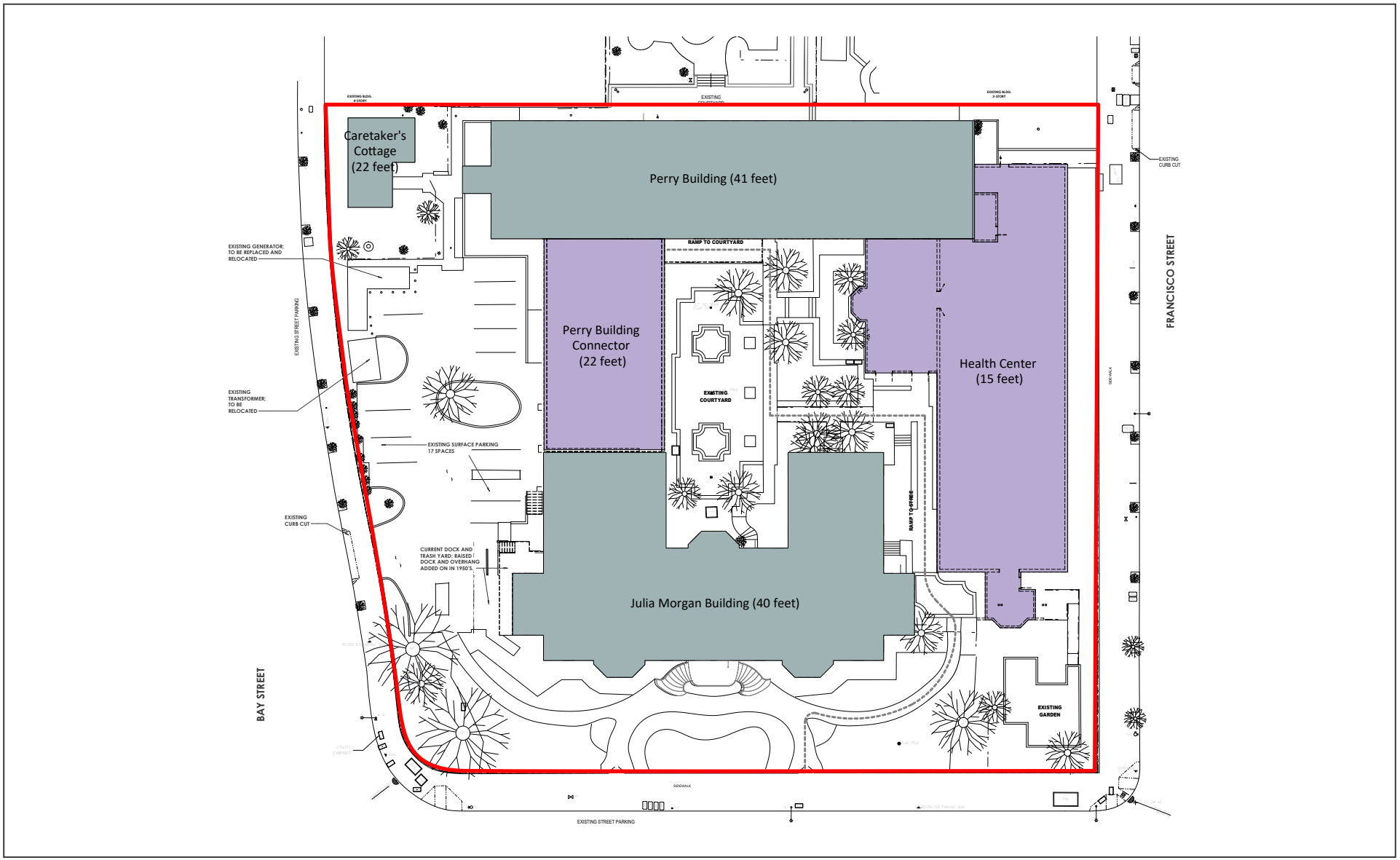
0 1000 2000
FEET

SOURCE: ESRI Street Map, 2023

J:\20230999\G\Project_Location.ai (10/24/2023)

3400 Laguna Street Project

Project Location



LEGEND

- Project Area
- Area of Modified Landscape
- Building to be Demolished
- Building to Remain Interior Renovation Only
- Accessible Path of Travel

FIGURE 2

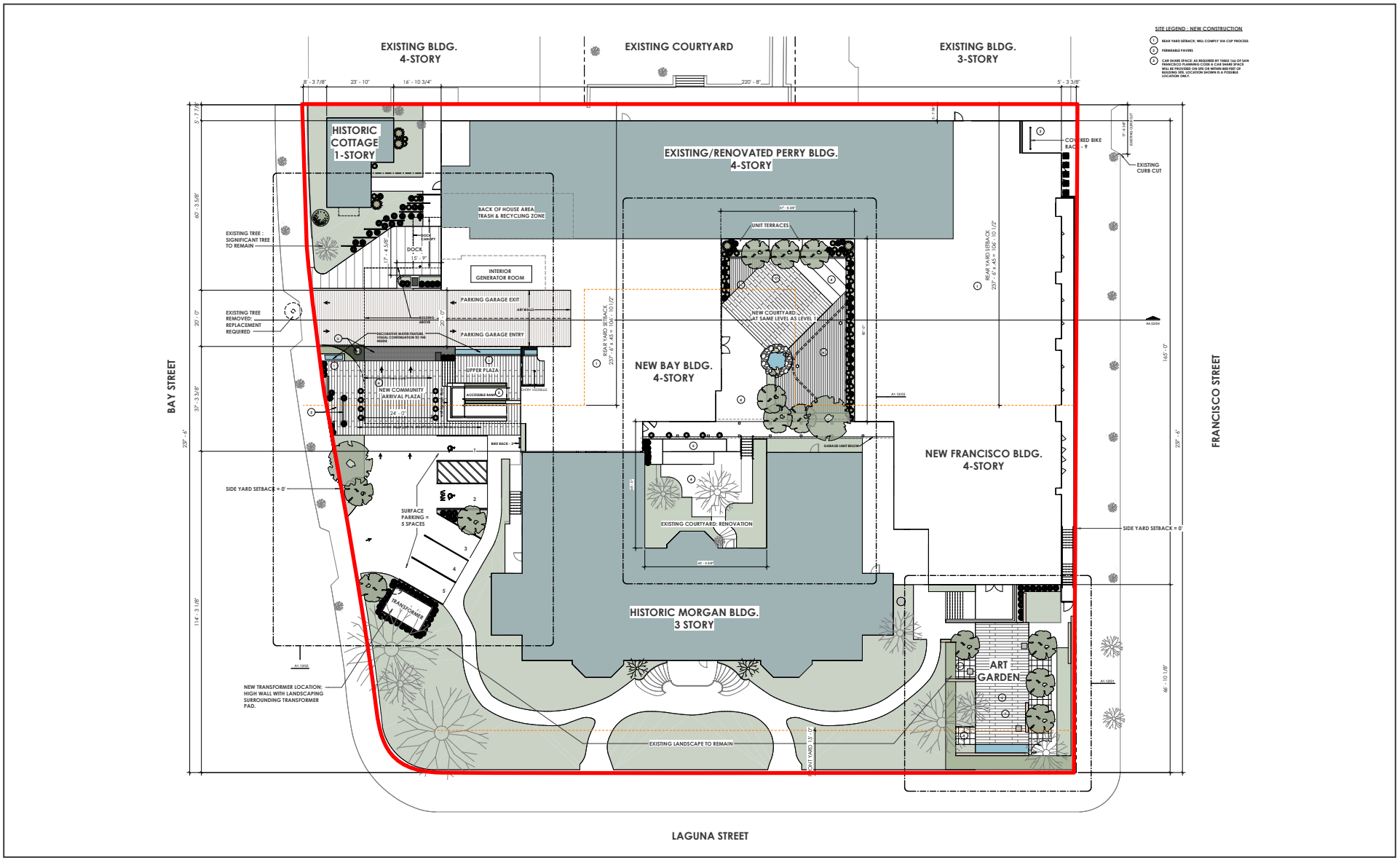
NO SCALE

SOURCE: HKS, Inc.

3400 Laguna Street Project

Existing Site Plan

J:\20230999\G\Existing_Site_Plan.ai (10/24/2023)



LEGEND

Project Area

FIGURE 3

0 25 50

FEET

SOURCE: HKS, Inc.

3400 Laguna Street Project

Proposed Site Plan

J:\20230999\G\Proposed_Site_Plan.ai (10/26/2023)

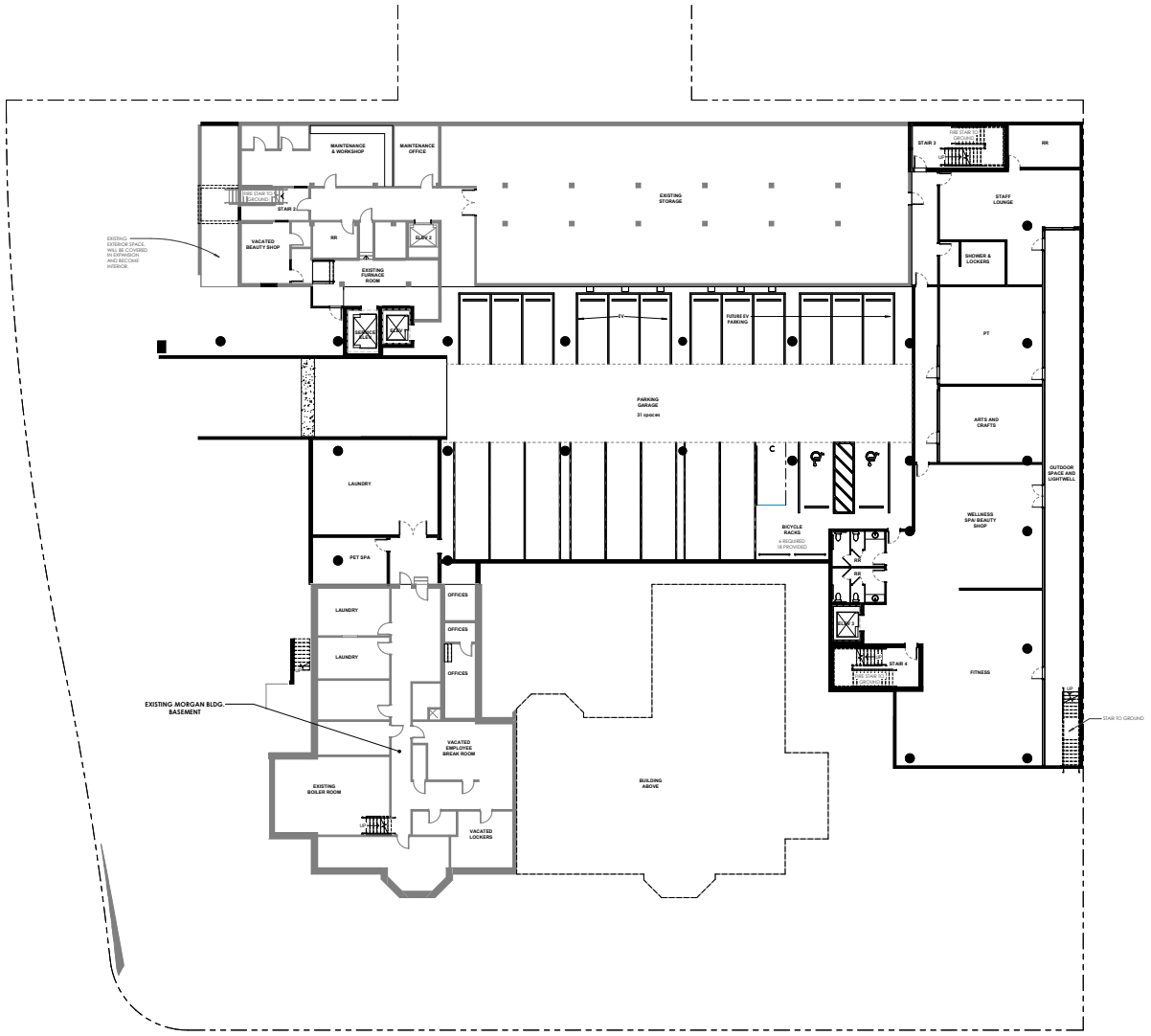


FIGURE 4

NO SCALE

SOURCE: HKS, Inc.

3400 Laguna Street Project

Proposed Floor Plan – Basement

J:\20230999\G\Proposed_Floor_Plan_Basement.ai (10/26/2023)

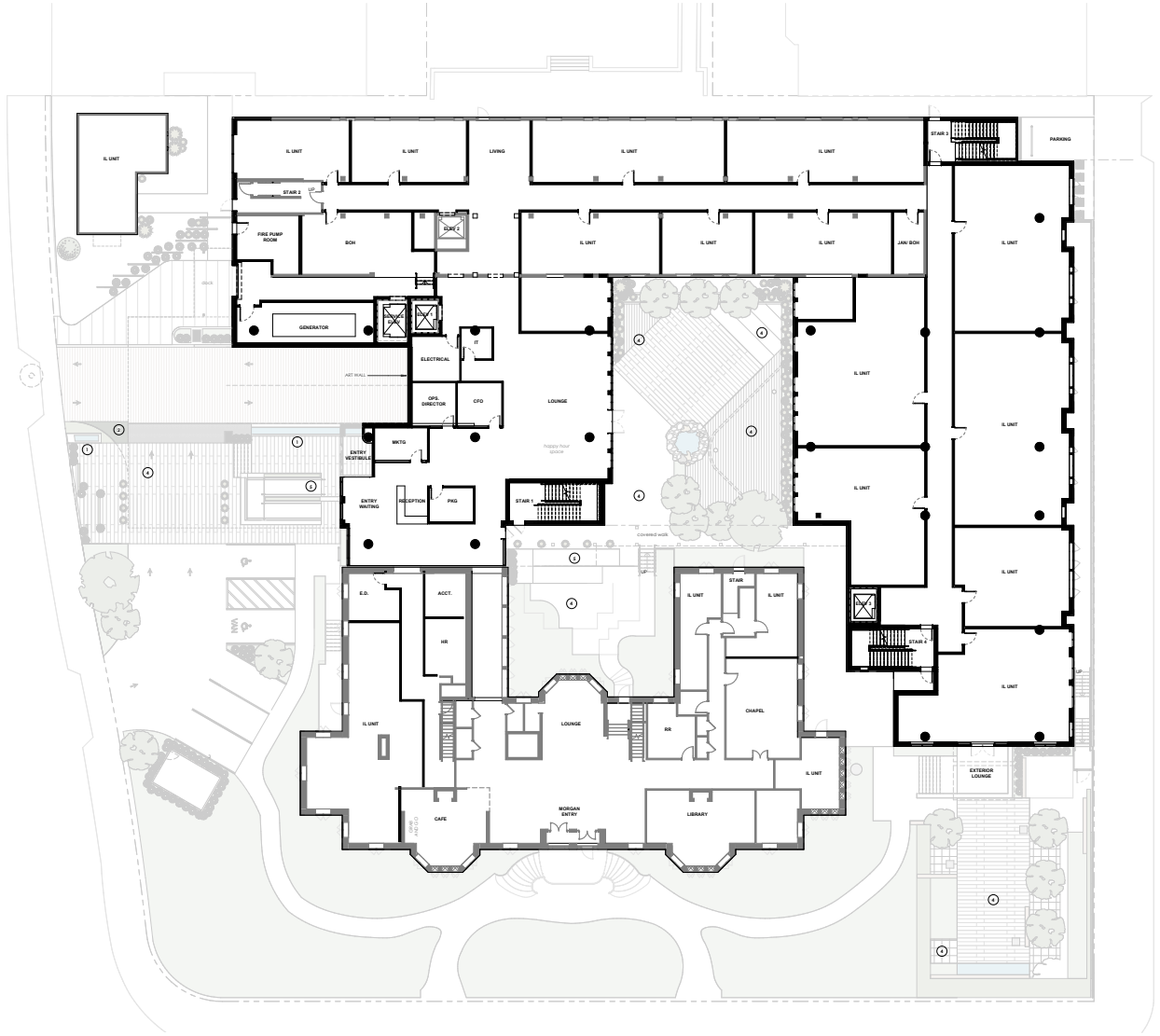


FIGURE 5

NO SCALE

SOURCE: HKS, Inc.

3400 Laguna Street Project

Proposed Floor Plan – Level 1

J:\20230999\G\Proposed_Floor_Plan_Level-1.ai (10/26/2023)

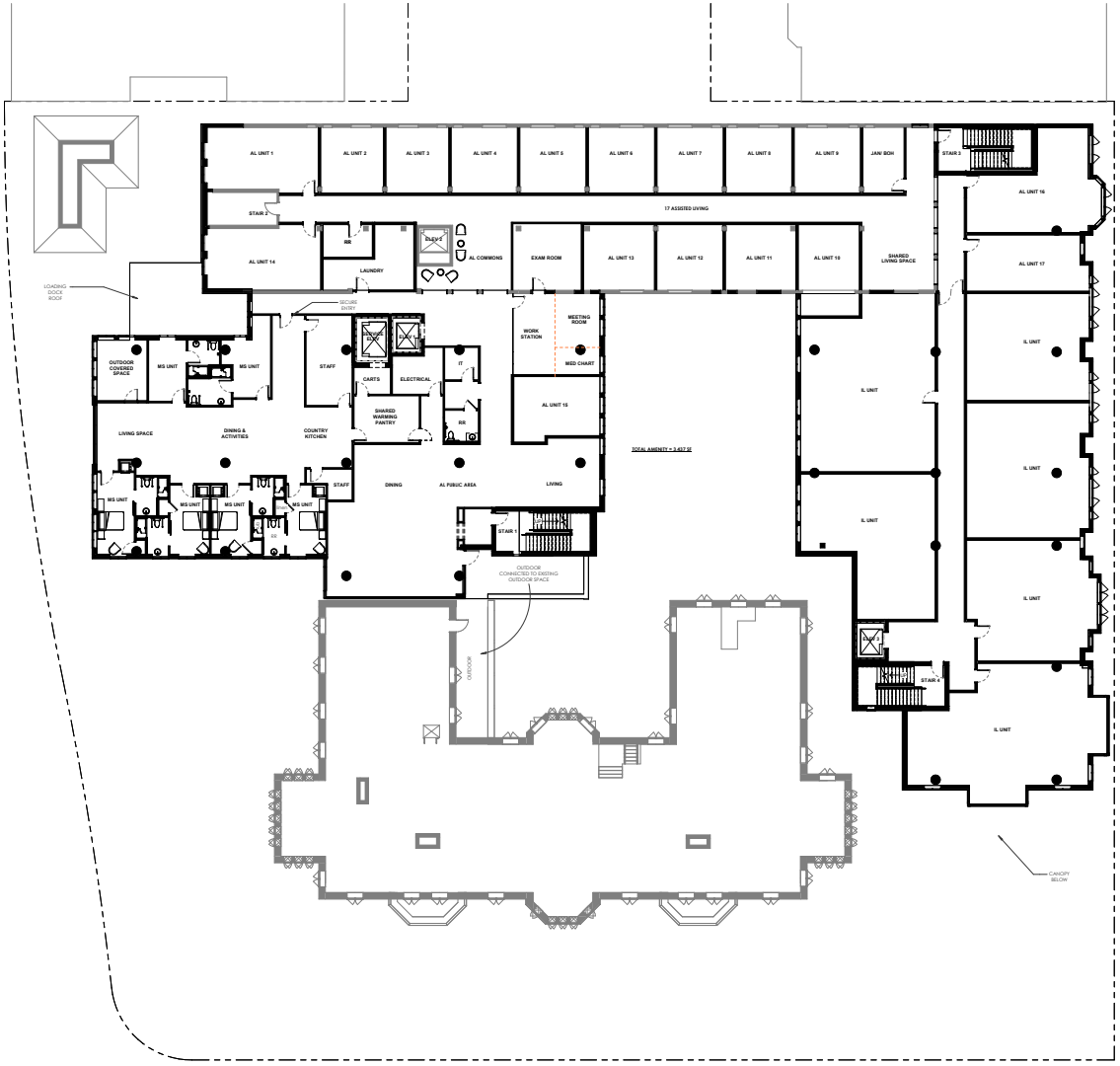


FIGURE 6

NO SCALE

SOURCE: HKS, Inc.

J:\20230999\G\Proposed_Rep_Upper_Floor_Plans_Level2.ai (10/26/2023)

3400 Laguna Street Project

Representative Upper Floor Plan – Level 2

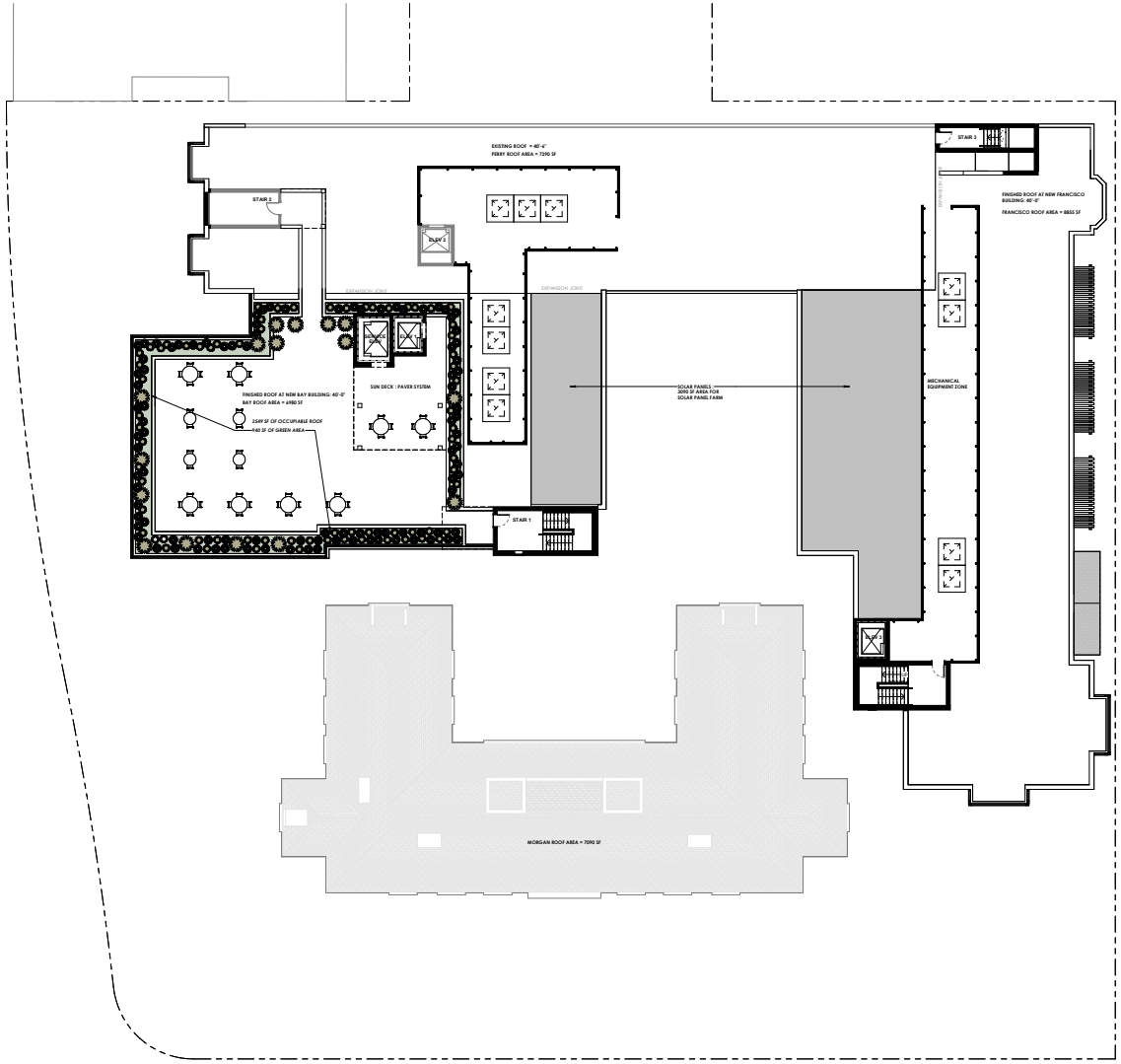


FIGURE 7

NO SCALE

SOURCE: HKS, Inc.

J:\20230999\G\Proposed_Roof_Plan.ai (10/26/2023)

3400 Laguna Street Project

Proposed Roof Level Plan

FIGURE 8

0 15 30
FEET

SOURCE: HKS, Inc.

3400 Laguna Street Project
Proposed Elevations – North and South

J:\20230999\G\Proposed_Elevations_N-S.ai (10/26/2023)

East Elevation

West Elevation

FIGURE 9

0 17.5 35
FEET

SOURCE: HKS, Inc.

3400 Laguna Street Project
Proposed Elevations – East and West

J:\20230999\G\Proposed_Elevations_E-W.ai (10/26/2023)

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State of California – Natural Resources Agency
DEPARTMENT OF FISH AND WILDLIFE
Bay Delta Region
2825 Cordelia Road, Suite 100
Fairfield, CA 94534
(707) 428-2002
www.wildlife.ca.gov

GAVIN NEWSOM, Governor
CHARLTON H. BONHAM, Director

May 24, 2024

Megan Calpin, Senior Planner
City and County of San Francisco
49 South Van Ness Avenue #1400
San Francisco, CA 94103
Megan.Calpin@sfgov.org

Subject: 3400 Laguna Street Project, Notice of Preparation of a Draft Environmental Impact Report, SCH No. 2024050241, City and County of San Francisco

Dear Megan Calpin:

The California Department of Fish and Wildlife (CDFW) reviewed the City and County of San Francisco (City) Notice of Preparation (NOP) of a Draft Environmental Impact Report (EIR) for the 3400 Laguna Street Project (Project) pursuant the California Environmental Quality Act (CEQA) and CEQA Guidelines[1] .

Thank you for the opportunity to provide comments and recommendations regarding those activities involved in the Project that may affect fish and wildlife resources of the state. Please be advised, by law, CDFW may be required to carry out or approve through the exercise of its own regulatory authority under the Fish and Game Code.

CDFW is providing the City, as the Lead Agency, with specific detail about the scope and content of the environmental information related to CDFW's area of statutory responsibility that must be included in the draft EIR (See: Cal. Code Regs., tit. 14, § 15082, subd. (b)).

CDFW ROLE

CDFW is California's **Trustee Agency** for fish and wildlife resources and holds those resources in trust by statute for all the people of the State. (Fish & G. Code, §§ 711.7, subd. (a) & 1802; Pub. Resources Code, § 21070; CEQA Guidelines § 15386, subd. (a)). CDFW, in its trustee capacity, has jurisdiction over the conservation, protection, and management of fish, wildlife, native plants, and habitat necessary for biologically sustainable populations of those species. (*Id.*, § 1802). For purposes of CEQA, CDFW is charged by law to provide, as available, biological expertise during public agency environmental review efforts, focusing specifically on projects and related activities that have the potential to adversely affect fish and wildlife resources.

[1] CEQA is codified in the California Public Resources Code in section 21000 et seq. The "CEQA Guidelines" are found in Title 14 of the California Code of Regulations, commencing with section 15000.

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CDFW is also submitting comments as a **Responsible Agency** under CEQA. (Pub. Resources Code, § 21069; CEQA Guidelines, § 15381). CDFW expects that it may need to exercise regulatory authority over the Project pursuant to the Fish and Game Code. For example, the Project may be subject to CDFW's Lake and Streambed Alteration (LSA) regulatory authority, if the Project impacts the bed, channel or bank of any river, stream or lake within the State (Fish & G. Code, § 1600 et seq.). Likewise, to the extent the Project may result in "take" as defined by state law of any species protected under the California Endangered Species Act (CESA) (Fish & G. Code, § 2050 et seq.), the Project proponent may seek related take authorization as provided by the Fish and Game Code.

PROJECT DESCRIPTION AND LOCATION

Proponent: Mary Linde, Heritage on the Marina

Location: The Project site is located at 3400 Laguna Street on a 1.6-acre corner lot southeast of the Laguna Street and Bay Street intersection in the Marina neighborhood. The site is bounded by Bay Street to the north, single- and multi-family residences near to and along Octavia Street to the east, Francisco Street to the south, and Laguna Street to the west. The Project site has been occupied by the Heritage on the Marina residential care retirement community since 1925. The Heritage on the Marina consists of five existing structures of approximately 83,200 gross square feet (APN 0471 -003).

Description: The Project proposes to continue operating as a residential care facility and demolish two of the five existing buildings (the Perry Connector and the Health Care Center) and construct two new buildings (the Bay Building and the Francisco Building) of heights not to exceed 40 feet and in the same locations as the demolished structures. The proposed Project would renovate two of the other three existing buildings on the site and make improvements to the Julia Morgan Building. The Project proposes to add approximately 58,380 square feet of institutional use and increase the number of residential care suites by 23 from 86 to 109.

The CEQA Guidelines (§§15124 & 15378) require that the draft EIR incorporate a full Project description, including reasonably foreseeable future phases of the Project, and that contains sufficient information to evaluate and review the Project's environmental impact. Please include a complete description of the following Project components in the Project description including, but not limited to the below information.

Land use changes resulting from, for example, rezoning in certain areas.

- Footprints of permanent Project features and temporarily impacted areas, such as staging areas. and access routes.

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- Area and plans for any proposed buildings/structures, ground-disturbing activities, fencing, paving, stationary machinery, landscaping, and stormwater systems.

- Operational features of the Project, including level of anticipated human presence (describe seasonal or daily peaks in activity, if relevant), artificial lighting/light reflection, noise, traffic generation, and other features.

- Construction schedule, activities, equipment, and crew sizes.

ENVIRONMENTAL SETTING

Sufficient information for meaningful review regarding the environmental setting is necessary to understand any potentially significant impacts on the environment of the proposed Project and any alternatives identified in the draft EIR (CEQA Guidelines, §§ 15125 & 15360). CDFW recommends the draft EIR provide baseline habitat assessments for special-status plant, fish, and wildlife species located and potentially located within the Project area and surrounding lands, including all rare, threatened, and endangered species (CEQA Guidelines, §15380). The draft EIR should describe aquatic habitats, such as wetlands or waters of the U.S. or State, and any sensitive natural communities or riparian habitat occurring on or adjacent to the Project site (for sensitive natural communities see: https://wildlife.ca.gov/Data/VegCAMP/NaturalCommunities#sensitive%20natural%20communities), and any stream or wetland set back distances the City may require.

Candidate and other special-status species that are known to occur, or have the potential to occur, in or near the Project site include, but are not limited to:

Common Name	Scientific Name	Federal Status[2]	State Status[3]	CDFW Status
American peregrine falcon	*Falco peregrinus anatum*	Delisted	Delisted	-
monarch - California overwintering population	*Danaus plexippus plexippus pop. 1*	FC	-	-
obscure bumble bee	*Bombus caliginosus*	-	-	-
western bumble bee	*Bombus occidentalis*	-	SC	-

Habitat descriptions and species profiles included in the draft EIR should include robust

[2] FC = federal candidate for listing under ESA.
[3] SC = state candidate for listing endangered under CESA.

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information from multiple sources: aerial imagery, historical and recent survey data, field reconnaissance, scientific literature and reports, U.S. Fish and Wildlife Service's (USFWS) Information, Planning, and Consultation System; California Aquatic Resources Inventory; and findings from "positive occurrence" databases such as California Natural Diversity Database (CNDDB). Only with sufficient data and information from the habitat assessment can the City adequately assess which special-status species are likely to occur in the Project vicinity.

CDFW recommends that prior to Project implementation, surveys be conducted for special-status species with potential to occur, following recommended survey protocols if available. Survey and monitoring protocols and guidelines are available at: https://wildlife.ca.gov/Conservation/Survey-Protocols.

Botanical surveys for special-status plant species, including those listed by the California Native Plant Society (http://www.cnps.org/cnps/rareplants/inventory/), should also be conducted during the blooming period for all sensitive plant species potentially occurring within the Project area and include the identification of reference populations. Please refer to CDFW protocols for surveying and evaluating impacts to special-status plants available at: https://wildlife.ca.gov/Conservation/Plants.

IMPACT ANALYSIS AND MITIGATION MEASURES

The CEQA Guidelines necessitate the draft EIR, discuss all direct and indirect impacts (temporary and permanent) that may occur with implementation of the Project. (CEQA Guidelines, § 15126.2.). This includes evaluating and describing impacts such as:

- Potential for "take" of special-status species;
- Loss of trees;
- Loss or modification of breeding, nesting, dispersal, and foraging habitat, including vegetation removal, alternation of soils and hydrology, and removal of habitat structural features (e.g. snags, roosts);
- Permanent and temporary habitat disturbances associated with ground disturbance, noise, lighting, reflection, air pollution, traffic, or human presence;
- Water quality impacts resulting from construction and operation of the Project;
- Impacts both from construction and operation of the Project; and
- Impacts to bed, channel, bank, and riparian habitat, and the direct and indirect effects to fish, wildlife, and their habitat.

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The draft EIR should also identify existing and reasonably foreseeable future projects in the Project vicinity, disclose any cumulative impacts associated with these projects, determine the significance of each cumulative impact, and assess the significance of the Project's contribution to each impact (CEQA Guidelines, § 15355). Although a project's impacts may be insignificant individually, its contributions to a cumulative impact may be considerable; a contribution to a significant cumulative impact (e.g., reduction of available habitat for a listed species) should be considered cumulatively considerable without mitigation to minimize or avoid the impact.

The CEQA Guidelines direct the City, as the Lead Agency, to consider and describe in the draft EIR all feasible mitigation measures to avoid and/or mitigate potentially significant impacts of the Project on the environment based on comprehensive analysis of the potential direct, indirect, and cumulative impacts of the Project. (CEQA Guidelines, §§ 15021, 15063, 15071, 15126.2, 15126.4 & 15370.) This should include discussion of take avoidance and minimization measures for special-status species, which should be developed in consultation with the USFWS, the National Marine Fisheries Service, and CDFW. These measures can then be incorporated as enforceable Project conditions to reduce potential impacts to biological resources to less-than-significant levels.

REGULATORY REQUIREMENTS

California Endangered Species Act

A CESA Incidental Take Permit (ITP) must be obtained from CDFW if the Project has the potential to result in "take" of plants or animals listed under CESA, either during construction or over the life of the Project. Under CESA, "take" means "hunt, pursue, catch, capture, or kill, or attempt to hunt, pursue, catch, capture, or kill." (Fish & G. Code, § 86.) CDFW's issuance of an ITP is subject to CEQA and to facilitate permit issuance, any project modifications and mitigation measures must be incorporated into the CEQA document analysis, discussion, and mitigation monitoring and reporting program. If the Project will impact CESA listed species, early consultation is encouraged, as significant modification to the Project and mitigation measures may be required in order to obtain a CESA Permit.

CEQA requires a mandatory finding of significance if a project is likely to substantially impact threatened or endangered species. Pub. Resources Code, §§ 21001, subd. (c) & 21083; CEQA Guidelines, §§ 15380, 15064 & 15065.) In addition, pursuant to CEQA, the Lead Agency cannot approve a project unless all impacts to the environment are avoided or mitigated to less-than-significant levels, or the Lead Agency makes and supports Findings of Overriding Consideration for impacts that remain significant despite the implementation of all feasible mitigation. FOC under CEQA, however, do not eliminate the Project proponent's obligation to comply with the Fish and Game Code.

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Lake and Streambed Alteration Agreement

CDFW requires an LSA Notification, pursuant to Fish and Game Code section 1600 et seq., for Project activities affecting lakes or streams and associated riparian habitat. Notification is required for any activity that may substantially divert or obstruct the natural flow; change or use material from the bed, channel, or bank (including associated riparian or wetland resources); or deposit or dispose of material where it may pass into a river, lake, or stream. Work within ephemeral streams, drainage ditches, washes, watercourses with a subsurface flow, and floodplains is generally subject to notification requirements. In addition, infrastructure installed beneath such aquatic features, such as through hydraulic directional drilling, is also generally subject to notification requirements. Therefore, any impact to the mainstems, tributaries, or floodplains or associated riparian habitat caused by the proposed Project will likely require an LSA Notification. CDFW may not execute a final LSA Agreement until it has considered the final EIR and complied with its responsibilities as a responsible agency under CEQA.

Migratory Birds and Raptors

CDFW has authority over actions that may result in the disturbance or destruction of active bird nest sites or the unauthorized take of birds. Fish and Game Code sections protecting birds, their eggs, and nests include section 3503 (regarding unlawful take, possession, or needless destruction of the nests or eggs of any bird), section 3503.5 (regarding the take, possession, or destruction of any birds-of-prey or their nests or eggs), and section 3513 (regarding unlawful take of any migratory nongame bird). Migratory birds are also protected under the federal Migratory Bird Treaty Act.

ENVIRONMENTAL DATA

CEQA requires that information developed in EIRs and negative declarations be incorporated into a database which may be used to prepare subsequent EIRs or to make subsequent or supplemental environmental determinations. (Pub. Resources Code, § 21003, subds. (d) & (e).) Accordingly, please report any special-status species and natural communities detected during Project surveys to CNDDB. The CNDDB online field survey form and other methods for submitting data can be found here: https://wildlife.ca.gov/Data/CNDDB/Submitting-Data.

The types of information reported to CNDDB can be found here: https://wildlife.ca.gov/Data/CNDDB/Plants-and-Animals.

FILING FEES

CDFW anticipates that the proposed Project will have an impact on fish and/or wildlife, and assessment of environmental document filing fees is necessary. Fees are payable

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upon filing of the Notice of Determination by the Lead Agency and serve to help defray the cost of environmental review by CDFW. Payment of the environmental document filing fee is required in order for the underlying project approval to be operative, vested, and final. (See: Cal. Code Regs, tit. 14, § 753.5; Fish & G. Code, § 711.4; Pub. Resources Code, § 21089.).

CONCLUSION

CDFW appreciates the opportunity to provide comments on the proposed Project to assist the City in identifying and mitigating Project impacts on biological resources.

Questions regarding this letter or further coordination should be directed to Jason Teichman, Environmental Scientist at Jason.Teichman@wildlife.ca.gov; or Wesley Stokes, Senior Environmental Scientist (Supervisory), at Wesley.Stokes@wildlife.ca.gov.

Sincerely,

DocuSigned by:
Erin Chappell
B77E9A6211EF486...

Erin Chappel
Regional Manager
Bay Delta Region

ec: Craig Weightman, CDFW Bay Delta Region - Craig.Weightman@wildlife.ca.gov